



**CITY COUNCIL AGENDA
1ST FLOOR COUNCIL CONFERENCE ROOM, CITY HALL
CITY OF NEW ROCHELLE
COMMITTEE OF THE WHOLE SESSION
TUESDAY, MAY 10, 2022
3:45 P.M.**

CALL TO ORDER

PRESENTATION(S):

1. 3:45 P.M. - 4:00 P.M.: PRESENTATION OF SCHOOL DISTRICT BUDGET BY JONATHAN P. RAYMOND, SUPERINTENDENT OF SCHOOLS
2. 4:00 P.M. - 4:30 P.M.: PRESENTATION RE: STATUS UPDATE - LINC DOWNTOWN REVITALIZATION INITIATIVE (DRI) PROJECT

AGENDA REVIEW

COMMENDATION(S):

3. 7:00 P.M. : URSULINE VARSITY CHEERLEADING TEAM

PUBLIC HEARING(S) THIS EVENING:

4. PROPOSED LOCAL LAW, INTRO. NO. 1, RE: COLD WAR VETERANS' EXEMPTION
Local Law No.____ A local law, Intro No. _1_, to amend Article IX, Cold War Veterans Exemption, Section 288-30, Amount of exemption; limitations, of Chapter 288, Taxation, of the Code of the City of New Rochelle relative to increasing veterans exemptions. (Intro. 4/12/22; Public Hearing 5/10/22)

DEPARTMENT OF DEVELOPMENT:

5. PROPOSED LEGISLATION RE: 2022 CDBG & HOME ANNUAL ACTION PLAN & BUDGETS - Resolution adopting amendments to the 2022 CDBG and HOME Annual Action Plan and amended budgets. (Intro. 5/10/22; Public Hearing 6/14/22).
6. DIRECTING PUBLIC HEARING RE: PROPOSED AMENDMENTS TO 2022 CDBG & HOME ANNUAL ACTION PLAN & BUDGETS - Resolution directing public hearing relative to amending the 2022 CDBG & HOME Annual Action Plan and Budgets.

7. PROPOSED AMENDMENT TO CHAPTER 9-99 OF THE CODE OF THE CITY OF NEW ROCHELLE RE: THE ECOLOGY AND NATURAL RESOURCES ADVISORY COMMITTEE - Ordinance amending Article XXVII, Ecology and Natural Resources Advisory Committee, Section 9-99, Committee Established, of the Code of the City of New Rochelle.
8. PROPOSED AGREEMENT RE: GREENHOUSE GAS INVENTORY CONSULTING SERVICES - Resolution accepting the proposal from AKRF relative to greenhouse gas emissions tracking for 2019 and 2020.
9. PROPOSED HOME RULE REQUEST RE: STATE ALIENATION OF LAND, HOME FOR THE NEW ROCHELLE ARMORY - Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S8986 and Assembly Bill No. A10145, as proposed in Legislative Bills S7184 and A8014, in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.
10. PROPOSED LEGISLATION RE: STATE ALIENATION - HOME RULE REQUEST REV #1 - Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S7829 and Assembly Bill No. A9777, as proposed in Legislative Bills S7184 and A8014, in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.
11. PROPOSED LEGISLATION RE: HOME RULE REQUEST TO AMEND VEHICLE & TRAFFIC LAW - RESIDENTIAL PARKING SYSTEM - Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S8662 and Assembly Bill No. A9745, amending the Vehicle and Traffic Law in relation to implementing a residential parking system in the Sutton Manor neighborhood in the City of New Rochelle.

DEPARTMENT OF BUILDINGS:

12. PROPOSED CREATION OF POSITION OF SECRETARY TO THE COMMISSIONER OF BUILDINGS - Resolution creating the position of Secretary to the Commissioner of Buildings and eliminating the position of Principal Clerk within the Department of Buildings.
13. PROPOSED CHANGE IN CIVIL SERVICE EMPLOYEES' ASSOCIATION (CSEA) GRADE RE: PLUMBING INSPECTOR - Resolution approving the update of an existing position within the office of the Department of Buildings.

LAW DEPARTMENT:**DEPARTMENT OF FINANCE:****DEPARTMENT OF PUBLIC WORKS:**

14. PROPOSED APPROVAL OF ANNUAL STORMWATER REPORT RE: YEAR 2021 - Resolution authorizing the City Manager to approve the MS4 Municipal Compliance Certification and Annual Report form for the period ending March 9, 2022.

DEPARTMENT OF PARKS AND RECREATION:

15. PROPOSED ACCEPTANCE OF A GRANT AWARD FROM THE WESTCHESTER COUNTY YOUTH BUREAU RE: MUNICIPAL YOUTH BUREAU FUNDING - Resolution authorizing the City Manager to accept a grant from the Westchester County Youth Bureau in the amount of \$71,428 relative to municipal youth bureau funding.
16. PROPOSED ACCEPTANCE OF A GRANT AWARD FROM THE WHITE PLAINS YOUTH BUREAU RE: GRANDPA PROGRAM - Resolution authorizing the City Manager to accept a grant from the White Plains Youth Bureau in the amount of \$25,000 relative to the Grandpa Program.

POLICE DEPARTMENT:

FIRE DEPARTMENT:

DEPARTMENT OF HUMAN RESOURCES:

17. CIVIL SERVICE EMPLOYEES' ASSOCIATION (CSEA) STIPULATION OF AGREEMENT BETWEEN THE CITY OF NEW ROCHELLE (CITY) AND THE CIVIL SERVICE EMPLOYEES' ASSOCIATION (CSEA) - Resolution ratifying the Stipulation of Agreement between the City of New Rochelle and the Civil Service Employees Association (CSEA) for the period January 1, 2021 through December 31, 2026.

CITY MANAGER:

SUPPLEMENTAL ITEM(S):

UNFINISHED BUSINESS:

**NEW BUSINESS: May Regular Legislative Meeting, Tuesday, May 17, 2022, at 6:15 P.M.;
June Committee of the Whole Session, Tuesday, June 14, 2022, at 3:45 P.M.; June
Regular Legislative Meeting, Tuesday, June 21, 2022, at 6:15 P.M.**

DISCUSSION ITEM(S):

18. SUPPORT FOR TAXI INDUSTRY Requested by Council Member Albert A. Tarantino, Jr.

EXECUTIVE SESSION:

**PUBLIC HEARINGS 7:00 PM (See list above) PRESENTATION OF
COMMENDATION 7:00 P.M.**

CITIZENS TO BE HEARD

ADJOURNMENT

City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Charles Strome III, City Manager
DATE: May 10, 2022
SUBJECT: 3:45 P.M. - 4:00 P.M.: PRESENTATION OF SCHOOL DISTRICT BUDGET
BY JONATHAN P. RAYMOND, SUPERINTENDENT OF SCHOOLS

DISCUSSION ITEM

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Adam Salgado, Commissioner of Development
DATE: May 10, 2022
SUBJECT: 4:00 P.M. - 4:30 P.M.: PRESENTATION RE: STATUS UPDATE - LINC
DOWNTOWN REVITALIZATION INITIATIVE (DRI) PROJECT

DISCUSSION ITEM

PRESENTATION REGARDING A STATUS UPDATE FOR "THE LINC" DOWNTOWN
REVITALIZATION INITIATIVE (DRI) PROJECT

City of New Rochelle
City Clerk

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Michelle Oliveros, City Clerk
DATE: May 10, 2022
SUBJECT: 7:00 P.M. : URSULINE VARSITY CHEERLEADING TEAM

DISCUSSION ITEM

Presentation of Commendation - Ursuline Cheerleading Team

City of New Rochelle
Finance Department

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Edward Ritter, Finance Commissioner

DATE: May 10, 2022

SUBJECT: PROPOSED LOCAL LAW, INTRO. NO. 1, RE: COLD WAR VETERANS' EXEMPTION Local Law No. ____ A local law, Intro No. _1_, to amend Article IX, Cold War Veterans Exemption, Section 288-30, Amount of exemption; limitations, of Chapter 288, Taxation, of the Code of the City of New Rochelle relative to increasing veterans exemptions. (Intro. 4/12/22; Public Hearing 5/10/22)

Background:

New York State Real Property Tax Law (NYS RPT) section 458-b provides limited exemption from real property taxes for real property owned by persons who rendered military service to the United States during the cold war (defined as September 2, 1945, to December 26, 1991), provided such property meets the requirements set forth in the law. This section was revised to increase the limits of the Cold War Veterans Exemption.

Article IX Cold War Veterans Exemptions, Section 288-30, Limitation of Exemption, of Chapter 288, Taxation of the code of the City of New Rochelle states the limits as follows:

The Cold War Veteran's Exemptions: 288-30 A.

An applicant receiving the Cold War Veteran's Exemption receives the lesser of 15% of their assessment or the capped exemption amount of **\$27,000**, multiplied by the current equalization rate ($27,000 \times .0234 = 632\text{AV}$).

Limitations would be increased the lesser of 15% of their assessment or the increased capped amount of **\$75,000** multiplied by the current equalization rate ($75,000 \times .0234 = 1,755\text{ AV}$).

The Cold War Disabled Veteran's Exemptions: 288-30 B.

An applicant receiving the Disabled Veteran's Exemption receives the lesser of half of their Veterans Disability Rating or the capped exemption amount of **\$90,000** multiplied by the current equalization rate ($90,000 \times .0234 = 2,106\text{AV}$).

Limitations would be increased to the basic Alternative Veteran would receive the lesser of half of their Veterans Disability Rating or the increased capped amount of **\$250,000** multiplied by the current equalization rate ($250,000 \times .0234 = 5,850\text{ AV}$).

Recommendations:

The Finance Department recommends adopting a local law passing an amendment to Article IX, Cold War Veterans Exemptions, Section 288-30-A. & B. Limitation of Exemption, of Chapter 288, Taxation, of the code of the City of New Rochelle relative to increasing Cold War Veterans Exemptions as detailed herein.

LEGISLATION

LOCAL LAW NO. _____

A LOCAL LAW, INTRO. NO. 1 , TO AMEND ARTICLE IX, COLD WAR VETERANS EXEMPTION, SECTION 288-30, AMOUNT OF EXEMPTION; LIMITATIONS, OF CHAPTER 288, TAXATION, OF THE CODE OF THE CITY OF NEW ROCHELLE RELATIVE TO INCREASING VETERANS EXEMPTIONS.

BE IT ENACTED by the City of New Rochelle:

Article IX, Cold War Veterans Exemption, Section 288-30, Amount of exemption; limitations, of Chapter 288, Taxation, of the Code of the City of New Rochelle, is hereby amended to read as follows:

§ 288-30. Amount of exemption; limitations.

A. Qualifying residential real property shall be exempt from taxation to the extent of 15% of the assessed value of such property; provided, however, that such exemption shall not exceed [\$27,000] \$75,000 or the product of [\$27,000] \$75,000 multiplied by the latest state equalization rate of the assessing unit, or, in the case of a special assessing unit, the latest class ratio, whichever is less.

B. In addition to the exemption provided by Subsection A of this section, where the Cold War veteran received a compensation rating from the United States Veterans Affairs or from the United States Department of Defense because of a service-related disability, qualifying residential real property shall be exempt from taxation to the extent of the product of the assessed value of such property, multiplied by 50% of the Cold War veteran disability rating; provided, however, that such exemption shall not exceed [\$90,000] \$250,000 or the product of [\$90,000] \$250,000 multiplied by the latest state equalization rate of the assessing unit, or, in the case of a special assessing unit, the latest class ratio, whichever is less

Matter [bracketed] deleted.

Matter underlined added.

ATTACHMENTS:

1. Cold War Vets Limit Memo

INTER OFFICE COMMUNICATION

City of New Rochelle

TO: Ed Ritter, Finance Commissioner

From: Philip Platz, Assessor

SUBJECT: Cold War Veterans Property Tax Exemption (485-b)

DATE: March 15, 2022

In June of 2021, I became aware that Westchester County had raised the capped limits for taxpayers receiving the Alternative Veteran's Exemption under section 485-a of New York State Real Property Tax Law on the Westchester County tax bill. At that time, I informed Mark Zulli and we submitted a resolution to request the City Council raise our capped amount to the maximum allowed limits. I recently became aware that Westchester County also increased the capped amounts on the Cold War Veteran's Exemption under 485-b of the Real Property Tax Law, although this was not clear in June 2021. I now recommend that the City of New Rochelle increase our capped amounts on the Cold War Veteran's Exemption.

The following will provide information regarding the proposed increase of the capped levels for the Cold War Veteran's Exemption:

The Cold War Veteran's Exemption:

Existing Cap Level: \$27,000

Currently an applicant receiving the Cold War Veteran's Exemption receives the lesser of 15% of their assessment or the capped exemption amount multiplied by the current equalization rate ($27,000 \times .0234 = 632\text{AV}$).

If the new maximum capped amounts are adopted, the basic Alternative Veteran would receive the lesser of 15% of their assessment or the increased capped amount multiplied by the current equalization rate ($75,000 \times .0234 = 1,755\text{ AV}$).

The number of basic Cold War Veteran's Exemptions currently on the assessment roll is 65.

In tax dollars, the difference per exemption after increasing to the maximum for capped properties would equate to approximately \$279 increase for each exemption computed with the cap based on this year's rates.

At the City's current tax rate= **From \$157 to \$435 Maximum City Tax Benefit**

The Cold War Disabled Veteran's Exemption:

Existing Cap Level: \$90,000

Currently an applicant receiving the Disabled Veteran's Exemption receives the lesser of half of their Veterans Disability Rating or the capped exemption amount multiplied by the current equalization rate ($90,000 \times .0234 = 2,106\text{AV}$).

If the new maximum capped amounts are adopted, the basic Alternative Veteran would receive the lesser of half of their Veterans Disability Rating or the increased capped amount

Attachment: Cold War Vets Limit Memo (2531 : PROPOSED LOCAL LAW: COLD WAR VETERANS EXEMPTION)

multiplied by the current equalization rate ($250,000 \times .0234 = 5,850$ AV).
The number of Cold War Disabled Veteran's Exemptions currently on the assessment roll is 1.
In tax dollars, the difference per exemption after increasing to the maximum for capped properties would equate to approximately \$929 increase for each exemption computed with the cap based on this year's rates.
At the City's current tax rate= **From \$523 to \$1,451 Maximum City Tax Benefit**

If the maximum cap amount is adopted, there would be a reduction in city taxable assessed value of approximately \$60,520. The shift in city tax dollars would be approximately \$15,000 per year. The average homeowner assessed at 16,000 would see an increase of \$.23 per year.

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Adam Salgado, Commissioner of Development

DATE: May 10, 2022

SUBJECT: PROPOSED LEGISLATION RE: 2022 CDBG & HOME ANNUAL ACTION PLAN & BUDGETS - Resolution adopting amendments to the 2022 CDBG and HOME Annual Action Plan and amended budgets. (Intro. 5/10/22; Public Hearing 6/14/22).

Background:

On April 6, 2022, the Department of Housing and Urban Development (HUD) notified the City of New Rochelle that actual 2022 CDBG and HOME Grant allocations will not be announced until mid-May, although deadlines for submission of the Action Plan remain unchanged.

Issue:

Since the actual allocations are expected to be made on or around May 13, 2022, the City is required to submit its plan by June 30th using 2021's actual allocation in order to successfully conduct a 30-day Public Comment period that will commence on May 16, 2022 and extend through June 16, 2022. A Public Notice will be published in the Journal News on May 11th and June 1st.

Recommendation:

To this end, the Department of Development recommends implementing into the 2022 Action Plan, contingency language, stating that all proposed activities' budgets will be proportionally increased or decreased from the estimated funding levels to match actual 2022 allocation amounts for CDBG and HOME once announced. In the event of an increase to the CDBG funds, a portion of the increase will be added to fund HUD Certified Homebuyer Counseling Workshops for first time homebuyers in New Rochelle.

2022 CDBG Budget Amendment				
Org	Object	Project	Description	Change
CD22	20180	XXXX	PARK IMPROVEMENTS - HERITAGE HOMES	\$ 45,000
CD22	20180	2085	TRAFFIC IMPROVEMENTS	\$ (45,000)
CD22	41700	8001	CULTURAL/PROGRAM EXP	\$ (21,000.00)
CD22	13000	8001	SALARIES- HOURLY RATES	\$ 21,000.00
CD22	41700	8005	CULTURAL/PROGRAM EXP	\$ (59,193.00)

CD22	13000	8005	SALARIES- HOURLY RATES	\$ 59,193.00
CD22	41700	8007	CULTURAL/PROGRAM EXP	\$ (13,000.00)
CD22	13000	8007	SALARIES- HOURLY RATES	\$ 13,000.00
CD22	41700	8012	CULTURAL/PROGRAM EXP	\$ (6,000.00)
CD22	13000	8012	SALARIES- HOURLY RATES	\$ 6,000.00
CD22	41700	8013	CULTURAL/PROGRAM EXP	\$ (14,800.00)
CD22	13000	8013	SALARIES- HOURLY RATES	\$ 14,800.00
CD22	41700	8024	CULTURAL/PROGRAM EXP	\$ (31,000.00)
CD22	13000	8024	SALARIES- HOURLY RATES	\$ 31,000.00

City staff recommends that City Council set a Public Hearing for the June 14, 2022, Committee of the Whole, for the 2022 Annual Action Plan and amended 2022 CDBG & HOME Program Budgets.

We further request that City Council, at the Regular Legislative Meeting on June 21, 2022 to adopt the amended 2022 CDBG & HOME Program Budgets and authorize the submission of the 2022 Action Plan and Budgets to HUD.

LEGISLATION

RESOLUTION ADOPTING AMENDMENTS TO THE 2022
CDBG AND HOME ANNUAL ACTION PLAN AND
AMENDED BUDGETS.

BE IT RESOLVED by the Council of the City of New Rochelle that after a public hearing held on June 14, 2022 at 7 p.m., this City Council hereby adopts the amended 2022 CDBG and HOME Annual Action Plan and amended budgets, in form on file in the City Clerk's Office; and

BE IT FURTHER RESOLVED that the City Manager is hereby authorized to execute and submit such documentation as may be necessary and required to the U.S. Department of Housing and Urban Development.

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Adam Salgado, Commissioner of Development
DATE: May 10, 2022
SUBJECT: DIRECTING PUBLIC HEARING RE: PROPOSED AMENDMENTS TO 2022
CDBG & HOME ANNUAL ACTION PLAN & BUDGETS - Resolution
directing public hearing relative to amending the 2022 CDBG & HOME Annual
Action Plan and Budgets.

Resolution directing public hearing relative to amending the 2022 CDBG & HOME Annual
Action Plan and amended budgets.

LEGISLATION

RESOLUTION DIRECTING PUBLIC HEARING RELATIVE
TO AMENDING THE 2022 CDBG & HOME ANNUAL
ACTION PLAN AND AMENDED BUDGETS.

BE IT RESOLVED by the Council of the City of New Rochelle that this City Council shall hold a public hearing on June 14, 2022 at 7:00 p.m. in the City Council Chambers, City Hall, 515 North Avenue, New Rochelle, New York relative to amending the 2022 CDBG & HOME Annual Action Plan and amended budgets, in accordance with the regulations issued by the U.S. Department of Housing and Urban Development; and be it further

RESOLVED that the City Clerk is hereby directed to publish notice of such public hearing in the official newspaper of the City of New Rochelle at least ten (10) days prior to the public hearing date.

City of New Rochelle

Development

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Adam Salgado, Commissioner of Development

DATE: May 10, 2022

SUBJECT: PROPOSED AMENDMENT TO CHAPTER 9-99 OF THE CODE OF THE CITY OF NEW ROCHELLE RE: THE ECOLOGY AND NATURAL RESOURCES ADVISORY COMMITTEE - Ordinance amending Article XXVII, Ecology and Natural Resources Advisory Committee, Section 9-99, Committee Established, of the Code of the City of New Rochelle.

Background:

Council established the Ecology and Natural Resources Advisory Committee (ENRAC) in 2019 to advise council and staff on matters relating to the ecological health, beauty and sustainability of New Rochelle's natural environment. The initial legislation called for the committee to include nine members, though this was later amended to increase that figure to fifteen. Most recently, Council merged ENRAC with the Energy Conservation Committee. The combined committees now function as one under ENRAC. Committee members are appointed by the City Manager.

Review:

ENRAC is an excellent resource for a variety of initiatives, and offers the ability to serve as a committee to satisfy requirements for some of these. For example, the committee was recently designated by council to serve as the City's Climate Smart Community Task Force, which will enable to New Rochelle to further its climate change efforts through a state program.

Other initiatives are on the horizon that will require ENRAC's assistance, and it will be important to ensure that the subcommittees that are formed satisfactorily address those that are most vulnerable to climate change and environmental injustice.

Recommendations:

To address the concern noted above, staff recommends that Council amend the code once again as it pertains to ENRAC to increase the allowable membership to eighteen. Further, it is recommended that Council direct the City Manager to fill these new positions with recommendations from African American Advisory Committee, Hispanic American Advisory Committee and the Youth Bureau.

LEGISLATION

ORDINANCE AMENDING ARTICLE XXVII, ECOLOGY AND
NATURAL RESOURCES ADVISORY COMMITTEE,
SECTION 9-99, COMMITTEE ESTABLISHED, OF THE CODE
OF THE CITY OF NEW ROCHELLE.

BE IT ORDAINED by the City of New Rochelle:

Section 1. Article XXVII, Ecology and Natural Resources Committee, Section 9-99, Committee established, is hereby amended as follows:

§ 9-99. Committee established.

This City Council hereby establishes an Advisory Committee on Ecology and Natural Resources consisting of up to [15] 18 members appointed by and serving at the pleasure of the City Manager, including a Chair appointed by and serving at the pleasure of the City Manager.

Matter [bracketed] deleted.

Matter underlined added.

ATTACHMENTS:

1. ENRAC Code Amendment 4-28-22

§ 9-99 Committee established.

This City Council hereby establishes an Advisory Committee on Ecology and Natural Resources consisting of up to ~~15~~ 18 members appointed by and serving at the pleasure of the City Manager, including a Chair appointed by and serving at the pleasure of the City Manager.

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Adam Salgado, Commissioner of Development
DATE: May 10, 2022
SUBJECT: PROPOSED AGREEMENT RE: GREENHOUSE GAS INVENTORY
CONSULTING SERVICES - Resolution accepting the proposal from AKRF
relative to greenhouse gas emissions tracking for 2019 and 2020.

Background:

As part of the implementation of the City's Sustainability Plan, GreeNR, the City's Corporation for Local Development hired AKRF in 2019 to track greenhouse gas (GHG) emissions for 2018. AKRF's report was received and presented to Council in 2020.

Review:

Though the Department of Development has now hired a Sustainability Coordinator that will be trained to track GHGs in the future, it is worthwhile to continue tracking efforts in the meantime. Accordingly, staff requested a proposal from AKRF to extend its previous work to cover 2019 and 2020. AKRF's proposal is attached. The cost estimate for the scope of services is \$12,900.00.

Recommendations:

Staff recommends that Council authorize staff to accept the proposal from AKRF and enter into an agreement for the GHG emissions tracking for 2019 and 2020. This will be funded from account 6989.46000.

LEGISLATION

RESOLUTION ACCEPTING THE PROPOSAL FROM AKRF
RELATIVE TO GREENHOUSE GAS EMISSIONS
TRACKING FOR 2019 AND 2020.

WHEREAS, as part of the implementation of the City's Sustainability Plan, GreeNR, the City's Corporation for Local Development hired AKRF in 2019 to track greenhouse gas (GHG) emissions for 2018; and

WHEREAS, AKRF's report was received and presented to Council in 2020; and

WHEREAS, the Department of Development has now hired a Sustainability Coordinator that will be trained to track GHGs in the future, it is worthwhile to continue tracking efforts in the meantime; and

WHEREAS, staff requested and received a proposal from AKRF to extend its previous work to cover 2019 and 2020; now, therefore

BE IT RESOLVED, that the City Council hereby authorizes staff to accept the proposal from AKRF and enter into an agreement for greenhouse gas emissions tracking for 2019 and 2020.

ATTACHMENTS:

1. GHG Inventory and Tracking_AKRF_Proposal Letter_20220322



Environmental, Planning, and Engineering Consultants

440 Park Avenue South
7th Floor
New York, NY 10016
tel: 212 696-0670
fax: 212 213-3191
www.akrf.com

March 22, 2022

Nicholas Sioufas
City of New Rochelle
515 North Avenue
New Rochelle, NY 10801

Re: **City of New Rochelle – Greenhouse Gas Tracking 2019 and 2020 Update**

Dear Mr. Sioufas:

AKRF, Inc. (“AKRF” or the “Consultant”) is pleased to present this proposal for greenhouse gas (GHG) emission tracking services for the City of New Rochelle (“City” or the “Client”) for the latest two years, 2019 and 2020. This proposal includes the preparation of an update to the 2018 annual GHG inventory prepared for the City. The updated inventory would assist the City in policy decisions to meet emission reduction goals as well as provide healthy environments for residents. Similar to the previous assessment, the results of the inventory, its consistency with the City’s sustainability goals, and a discussion of potential action items to further reduce future emissions will be presented in an annual narrative report .

AKRF has over ten years of experience providing annual GHG emissions inventories at both the regional scale and project-level. Additionally, AKRF prepared the 2018 annual GHG inventory and will be able to use our familiarity with the calculation spreadsheet to efficiently update the emission tracking calculations for the City to track its progress in reducing GHG emissions.

SCOPE OF WORK

TASK 1: STRATEGY PLANNING & DATA COLLECTION

AKRF will conduct a project kick-off meeting with the City to discuss any changes to the analysis methodologies included in the prior inventory calculations in order to verify that all the City’s needs will be met with the updated inventory. Additional meetings will also be conducted by AKRF to review and discuss project status, outstanding deliverables, and findings. This scope assumes attendance for one project kick-off meeting and two additional meetings. These meetings would be conducted virtually.

AKRF will prepare an initial Request for Information (RFI) for the update to the Annual GHG Inventory following the project kick-off meeting. The request will be grouped by the three sectors for analysis: Residential & Commercial Buildings, Transportation, and Residential & Commercial Waste. If any requested information is unavailable, AKRF will perform research to find secondary data sources.

TASK 2: UPDATED ANNUAL GHG INVENTORY

AKRF will prepare two annual emissions GHG inventories for 2019 and 2020 based on the two accounting approaches performed for the 2018 Annual GHG Inventory: a direct approach and a consumption-based approach. The direct approach presents emissions at the location from which they are emitted and allocated to the City of New Rochelle where the activity occurs. The consumption-based approach associates the emissions with the activity or consumption leading to the emissions and allocates them to the location where the consumption activity occurred. For the consumption-based approach, emissions associated with energy production and transport, i.e. energy-cycle emissions, will also be included.

Emissions will be included for the three sectors: Residential & Commercial Buildings, Transportation, and Residential & Commercial Waste. Any additional information identified in the project-kick off meeting will be incorporated into the calculation spreadsheet.

TASK 3: ANNUAL NARRATIVE REPORTS

AKRF will prepare two annual narrative reports to present the results of the annual GHG inventories for both the 2019 and 2020 years. Emissions will be presented from both accounting approaches included in the 2018 report and inventory. The reports will discuss the consistency with the City's sustainability goals specified in the GreenNR Sustainability Plan and any subsequent updates and will include currently planned projects that are anticipated to impact future annual GHG inventories.

TASK 3: CLEARPATH DATA INTEGRATION

AKRF will transfer the GHG emissions information prepared under Task 2 into the ClearPath Tool under the account for the City of New Rochelle. This task will be performed using the final annual GHG emissions inventories for 2019 and 2020.

FEE SCHEDULE

The estimated cost to complete the above Scope of Work is a lump sum total of **\$12,900**, including labor and expenses, as outlined in Table 1.

The specific services that the Consultant shall provide are set forth in the Scope of Work. Compensation for the Consultant's services is in accordance with the Fee Schedule. All such services shall be provided in accordance with the terms and conditions, Appendix A. Work outside of the Scope of Work, including any additional meeting attendance, and would be billed at AKRF's hourly billing rates (see Appendix B) plus direct expenses at 1.10 times the actual cost, with prior authorization from The City of New Rochelle.

Table 1
Cost Estimate

Task	Description	Cost
Task 1	Strategy Planning & Data Collection	\$1,800
Task 2	Updated Annual GHG Inventories (2019 & 2020)	\$6,900
Task 3	Annual Narrative Report	\$2,700
Task 4	ClearPath Data Integration	\$1,500
TOTAL COST		\$12,900

We are looking forward to continuing our work with you on this project. Please feel free to contact me at 646-388-9846/kedwards@akrf.com or Jennifer Franco at 646-761-2493/jfranco@akrf.com if you have any questions or need additional information.

If this proposal is acceptable, please sign in the appropriate signature space and return one executed copy to our offices. .

Sincerely,
AKRF, INC.



Kevin Edwards
Technical Director



Jennifer M. Franco, P.E.
Vice President

ACKNOWLEDGED AND ACCEPTED:

Signature: _____ **Title:** _____
For: _____ **Date:** _____

APPENDIX A STANDARD TERMS AND CONDITIONS

1. Services.

- a. Subject to the terms and conditions hereof, the Client hereby engages the Consultant to perform the Services, furnishing the agreed-upon reports, drawings and/or other work product described in the attached Scope of Work and the Consultant hereby agrees to provide the same. The rendering of Services hereunder is premised on the Consultant receiving full and timely access to the Site and Client's personnel as well as receipt of all information from the Client and its agents relating to the Project as reasonably requested by the Consultant from time to time.
- b. The Services are limited to those tasks specified in the Scope of Work. If the Client directs the Consultant to perform, or instructs the Consultant to undertake, work or provide Deliverables that are beyond those specified in the annexed Scope of Work and/or Services described in the Scope of Work (collectively, "Additional Work"), the Consultant may in its discretion agree to undertake to perform the same, but the Client shall pay compensation for such Additional Work separate from and in addition to the compensation provided for Services herein. In the absence of written agreement to the contrary, all Additional Work provided by the Consultant from time to time relating to the Project shall be provided for compensation on a time and material basis at the Consultant's then current standard hourly rates in effect from time to time, but otherwise upon and subject to the terms and conditions of this Agreement.
- c. The Consultant shall determine the continued adequacy of this Agreement in light of occurrences or discoveries that were not originally contemplated by or known to the Consultant. Should the Consultant call for contract renegotiation, the Consultant shall identify the changed conditions necessitating renegotiation, and the Consultant and the Client shall promptly and in good faith enter into renegotiation of this Agreement. If terms cannot be agreed to, then either party has the absolute right to terminate this Agreement by delivery of ten (10) days prior written notice.
- d. Notwithstanding any other provision of this Agreement or any other agreement entered into by Consultant with respect to the Project, Consultant shall not have control or charge of, and shall not be responsible for, construction means, methods, techniques, sequences or procedures, for safety precautions and programs in connection with work or activities at the project site, for the acts or omissions of any contractor, subcontractors or any other persons performing any work or undertaking any activities at the project site, or for the failure of any of them to carry out any work or perform their activities in accordance with their contractual obligations, including, but not limited to, the requirements of any drawings, specifications or other documents prepared by Consultant.

2. Compensation, Invoicing and Payment.

- a. The Client shall reimburse the Consultant for the expenses incurred of the type, and in the manner, described in the Scope of Work. Invoices shall be submitted by the Consultant monthly, are due upon presentation and shall be paid in full within 30 calendar days after the applicable invoice date. If payment is not received in full on or before the applicable due date then the Consultant shall have the right to charge interest on any unpaid amount from the due date in an amount equal to the lesser of 1-1/2% per month or the maximum amount permitted by applicable law, calculated on a daily basis. Payments will be credited first to interest and then to principal. Consultant shall be entitled to recover any and all costs incurred, including reasonable attorneys' fees ("Collection Costs") in connection with its efforts to collect past due sums. The minimum amount of such Collection Costs is agreed to be the lesser of (1) ten percent (10%) of the past due amount, or (2) the maximum amount allowed by law.
- b. The Client shall pay all taxes, fees, assessments and charges applicable to the Services and any Additional Work and any other pass-through charges (other than taxes imposed upon the net income of the Consultant) including, without limitation, all sales, use, gross receipts, excise, transaction, consumption, Valued Added ("VAT"), Goods and Services ("GST"), utility, message, personal property, intangible tax and any other federal, state and local taxes, fees and charges applicable to the Services and Additional Work provided hereunder, including interest and other charges thereon chargeable by the taxing authorities.

3. Performance Standards.

- a. The Consultant shall use reasonable commercial efforts to render the Services, any Additional Work and all other obligations under this Agreement in accordance with (i) the standard of care and skill ordinarily used by reputable members of the same profession practicing under similar circumstances at the same time and in the same locale and (ii) all applicable codes, regulations, ordinances, and laws in effect as of the date of the execution of this Agreement (collectively, “Laws”). Neither the Consultant’s entering into this Agreement nor any performance hereunder by the Consultant, or any affiliate or subcontractor thereof, or any of their respective officers, directors, owners or employees or agents shall create any fiduciary obligation owed to the Client or any other person or entity. Client or any other person or entity and any such obligation is hereby fully and expressly disclaimed.
- b. EXCEPT AS EXPRESSLY SET FORTH HEREIN, THE CONSULTANT IS MAKING NO EXPRESS OR IMPLIED WARRANTIES, INCLUDING THOSE OF MERCHANTABILITY, ACCURACY OR FITNESS FOR A PARTICULAR PURPOSE, REGARDING THE SERVICES, ADDITIONAL WORK OR ANY DELIVERABLES.
- c. The Consultant shall not be responsible for the acts or omissions of any subcontractor, supplier or other personnel based on interpretations or clarifications of the Project or the Services or Additional Work to be rendered hereunder by the Client without confirmation thereof by the Consultant.
- d. In the event of an emergency affecting the health or safety of persons or property, the Consultant may act, in its reasonable discretion, to prevent threatened damage, injury or loss to person or property notwithstanding that it may be outside the scope of the Services or Additional Work or not approved in advance by the Client.

4. Indemnification.

- a. The Consultant agrees, to the fullest extent permitted by law, to indemnify and hold the Client, its subsidiaries and affiliates and their respective officers, directors, employees, owners, subcontractors and agents (collectively, the “Client Parties”) harmless from any damage, liability, or cost (including reasonable attorneys’ fees and costs of defense) to the extent caused by the Consultant’s negligence. The indemnification obligation created by this Paragraph is subject in every respect to the limitation of liability provisions in Paragraph 5 of this Agreement.
- b. The Client agrees, to the fullest extent permitted by law, to indemnify and hold the Consultant, its subsidiaries and affiliates and their respective officers, directors, employees, owners, subcontractors and agents (collectively, the “Consultant Parties”) harmless from any damage, liability, or cost (including reasonable attorneys’ fees and costs of defense) to the extent: caused by the Client’s negligence, or arising from or attributable to the failure of the Client to timely and/or properly implement or adhere to recommendations, designs, specifications, work plans or other items specifying or outlining the construction and/or implementation of future work beyond the Scope of Work, Services or Additional Work provided by Consultant in Deliverables.
- c. As a condition precedent to claiming any indemnification hereunder, the applicable indemnified party (i) shall promptly provide the applicable indemnifying party with written notice of any claim sufficiently promptly and in sufficient detail to avoid prejudicing the defense of such claim; (ii) shall not settle or compromise any such claim without the indemnifying party’s written consent, which shall not be unreasonably withheld or delayed; and (iii) shall promptly provide reasonable cooperation relating to defending such claim. The indemnified party may, at its own expense, assist in the defense if it so chooses, but shall not be permitted to control such defense or any negotiations relating to the settlement of any such claim so long as the party responsible for indemnification hereunder is actively defending such claim. Notwithstanding clause (ii) above, if the party responsible for indemnification hereunder refuses or fails to timely defend the claim or abandons such defense, the indemnified party (parties) may settle such claim without the prior consent of the indemnifying party and the indemnifying party shall remain fully liable to indemnify the indemnified party (parties) to the extent that the indemnified party (parties) are otherwise entitled to indemnification for such claim under this Section 4.

- d. No party shall be liable for any claim or cause of action seeking indemnification of any kind under this Section 4, regardless of the type or nature of the damage, liability, claim or cause of action for which indemnification is sought (the “Underlying Claim”), if such indemnification action or claim is brought or asserted more than three years after the Underlying Claim accrued.
- e. NOTWITHSTANDING ANYTHING TO THE CONTRARY SET FORTH IN THIS AGREEMENT OR IN ANY DOCUMENT SIGNED BETWEEN THE PARTIES REGARDING THE SUBJECT MATTER OF THIS AGREEMENT, EITHER PRIOR OR SUBSEQUENT TO THIS AGREEMENT, OR PROVIDED UNDER APPLICABLE LAW, NEITHER PARTY, OR ANY OFFICER, DIRECTOR, OWNER, EMPLOYEE, SHAREHOLDER OR AGENT THEREOF, SHALL BE LIABLE TO THE OTHER, EITHER IN CONTRACT OR IN TORT, FOR ANY LOSS OR INACCURACY OF DATA OR MATERIAL OR FOR ANY CONSEQUENTIAL, INCIDENTAL, INDIRECT, SPECIAL OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION ANY DELAY DAMAGES, LOSS OF FUTURE REVENUE, INCOME OR PROFITS, OR ANY DIMINUTION OF VALUE, FINANCING COSTS, OR COST OF LOST OPPORTUNITIES, RELATING TO THIS AGREEMENT, EVEN IF THE SAME HAS BEEN SPECIFICALLY ADVISED OF THE POSSIBILITIES OF SUCH DAMAGES, EXCEPT TO THE EXTENT THAT ANY SUCH DAMAGES ARE PAYABLE BY ONE OF THE PARTIES HERETO TO A THIRD PARTY AND THE CLAIM IS ONE FOR WHICH THE PARTY REQUIRED (WHETHER BY JUDGMENT, SETTLEMENT OR OTHERWISE) TO PAY SUCH DAMAGES IS ENTITLED TO INDEMNIFICATION UNDER THIS SECTION 4.

5. Limitation of Liability.

In recognition of the relative risks and benefits of the Project to both the Client and the Consultant, the risks have been allocated such that the Client agrees, to the fullest extent permitted by law, to limit the liability of the Consultant Parties hereunder to the Client Parties and to all construction contractors, subcontractors on the Project and others under the Client’s control for any and all claims, suits, demands, judgments, payments, losses, costs, damages of any nature whatsoever, or expenses from any cause or causes, regardless of the nature or type of action, so that the total aggregate liability of the Consultant Parties shall be limited to and in no event exceed the compensation actually paid to Consultant for services rendered on this Project under this Agreement, or \$100,000, whichever is greater.

6. Suspension of Services or Additional Work.

If the Project is suspended for more than 30 calendar days in the aggregate (whether consecutive or non-consecutive), the Consultant shall be compensated for all Services and any Additional Work performed and charges incurred prior to receipt of notice to suspend and, if and when the Consultant resumes providing Services and/or Additional Work, a mutually agreed upon equitable adjustment in fees payable to the Consultant shall be made to accommodate the resulting demobilization and remobilization costs. In addition, there shall be a mutually agreed upon equitable adjustment in any applicable performance schedule relating to the Project based on the delay caused by the suspension.

7. Term.

Unless terminated earlier in accordance with Section 8 hereof, this Agreement shall have a term commencing on the date of this Agreement and ending, unless terminated earlier as provided herein, when the Services and any Additional Work relating to the Project are completed or as otherwise set forth in the Scope of Work.

8. Termination.

- a. Either party may terminate this Agreement by delivery of written notice to the other (i) if the other party commits a material breach of this Agreement and fails to remedy such breach within 30 days after receipt of written notice specifying the alleged breach in reasonable detail, (ii) if either party makes an assignment for the benefit of its creditors, or the filing by or against it of a voluntary or involuntary petition under any bankruptcy or insolvency law, under the reorganization or arrangement provisions of the United States Bankruptcy Code, or under the provisions of any law of like import, or the appointment of a trustee or receiver for such party or its property, or (iii) as provided by Section 1(c) hereof.
- b. If full payment is not received by the Consultant by the applicable due date, then the Consultant may, at its sole discretion and without liability to any Consultant Parties, terminate this Agreement or suspend any Services or Additional Work to be performed hereunder upon 10 days prior written notice. If the Project is

suspended for any reason for more than 60 calendar days in the aggregate (whether consecutive or non-consecutive), the Consultant may, at its discretion and without liability, terminate this Agreement.

- c. The termination of this Agreement by either party hereto shall not affect, restrict, diminish or remove any rights, obligations or remedies possessed by either party arising under the terms of this Agreement up to and through the effective date of termination hereof. In addition, the following provisions shall survive termination of this Agreement: Sections 4, 5 and 10 through 20, inclusive. The remedies available to each party hereunder are cumulative and termination of this Agreement shall be in addition to and not in lieu of any equitable remedies available.
- d. Upon termination the Consultant shall be paid in full in accordance with the terms of this Agreement for all Services and Additional Work rendered and reimbursable expenses incurred through the date of termination, including reasonable termination costs.

9. Force Majeure.

Except as provided in Section 6 or 7 hereof, neither party shall be liable for damages for any delay or failure to perform its obligations hereunder, if such delay or failure is due to reasons beyond the control of the concerned party or without its fault or negligence, including without limitation, strikes, riots, wars, terrorism, fires, epidemics, quarantine restrictions, unusually severe weather, earthquakes, explosions, acts of God or state or any public enemy or acts mandated by applicable laws, regulation or order, whether valid or invalid, of any governmental body.

10. Non-Solicitation.

Each party agrees that during the term of this Agreement and for one year thereafter it will not solicit, or attempt to solicit, for hire or engagement, directly or indirectly any of the other party's employees or other personnel who have been involved in the provision of Services or Additional Work under this Agreement or otherwise involved in the transactions contemplated hereby.

11. Assignment.

Neither party shall assign its rights, duties or obligations under this Agreement to any person or entity, in whole or in part, without the prior written consent of the other party hereto; provided, however, that either party may assign this Agreement in the event of a merger or consolidation or the sale of all or substantially all of its applicable line of business and Consultant may delegate any of its duties and obligations hereunder if it remains responsible for the performance thereof.

12. Independent Contractor.

Notwithstanding any other provision of this Agreement, Consultant's status shall be that of an independent contractor and not that of a servant, agent, or employee of the Client. Neither party shall hold itself out as, nor claim to be, acting in the capacity of an officer, servant, agent, or employee of the other or that it is authorized to contractually bind the other in any way. The Consultant shall be free to choose the manner in which it performs the Services and Additional Work and furnishes the Deliverables and may delegate and use subcontractors, consultants and suppliers of its choice in satisfying any of its duties and obligations hereunder, provided that the Consultant shall be responsible for any breach of this Agreement by the same.

13. Governing Law; Consent to Jurisdiction.

The rights and obligations of the parties hereunder shall be governed by the laws of the State of New York, without regard to principles of conflicts of laws. Each of the parties hereby (a) irrevocably agrees that any legal or equitable action or proceeding arising under or in connection with this Agreement shall be brought exclusively in the courts of the State of New York in the County of New York and the United States District Court for the Southern District of New York, except that the foregoing venue shall be non-exclusive with respect to any application for injunctive relief pursuant to Section 18 hereof, (b) accepts for itself and in respect of its property, generally and unconditionally, the jurisdiction of the aforesaid courts and appellate courts thereof, (c) waives personal service of any summons, complaint or other process, and agrees that the service thereof may be made either (i) in the manner for giving of notices provided for in this Agreement or (ii) in any other manner permitted by law. The parties agree that this Agreement was negotiated and shall not be construed against the party which initially drafted the same.

14. Severability.

If any term or provision of this Agreement shall to any extent be determined to be illegal, invalid or unenforceable under law, regulations or ordinances of any federal, state or local governments to which this agreement is subject, such term or provision shall be deemed severed from this Agreement and the remaining terms and provisions shall remain unaffected thereby.

15. Third Party Claims.

Nothing in this Agreement shall create or shall give to third parties any claim or right of action against the Consultant, its officers, directors, owners, employees and agents.

16. Notices.

All notices required or permitted by this Agreement shall be in writing and shall be delivered personally, by certified or registered mail, return receipt requested, or nationally recognized overnight courier service to the respective addresses set forth above. Either party may, by notice given in the same manner set forth above, designate a different address or addresses to which subsequent notices shall be sent. Notice shall be deemed given upon receipt.

17. Amendment; Waiver.

- a. This Agreement may only be modified or amended by a writing that is signed by both authorized parties.
- b. Any right of any party hereunder may only be waived by a writing that is signed by the authorized party granting the waiver. No course of dealing or trade usage or custom and no course of performance shall be deemed a waiver of any right.
- c. The failure by either party to insist upon strict performance of any of the provisions of this Agreement will in no way constitute a waiver of its rights as set forth in this Agreement, at law or in equity, or a waiver of any other provisions or subsequent default by the other party in the performance or compliance with any of the terms and conditions set forth in this Agreement.

18. Injunctive Relief.

The parties agree that the violation or threatened violation by either party of any of the provisions of Section 10 of this Agreement shall cause immediate and irreparable harm to the other party. In the event of any breach or threatened breach of any of said provisions, each party consents to the entry of preliminary and permanent injunctions by a court of competent jurisdiction prohibiting such party from any violation or threatened violation of such provisions and compelling such party to comply with such provisions, without the requirement of posting any bond. This Section shall not affect nor limit, and any injunctive relief granted pursuant to this Section shall be in addition to, any other remedies available to the other party at law or in equity for any such violation or threatened violation by either party.

19. Entire Agreement.

This Agreement, including any Scope of Work, and any written agreements relating to Additional Work represents the entire Agreement between the parties concerning the subject matter hereof. This Agreement supersedes any other written or oral proposal, representation, communication, letter of intent or other agreement by or on behalf of the parties hereto relating to the subject matter hereof.

20. Counterparts.

This Agreement may be executed by facsimile and in one or more counterparts, each of which shall be deemed an origin.

APPENDIX B

AKRF Hourly Rate Schedule	
Employee Category	Hourly Rate
Senior Officer	\$225
Officer	\$225
Senior Technical Director	\$220
Technical Director	\$205
Senior Professional	\$185
Professional II	\$150
Professional I	\$140
Technical II	\$130
Technical I	\$105
Notes: Out of pocket expenses will be billed at 1.10 times actual cost. These rates are effective through December 31, 2022.	

City of New Rochelle
Development

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Adam Salgado, Commissioner of Development

DATE: May 10, 2022

SUBJECT: PROPOSED HOME RULE REQUEST RE: STATE ALIENATION OF LAND, HOME FOR THE NEW ROCHELLE ARMORY - Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S8986 and Assembly Bill No. A10145, as proposed in Legislative Bills S7184 and A8014, in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.

In 2021, the City Council adopted a Home Rule Resolution pertaining to the State Alienation of parkland for the New Rochelle Armory. At this time, it has been proposed that revisions to the former bills (S.7184/A.8014, enacted as Ch. 799 of the Laws of 2021) amending language in Section 1, Paragraph (b) stating that if the conveyance is breached by the City, title to the land reverts back to the State be included. Further, in Sections 4, 5, 6, and 9, outlining revisions to language that releases a 20-foot-wide easement, adds fair market value language, land will be discontinued and alienated as waterfront...”, and the City must apply for and obtain a grant of lands formerly underwater which are described in the Bills. The chapter amendment also makes technical corrections to the metes and bounds descriptions in Sections 6 and 9 of the original bills.

Recommendation:

It is recommended by the Department of Development that the City Council issue a resolution authorizing a Chapter amendment to Ch. 799, Laws of 2021 (S.7184/A8014) containing technical corrections, as reflected in the attached bill draft and authorize the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. ____ and Assembly Bill No. ____ (bill numbers forthcoming).

LEGISLATION

RESOLUTION AUTHORIZING THE APPROPRIATE OFFICER(S) OF THE CITY OF NEW ROCHELLE TO SIGN A HOME RULE REQUEST FOR THE ENACTMENT OF SENATE BILL NO. S8986 AND ASSEMBLY BILL NO. A10145, AS PROPOSED IN LEGISLATIVE BILLS S7184 AND A8014, IN RELATION TO AUTHORIZING THE CITY OF NEW ROCHELLE, COUNTY OF WESTCHESTER TO SELL, CONVEY AND ALIENATE CERTAIN LAND IN FURTHERANCE OF AN ECONOMIC DEVELOPMENT INTEREST OF THE STATE AND/OR CITY OF NEW ROCHELLE.

BE IT RESOLVED by the Council of the City of New Rochelle, that this City Council hereby authorizes the appropriate City Officer(s) to sign a Home Rule Request for enactment of Senate Bill No. S8986 and Assembly Bill No. A10145, as proposed in Legislative bills S7184 and A8014 in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.

ATTACHMENTS:

1. S8986
2. A10145



Legislative Recap

SB 8986

05-03-2022 - 12:14:30

- Bill Summary -

Summary not available.

- Bill History -

House	Description of Action	Date	Stat
S	Introduced and referred to committee on Senate Local Government	5- 3-22	7%

- End of History -

- Bill Memo -

Memorandum not available.

- Bill Text -

STATE OF NEW YORK

8986

IN SENATE

May 3, 2022

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government

AN ACT to amend a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, in relation to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1- 1 Section 1. Paragraph (b) of section 2 of a chapter of the laws of 2021
1- 2 relating to authorizing the city of New Rochelle, county of Westchester
1- 3 to sell, convey and alienate certain land, in furtherance of an economic
1- 4 development interest of the state and/or city of New Rochelle, as
1- 5 proposed in legislative bills numbers S. 7184 and A. 8014, is amended to
1- 6 read as follows:

1- 7 (b) any such deed transferring the parcel described in section four of
1- 8 this act provides (i) for the preservation of the Armory Building,
1- 9 including the annex, and (ii) a dedicated space for veterans organiza-
1-10 tion use at no charge or a de minimis rental amount as approved by the
1-11 city council. Such deed or other document of conveyance shall provide
1-12 that in the event of a breach of the conditions in this paragraph, title
1-13 to the land transferred to the city of New Rochelle by section four of
1-14 this act shall revert to the state of New York.

1-15 § 2. Sections 4, 5, 6 and 9 of a chapter of the laws of 2021 relating
1-16 to authorizing the city of New Rochelle, county of Westchester to sell,
1-17 convey and alienate certain land, in furtherance of an economic develop-
1-18 ment interest of the state and/or city of New Rochelle, as proposed in
1-19 legislative bills numbers S. 7184 and A. 8014, are amended to read as
1-20 follows:

1-21 § 4. The parklands authorized by section one of this act to be discon-
1-22 tinued as parklands in the letters patent dated July 24, 1997, recorded

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11516-11-2

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2

Attachment: S8986 (2553 : PROPOSED LEGISLATION REGARDING A STATE ALIENATION HOME RULE REQUEST)

in the Westchester County Clerk's office at Liber 11802, Page 272 on September 3, 1997 are described as follows:

ALL THAT CERTAIN PIECE OR PARCEL OF LAND situate in the City of New Rochelle, County of Westchester, and State of New York, being further described as follows:

BEGINNING at a point on the southerly side of East Main Street at its intersection with the division line between the lands of the People of the State of New York, on the east, and lands now or formerly of Anthony Petro, on the west, said point being distant S. 29 51' W., 304.28 feet from New Rochelle City Monument No. 4 which is located at the northwesterly corner of the intersection of Pratt and Huguenot Streets; thence N. 52 02' 34 E., along the southerly bounds of East Main Street, 200 feet to a point in the westerly bounds of lands, now or formerly, owned by the city of New Rochelle, said point being distance S. 02 32' 30" E., 141.02 feet from the aforesaid Monument No. 4; thence S. 43 23' 32" E., along the westerly bounds of said lands of the City of New Rochelle, 635 feet to a point in the original high water line of New Rochelle Harbor (formerly called Snuff Mill Pond); thence S 52 02' 34" W., generally along said high water line, 200 feet to a point at the southeast corner of lands, now or formerly, of the Colonial Sand and Stone Company, Inc.; thence N. 43 23' 32" W., along the easterly bounds of said lands of the Colonial Sand and Stone Company, Inc., 327.55 feet to a point; thence N. 52 28' 17" W., continuing along the easterly bounds of said lands of Colonial Sand and Stone Company, Inc., 57.92 feet to a point in the southerly bounds of lands, now or formerly, of Harvey A. Turnure (designated as Lot 45); thence N. 52 02' 34" E., along the southerly bounds of said lands of Turnure, 9.18 feet to a point; thence N. 43 23' 32" W., along the easterly bounds of lands of said Turnure and then continuing along the easterly bounds of the aforesaid lands of Anthony Petro, 251.12 feet to the point and place of beginning, containing 2.908 acres of land, more or less. Furthermore, the state of New York shall release the 20-foot-wide easement previously reserved in such letters patent.

§ 5. In the event that the fair market value of the parklands to be dedicated by the city of New Rochelle pursuant to section nine of this act are not equal to or greater than the fair market value of the parkland to be discontinued in section four of this act, the city of New Rochelle shall dedicate the difference of the fair market value of the lands to be alienated and the lands to be dedicated for the acquisition of additional parklands and/or for capital improvements to existing park and recreational facilities.

§ 6. The waterfront lands authorized by section three of this act to be discontinued and alienated as waterfront are described as follows:

Parcel A:

All that certain piece or parcel of land situate, lying and being in the City of New Rochelle, County of Westchester and State of New York and being bounded and described as follows:

~~[BEGINNING at a point on the northerly line of Huntington Place (35 feet wide) and also being the southerly line of lands now or formerly owned by Bridge Management Corporation, said point being 537.37 feet distant from the easterly line of Evans Street along the northerly line of Huntington Place, and also being southerly from a concrete monument "New Rochelle City Monument #4" near the westerly line of Pratt Street and the northerly line of Main Street, a course of South 02°30'02" West, a distance of 482.73 feet and running thence; easterly along a fence and along the division line between lands now or formerly owned by the City]~~

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~~[of New Rochelle and lands now or formerly owned by Bridge Management Corporation, a course of North 51°36'37" East, a distance of 58.07 feet to a point on the westerly line of lands now or formerly owned by the City of New Rochelle; thence running southerly along said division line and portions of a concrete wall, a course of South 43°49'29" East, a distance of 404.21 feet to a point in the waters of Echo Bay being on lands owned by the State of New York; thence 43°49'29" East, a distance of 147.72 feet to a point in the waters of Echo Bay; thence running through the waters of Echo Bay the following three courses:]~~

~~[Westerly along previously said division line, a course of South 60°32'31" West, a distance of 135.71 feet to a point at the southeasterly corner of lands now or formerly owned by Jonel Development Corporation; thence northerly along previously said division line, a course of North 29°27'29" West, a distance of 10.00 feet to a point; thence westerly along previously said division line, a course of South 60°32'31" West, a distance of 126.77 feet to a point; thence running northerly along previously said division line and along a fence, a course of North 35°33'35" West, a distance of 207.18 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place, a course of North 51°36'37" East, a distance of 326.97 feet to a point; thence running northerly, a course of North 38°23'27" West, a distance of 35.00 feet to the point and place of beginning. Encompassing an area of 101,824 square feet or 2.33756 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence S 03°08'12" E, a distance of 446.88 feet to the southeast corner of lands now or formerly of Bridge Management Corp.; thence S 43°49'29" E, through lands of the City of New Rochelle, a distance of 116.14 feet to the Point or Place of Beginning; thence through lands of the City of New Rochelle the following five (5) courses and distances: (1) S 43°49'29" E, a distance of 176.59 feet to a point; (2) Along a non-tangent curve to the right having a radius of 169.34 feet, an arc length of 143.58 feet, a central angle of 48°34'46" and being subtended by a chord with a bearing N 62°00'15" W, a distance of 139.31 feet to a point; (3) N 37°42'52" W, a distance of 35.96 feet to a point; (4) N 32°10'08" W, a distance of 16.31 feet to a point; and (5) N 57°49'43" E, a distance of 37.11 feet to the Point or Place of Beginning. Containing 0.1432 acres of land, more or less.

Parcel B:

All that certain piece or parcel of land situate, lying and being in the City of New Rochelle, County of Westchester and State of New York and being bounded and described as follows:

~~[BEGINNING at a point on the southerly line of Main Street (variable width) and the division line of lands now or formerly owned by Serita Holding Corporation and lands now or formerly owned by the City of New Rochelle, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, and also being easterly from a concrete monument "New Rochelle City Monument #4" near the westerly line of Pratt Street and the northerly line of Main Street, a course of North 68°34'21" East, a distance of 391.24 feet and running thence;]~~

~~[Running Easterly along the division line of lands now or formerly owned by Serita Holding Corporation and lands owned by the State of New York, a course of South 50°05'59" East, a distance of 98.35 feet to a point;]~~

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~~[thence continuing Easterly along said division line, a course of South 45°42'59" East, a distance of 0.15 feet to a point;]~~

~~[thence running Northerly along said division line into the waters of Echo Bay, a course of North 20°09'01" East, a distance of 4.07 feet to a point;]~~

~~[thence running through the waters of Echo Bay and lands owned by the State of New York the following eight courses:]~~

~~[Easterly, a course of South 49°53'15" East, a distance of 148.40 feet to a point;]~~

~~[thence southerly, a course of South 31°32'25" East, a distance of 44.22 feet to a point;]~~

~~[thence southerly, a course of South 01°01'42" East, a distance of 154.33 feet to a point;]~~

~~[thence southerly, a course of South 04°45'45" West, a distance of 105.62 feet to a point;]~~

~~[thence southerly, a course of South 08°22'49" West, a distance of 67.94 feet to a point;]~~

~~[thence southerly, a course of South 22°43'00" West, a distance of 65.54 feet to a point;]~~

~~[thence westerly, a course of South 55°09'04" West, a distance of 152.09 feet to a point;]~~

~~[thence westerly, a course of South 59°23'37" West, a distance of 23.27 feet to a point at the prolongation of the division line of lands now or formerly owned by the City of New Rochelle;]~~

~~[thence running Northerly along a fence and along the division line of lands now or formerly owned by the City of New Rochelle, a course of North 43°49'29" West, a distance of 689.19 feet to a point on the southerly line of Main Street, also known as U.S. 1;]~~

~~[thence running Easterly along the southerly line of Main Street, a course of North 51°30'41" East, a distance of 455.94 feet to the POINT or PLACE of BEGINNING.]~~

~~[Encompassing an area of 289,962 square feet or 6.65661 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence N 68°34'21" E a distance of 391.24 feet to the Point or Place of Beginning, being on the southeasterly line of Main Street; thence S 51°30'41" W along said southeasterly line a distance of 455.94 feet to a point; thence S 43°49'29" E through lands of the City of New Rochelle a distance of 615.00 feet to a point on the original shoreline of Echo Bay; thence along said original shoreline the following eight (8) courses and distances 1) N 49°36'55" E a distance of 127.74 feet to a point, 2) N 11°03'05" W a distance of 200.00 feet to a point, 3) N 49°51'55" E a distance of 98.00 feet to a point, 4) N 18°08'05" W a distance of 118.00 feet to a point, 5) N 69°53'05" W a distance of 50.00 feet to a point, 6) N 16°21'55" E a distance of 46.00 feet to a point, 7) N 62°33'14" W a distance of 86.36 feet to a point, and 8) N 28°10'53" E a distance of 79.00 feet to a point on the division line between lands now or formerly of Serita Holding Corporation on the northeast and lands of the City of New Rochelle on the southwest; thence N 42°12'49" W a distance of 138.15 feet to the point or place of beginning. Containing 4.73 acres of land, more or less.

Parcel C:

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence N 68°34'21" E, a distance of 391.24 feet to a point, being on the south-

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easterly line of Main Street at its intersection with the division line between lands now or formerly owned by Serita Holding Corporation on the northeast and lands now or formerly owned by the City of New Rochelle on the southwest; thence S 42°12'49" E, along said division line a distance of 138.15 feet to the most westerly corner of lands underwater granted to Bose & Parker, Inc. on December 20, 1945 and recorded in Letters Patent Book 71, Page 312, being located along the former high water line of Echo Bay; thence S 28°10'53" W, along the former high water line of Echo Bay, a distance of 29.59 feet to the Point or Place of Beginning; thence through filled in lands under the waters of Echo Bay, the following seventeen (17) courses and distances:

1) along a non-tangent curve to the left having a radius of 222.00 feet, an arc length of 53.22 feet, a central angle of 13°44'10" a chord of S 31°38'01" E, a distance of 53.10 feet to a point;

2) S 38°30'06" East, a distance of 89.78 feet to a point;

3) N 51°31'15" E, a distance of 10.00 feet to a point;

4) S 38°30'04" E, a distance of 17.33 feet to a point;

5) along a curve to the right having a radius of 138.00 feet, an arc length of 43.36 feet, a central angle of 18°00'05" a chord of S 29°30'02" E, a distance of 43.18 feet to a point;

6) S 20°29'59" E, a distance of 26.50 feet to a point;

7) S 18°21'03" E, a distance of 42.81 feet to a point;

8) S 14°03'45" E, a distance of 6.53 feet to a point;

9) along a non-tangent curve to the right having a radius of 3.00 feet, an arc length of 4.74 feet, a central angle of 90°33'36" a chord of S 31°49'17" W, a distance of 4.26 feet to a point;

10) S 77°06'05" W, a distance of 4.99 feet to a point;

11) along a non-tangent curve to the right having a radius of 302.00 feet, an arc length of 209.00 feet, a central angle of 39°39'07" a chord of S 06°55'38" W, a distance of 204.85 feet to a point;

12) S 63°14'49" E, a distance of 4.98 feet to a point;

13) along a non-tangent curve to the right having a radius of 3.00 feet, an arc length of 4.75 feet, a central angle of 90°41'40" a chord of S 17°53'59" E, a distance of 4.27 feet to a point;

14) along a non-tangent curve to the right having a radius of 210.00 feet, an arc length of 14.99 feet, a central angle of 04°05'23" a chord of S 29°29'33" W, a distance of 14.99 feet to a point;

15) along a non-tangent curve to the right having a radius of 5.00 feet, an arc length of 7.98 feet, a central angle of 91°23'51" a chord of S 77°14'10" W, a distance of 7.16 feet to a point;

16) S 38°50'47" W, a distance of 28.95 feet to a point; and

17) along a non-tangent curve to the right having a radius of 204.00 feet, an arc length of 10.15 feet, and a central angle of 02°51'07" a chord of S 42°28'34" W, a distance of 10.15 feet to a point on the original high water line of Echo Bay;

thence along said former high water line the following seven (7) courses and distances:

1) N 11°03'05" W, a distance of 174.49 feet to a point;

2) N 49°51'55" E, a distance of 98.00 feet to a point;

3) N 18°08'05" W, a distance of 118.00 feet to a point;

4) N 69°53'05" W, a distance of 50.00 feet to a point;

5) N 16°21'55" E, a distance of 46.00 feet to a point;

6) N 62°33'14" W, a distance of 86.36 feet to a point; and

7) N 28°10'53" E, a distance of 49.41 feet to the Point or Place of Beginning.

Containing 0.508 acre of land, more or less.

§ 9. The lands to be dedicated as parkland by the city of New Rochelle pursuant to subdivision (a) of section two of this act, after applying for and obtaining a grant of lands owned by the state of New York formerly under the waters of Echo Bay., are described as follows:

All that certain piece or parcel of land situate, lying and being in the city of New Rochelle, county of Westchester and state of New York and being bounded and described as follows:

~~[COMMENCING at a point on the southerly line of Main Street (variable width) and the division line of lands now or formerly owned by Serita Holding Corporation and lands now or formerly owned by the city of New Rochelle, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, and also being easterly from a concrete monument "New Rochelle City Monument #4" near the westerly line of Pratt Street and the northerly line of Main Street, a course of North 68°34'21" East, a distance of 391.24 feet and running the following two courses:]~~

~~[Southerly along said division line, a course of South 42°12'49" East, a distance of 138.15 feet to a point; thence continuing southerly along said division line, a course of South 50°05'59" East, a distance of 39.09 feet to a point, being the POINT or PLACE of BEGINNING, as shown on a certain map entitled "State of New York Office of General Services, Park Area Land Grant in the Application of City of New Rochelle for a Grant of Lands Under the Waters of Echo Bay, Situate in the City of New Rochelle, County of Westchester, State of New York", prepared by Langan Engineering, Environmental, Surveying, Landscape Architecture and Geology, DPC, dated May 19, 2021; thence running easterly along the division line of lands now or formerly owned by Serita Holding Corporation and lands owned by the State of New York, a course of South 50°05'59" East, a distance of 59.26 feet to a point; thence continuing easterly along said division line, a course of South 45°42'59" East, a distance of 0.15 feet to a point; thence running northerly along said division line into the waters of Echo Bay, a course of North 20°09'01" East, a distance of 4.07 feet to a point; thence running through the waters of Echo Bay and land owned by the State of New York the following twenty courses:]~~

~~[Easterly, a course of South 49°53'15" East, a distance of 148.40 feet to a point; thence southerly, a course of South 31°32'25" East, a distance of 44.22 feet to a point; thence southerly, a course of South 01°01'42" East, a distance of 154.33 feet to a point; thence southerly, a course of South 04°45'45" West, a distance of 105.62 feet to a point; thence southerly, a course of South 08°22'49" West, a distance of 67.94 feet to a point; thence southerly, a course of South 22°43'00" West, a distance of 65.54 feet to a point; thence westerly, a course of South 55°09'04" West, a distance of 152.09 feet to a point; thence westerly, a course of South 59°23'37" West, a distance of 70.76 feet to a point; thence northerly, a course of North 34°54'45" West, a distance of 24.51 feet to a point; thence westerly, a course of South 51°31'11" West, a distance of 151.00 feet to a point; thence westerly along a portion of a wall, a course of South 76°11'06" West, a distance of 39.67 feet to a point; thence westerly along a wall, a course of South 81°48'28" West, a distance of 47.46 feet to a point; thence westerly along a wall, a course of North 85°25'57" West, a distance of 46.20 feet to a point; thence westerly along a wall, a course of North 78°58'50" West, a distance of 22.92 feet to a point; thence westerly along a wall, a course of North 65°46'48" West, a distance of 21.49 feet to a point; thence westerly along a wall, a course of North 58°15'30" West, a distance of 22.49 feet to a point; thence northerly along a wall, a~~

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~~[course of North 34°36'11" West, a distance of 44.08 feet to a point; thence northerly along a wall, a course of North 41°07'25" West, a distance of 88.45 feet to a point; thence westerly along a portion of a wall, a course of South 49°31'51" West, a distance of 51.82 feet to a point on the easterly line of lands now or formerly owned by City of New Rochelle; thence running along the water's edge through the lands now or formerly owned by the City of New Rochelle the following six courses:]~~

~~[Westerly a course of South 49°31'51" West, a distance of 113.64 feet to a point; thence southerly a course of South 29°17'12" East, a distance of 16.95 feet to a point; thence westerly a course of South 47°38'55" West, a distance of 24.95 feet to a point; thence westerly a course of South 57°50'50" West, a distance of 56.29 feet to a point; thence southerly a course of South 16°34'44" West, a distance of 17.88 feet to a point; thence westerly a course of South 53°14'05" West, a distance of 28.55 feet to a point on the easterly division line of lands now or formerly owned by Jonel Development Corp.; thence running northerly along said division line and along a fence, a course of North 35°33'35" West, a distance of 136.58 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place a course of North 51°36'37" East, a distance of 326.97 feet to a point on the westerly intersection of lands now or formerly owned by the City of New Rochelle and the southerly line of Huntington Place; thence running through the lands now or formerly owned by the city of New Rochelle the following eighteen courses:]~~

~~[Southerly a course of South 38°23'27" East, a distance of 0.43 feet to a point; thence southerly along a curve to the left having an arc length of 26.37 feet, a radius of 35.50 feet, and a central angle of 42°33'21" and being subtended by a chord which bears South 35°09'51" West, a distance of 25.77 feet; thence southerly with a compound curve to the left having an arc length of 55.76 feet, a radius of 35.50 feet, and a central angle of 90°00'00" and being subtended by a chord which bears South 31°06'50" East, a distance of 50.20 feet; thence easterly a course of South 76°06'50" East, a distance of 8.74 feet to a point; thence easterly along a curve to the left having an arc length of 62.49 feet, a radius of 45.50 feet, and a central angle of 78°41'06" and being subtended by a chord which bears North 64°32'37" East, a distance of 57.69 feet; thence northerly with a reverse curve to the right having an arc length of 1.84 feet, a radius of 24.50 feet, and a central angle of 04°17'34" and being subtended by a chord which bears North 27°20'51" East, a distance of 1.84 feet; thence southerly a course of South 32°10'08" East, a distance of 16.31 feet to a point; thence southerly a course of South 37°42'52" East, a distance of 35.96 feet to a point; thence easterly along a curve to the left having an arc length of 222.47 feet, a radius of 169.34 feet, and a central angle of 75°16'24" and being subtended by a chord which bears South 75°21'04" East, a distance of 206.81 feet; thence easterly a course of North 51°29'31" East, a distance of 110.44 feet to a point; thence southerly a course of South 36°14'53" East, a distance of 38.30 feet to a point; thence easterly a course of North 52°11'12" East, a distance of 138.84 feet to a point; thence northerly along a curve to the left having an arc length of 103.38 feet, a radius of 235.50 feet, and a central angle of 25°09'09" and being subtended by a chord which bears North 39°36'37" East, a distance of 102.55 feet; thence northerly with a compound curve to the left having an arc length of 278.34 feet, a radius of 335.50 feet, and a central angle of 47°32'02" and being subtended by a chord which bears]~~

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~~[North 03°16'02" East, a distance of 270.43 feet; thence northerly a course of North 20°29'59" West, a distance of 50.40 feet to a point; thence northerly along a curve to the left having an arc length of 52.00 feet, a radius of 165.50 feet, and a central angle of 18°00'07" and being subtended by a chord which bears North 29°30'03" West, a distance of 51.79 feet; thence northerly a course of North 38°30'06" West, a distance of 94.49 feet to a point; thence northerly along a curve to the right having an arc length of 26.22 feet, a radius of 182.50 feet, and a central angle of 08°13'55" and being subtended by a chord which bears North 34°23'09" West, a distance of 26.20 feet to the POINT or PLACE of BEGINNING.]~~

~~[Encompassing an area of 116,875 square feet or 2.68308 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence North 68°34'21" East, a distance of 391.24 feet to a point on the southeasterly line of Main Street and the division line between lands now or formerly of Serita Holding Corporation on the east and lands now or formerly of the City of New Rochelle on the west, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, thence along said division line the following two (2) courses and distances: (1) South 42°12'49" East, a distance of 138.15 feet to a point being the westerly corner of a grant of lands under water conveyed to Bose & Parker, Inc on December 20, 1945 and the original shoreline of Echo Bay; (2) South 50°05'59" East, along the southerly boundary of said grant to Bose & Parker, Inc. a distance of 39.09 feet to the Point or Place of Beginning; thence continuing along said grant boundary and through lands now or formerly under the waters of Echo Bay the following twenty five (25) courses and distances:

1. South 50°05'59" East, along the southwesterly line of said grant and its extension a distance of 216.15 feet to a point;
2. South 31°32'25" East, a distance of 33.96 feet to a point;
3. South 01°01'42" East, a distance of 154.33 feet to a point;
4. South 04°45'45" West, a distance of 105.62 feet to a point;
5. South 08°22'49" West, a distance of 67.94 feet to a point;
6. South 22°43'00" West, a distance of 65.54 feet to a point;
7. South 55°09'04" West, a distance of 152.09 feet to a point;
8. South 59°23'37" West, a distance of 70.76 feet to a point;
9. North 34°54'45" West, a distance of 8.48 feet to a point;
10. South 49°42'35" West, a distance of 99.42 feet to a point;
11. South 51°31'11" West, a distance of 17.36 feet to a point;
12. South 61°22'22" West, a distance of 19.23 feet to a point;
13. South 75°00'39" West, a distance of 12.56 feet to a point;
14. South 88°04'56" West, a distance of 13.81 feet to a point;
15. North 67°40'17" West, a distance of 9.90 feet to a point;
16. South 76°11'06" West, a distance of 25.23 feet to a point;
17. South 81°48'28" West, a distance of 47.46 feet to a point;
18. North 85°25'57" West, a distance of 46.20 feet to a point;
19. North 78°58'50" West, a distance of 22.92 feet to a point;
20. North 65°46'48" West, a distance of 21.49 feet to a point;
21. North 58°15'30" West, a distance of 22.49 feet to a point;
22. North 34°36'11" West, a distance of 44.08 feet to a point;
23. North 41°07'25" West, a distance of 88.45 feet to a point;
24. South 49°31'51" West, a distance of 51.82 feet to a point; and
25. South 45°30'15" West, a distance of 241.63 feet to a point on the easterly line of lands now or formerly owned by JoneI Development Corp.;

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thence North 35°33'35" West, along said easterly line a distance of 136.36 feet to a point on the southerly line of Huntington Place (35 feet wide); thence North 51°36'37" East, along the southerly line of Huntington Place a distance of 326.97 feet to a point; thence through the lands now or formerly owned by the City of New Rochelle the following eighteen (18) courses and distances:

1. South 38°23'27" East, a distance of 0.43 feet to a point;
2. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 26.37 feet, and a central angle of 42°33'21" and being subtended by a chord with a bearing South 35°09'51" West, a distance of 25.77 feet;
3. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 55.76 feet, and a central angle of 90°00'00" and being subtended by a chord with a bearing South 31°06'50" East, a distance of 50.20 feet;
4. South 76°06'50" East, a distance of 8.74 feet to a point;
5. Along a non-tangent curve to the left having a radius of 45.50 feet, an arc length of 62.49 feet, and a central angle of 78°41'06" and being subtended by a chord with a bearing North 64°32'37" East, a distance of 57.69 feet;
6. Along a non-tangent curve to the right having a radius of 24.50 feet, an arc length of 1.84 feet, and a central angle of 04°17'34" and being subtended by a chord with a bearing North 27°20'51" East, a distance of 1.84 feet;
7. South 32°10'08" East, a distance of 16.31 feet to a point;
8. South 37°42'52" East, a distance of 35.96 feet to a point;
9. Along a non-tangent curve to the left having a radius of 169.34 feet, an arc length of 222.47 feet, and a central angle of 75°16'24" and being subtended by a chord with a bearing South 75°21'04" East, a distance of 206.81 feet;
10. North 51°29'31" East, a distance of 110.44 feet to a point;
11. South 36°14'53" East, a distance of 38.30 feet to a point;
12. North 52°11'12" East, a distance of 138.84 feet to a point;
13. Along a non-tangent curve to the left having a radius of 235.50 feet, an arc length of 103.38 feet, and a central angle of 25°09'09" and being subtended by a chord with a bearing North 39°36'37" East, a distance of 102.55 feet; thence
14. Along a non-tangent curve to the left having a radius of 335.50 feet, an arc length of 278.34 feet, and a central angle of 47°32'02" and being subtended by a chord with a bearing North 03°16'02" East, a distance of 270.43 feet; thence
15. North 20°29'59" West, a distance of 50.40 feet to a point;
16. Along a non-tangent curve to the left having a radius of 165.50 feet, an arc length of 52.00 feet, and a central angle of 18°00'07" and being subtended by a chord with a bearing North 29°30'03" West, a distance of 51.79 feet;
17. North 38°30'06" West, a distance of 94.49 feet to a point; and
18. Along a non-tangent curve to the right having a radius of 182.50 feet, an arc length of 26.22 feet, and a central angle of 08°13'55" and being subtended by a chord with a bearing North 34°23'09" West, a distance of 26.20 feet to the Point or Place of Beginning. Containing 2.73 acres of land, more or less.

§ 3. This act shall take effect on the same date and in the same manner as a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the

10- 1 state and/or city of New Rochelle, as proposed in legislative bills
10- 2 numbers S. 7184 and A. 8014, takes effect.

- End of Report -

NEW YORK STATE ASSEMBLY
MEMORANDUM IN SUPPORT OF LEGISLATION
submitted in accordance with Assembly Rule III, Sec 1(f)

BILL NUMBER: A10145

SPONSOR: Rules (Otis)

TITLE OF BILL:

An act to amend a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, in relation to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle

PURPOSE OR GENERAL IDEA OF BILL:

This is a chapter amendment that makes changes to provisions of chapter 799 of the laws of 2021 to make technical changes to the property descriptions in such chapter.

SUMMARY OF PROVISIONS:

This legislation amends the underlying chapter to provide corrected metes and bounds for the properties that are being alienated and transferred pursuant to the chapter.

DIFFERENCE BETWEEN ORIGINAL AND AMENDED VERSION (IF APPLICABLE) :

n/a

JUSTIFICATION:

This legislation provides accurate and verified parcel metes and bounds descriptions.

PRIOR LEGISLATIVE HISTORY:

Chapter amendment to Chapter 799 of the Laws of 2021. 5.7184 and A.8014 both passed the Senate and Assembly, respectfully, in June 2021.

FISCAL IMPLICATIONS FOR STATE AND LOCAL GOVERNMENTS:

None.

EFFECTIVE DATE:

This act shall take effect immediately.

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A10145 Text:

STATE OF NEW YORK

10145

IN ASSEMBLY

May 3, 2022

Introduced by COMMITTEE ON RULES -- (at request of
M. of A. Otis) --

read once and referred to the Committee on Cities

AN ACT to amend a chapter of the laws of 2021 relating
to authorizing

the city of New Rochelle, county of Westchester to
sell, convey and

alienate certain land, in furtherance of an
economic development

interest of the state and/or city of New
Rochelle, as proposed in

legislative bills numbers S. 7184 and A. 8014, in
relation to author-

izing the city of New Rochelle, county of Westchester
to sell, convey

and alienate certain land, in furtherance of an
economic development

interest of the state and/or city of New Rochelle

The People of the State of New York, represented in
Senate and Assem-
bly, do enact as follows:

1 Section 1. Paragraph (b) of section 2 of a chapter of
the laws of 2021

2 relating to authorizing the city of New Rochelle, county
of Westchester

3 to sell, convey and alienate certain land, in
furtherance of an economic

4 development interest of the state and/or city of
New Rochelle, as

5 proposed in legislative bills numbers S. 7184 and A.
8014, is amended to

6 read as follows:

7 (b) any such deed transferring the parcel described in
section four of

8 this act provides (i) for the preservation of the
Armory Building,

9 including the annex, and (ii) a dedicated space for
veterans organiza-

10 tion use at no charge or a de minimis rental amount as
approved by the

Attachment: A10145 (2553 : PROPOSED LEGISLATION REGARDING A STATE ALIENATION HOME RULE REQUEST)

11 city council. Such deed or other document of
conveyance shall provide
12 that in the event of a breach of the conditions in this
paragraph, title
13 to the land transferred to the city of New Rochelle by
section four of
14 this act shall revert to the state of New York.
15 § 2. Sections 4, 5, 6 and 9 of a chapter of the laws
of 2021 relating
16 to authorizing the city of New Rochelle, county of
Westchester to sell,
17 convey and alienate certain land, in furtherance of an
economic develop-
18 ment interest of the state and/or city of New
Rochelle, as proposed in
19 legislative bills numbers S. 7184 and A. 8014, are
amended to read as
20 follows:
21 § 4. The parklands authorized by section one of this
act to be discon-
22 tinued as parklands in the letters patent dated July
24, 1997, recorded

EXPLANATION--Matter in italics (underscored) is new;
matter in brackets

[-] is old law to be omitted.

LBD11516-11-2

A. 10145

2

1 in the Westchester County Clerk's office at Liber
11802, Page 272 on
2 September 3, 1997 are described as follows:
3 ALL THAT CERTAIN PIECE OR PARCEL OF LAND situate in
the City of New
4 Rochelle, County of Westchester, and State of New York,
being further
5 described as follows:
6 BEGINNING at a point on the southerly side of East
Main Street at its
7 intersection with the division line between the lands of
the People of
8 the State of New York, on the east, and lands now or
formerly of Anthony
9 Petro, on the west, said point being distant S. 29 51'
W., 304.28 feet

10 from New Rochelle City Monument No. 4 which is located
 at the northwes-
 11 terly corner of the intersection of Pratt and Huguenot
 Streets; thence
 12 N. 52 02' 34 E., along the southerly bounds of East
 Main Street, 200
 13 feet to a point in the westerly bounds of lands, now or
 formerly, owned
 14 by the city of New Rochelle, said point being distance
 S. 02 32' 30" E.,
 15 141.02 feet from the aforesaid Monument No. 4; thence S.
 43 23' 32" E.,
 16 along the westerly bounds of said lands of the City of
 New Rochelle, 635
 17 feet to a point in the original high water line of New
 Rochelle Harbor
 18 (formerly called Snuff Mill Pond); thence S 52 02' 34"
 W., generally
 19 along said high water line, 200 feet to a point at the
 southeast corner
 20 of lands, now or formerly, of the Colonial Sand and
 Stone Company, Inc.;
 21 thence N. 43 23' 32" W., along the easterly bounds of
 said lands of the
 22 Colonial Sand and Stone Company, Inc., 327.55 feet to a
 point; thence N.
 23 52 28' 17" W., continuing along the easterly bounds
 of said lands of
 24 Colonial Sand and Stone Company, Inc., 57.92 feet to a
 point in the
 25 southerly bounds of lands, now or formerly, of
 Harvey A. Turnure
 26 (designated as Lot 45); thence N. 52 02' 34" E., along
 the southerly
 27 bounds of said lands of Turnure, 9.18 feet to a point;
 thence N. 43 23'
 28 32" W., along the easterly bounds of lands of said
 Turnure and then
 29 continuing along the easterly bounds of the aforesaid
 lands of Anthony
 30 Petro, 251.12 feet to the point and place of beginning,
 containing 2.908
 31 acres of land, more or less. Furthermore, the state of
New York shall
 32 release the 20-foot-wide easement previously reserved
in such letters
 33 patent.

34 § 5. In the event that the fair market value of the
parklands to be

35 dedicated by the city of New Rochelle pursuant to
section nine of this

36 act are not equal to or greater than the fair market
value of the park-

37 land to be discontinued in section four of this act,
the city of New

38 Rochelle shall dedicate the difference of the fair
market value of the

39 lands to be alienated and the lands to be dedicated for
the acquisition

40 of additional parklands and/or for capital improvements
to existing park

41 and recreational facilities.

42 § 6. The waterfront lands authorized by section three
of this act to

43 be discontinued and alienated as waterfront are
described as follows:

44 Parcel A:

45 All that certain piece or parcel of land situate,
lying and being in

46 the City of New Rochelle, County of Westchester and
State of New York

47 and being bounded and described as follows:

48 ~~[BEGINNING at a point on the northerly line of
Huntington Place (35~~

49 ~~feet wide) and also being the southerly line of lands
now or formerly~~

50 ~~owned by Bridge Management Corporation, said point
being 537.37 feet~~

51 ~~distant from the easterly line of Evans Street along the
northerly line~~

52 ~~of Huntington Place, and also being southerly from a
concrete monument~~

53 ~~"New Rochelle City Monument #4" near the westerly line
of Pratt Street~~

54 ~~and the northerly line of Main Street, a course of South
02°30'02" West,~~

55 ~~a distance of 482.73 feet and running thence; easterly
along a fence and~~

56 ~~along the division line between lands now or formerly
owned by the City~~

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1 ~~of New Rochelle and lands now or formerly owned by
Bridge Management~~

Attachment: A10145 (2553 : PROPOSED LEGISLATION REGARDING A STATE ALIENATION HOME RULE REQUEST)

2 ~~Corporation, a course of North 51°36'37" East, a~~
 3 ~~distance of 58.07 feet~~
 4 ~~to a point on the westerly line of lands now or formerly~~
 5 ~~owned by the~~
 6 ~~City of New Rochelle; thence running southerly along~~
 7 ~~said division line~~
 8 ~~and portions of a concrete wall, a course of South~~
 9 ~~43°49'29" East, a~~
 10 ~~distance of 404.21 feet to a point in the waters of~~
 11 ~~Echo Bay being on~~
 12 ~~lands owned by the State of New York; thence 43°49'29"~~
 13 ~~East, a distance~~
 14 ~~of 147.72 feet to a point in the waters of Echo~~
 15 ~~Bay; thence running~~
 16 ~~through the waters of Echo Bay the following three~~
 17 ~~courses:-~~
 18 ~~Westerly along previously said division line, a~~
 19 ~~course of South~~
 20 ~~60°32'31" West, a distance of 135.71 feet to a point at~~
 21 ~~the southeaster-~~
 22 ~~ly corner of lands now or formerly owned by Jonel~~
 23 ~~Development Corpo-~~
 24 ~~ration; thence northerly along previously said division~~
 25 ~~line, a course~~
 26 ~~of North 29°27'29" West, a distance of 10.00 feet to~~
 27 ~~a point; thence~~
 28 ~~westerly along previously said division line, a~~
 29 ~~course of South~~
 30 ~~60°32'31" West, a distance of 126.77 feet to a~~
 31 ~~point; thence running~~
 32 ~~northerly along previously said division line and~~
 33 ~~along a fence, a~~
 34 ~~course of North 35°33'35" West, a distance of 207.18~~
 35 ~~feet to a point on~~
 36 ~~the southerly line of Huntington Place (35 feet wide);~~
 37 ~~thence running~~
 38 ~~easterly along the southerly line of Huntington Place, a~~
 39 ~~course of North~~
 40 ~~51°36'37" East, a distance of 326.97 feet to a~~
 41 ~~point; thence running~~
 42 ~~northerly, a course of North 38°23'27" West, a distance~~
 43 ~~of 35.00 feet to~~
 44 ~~the point and place of beginning. Encompassing an~~
 45 ~~area of 101,824~~
 46 ~~square feet or 2.33756 acres, more or less.]~~
 47 Commencing at New Rochelle City Monument No. 4 at
 48 the northwesterly

26 corner of the intersection of Pratt and Huguenot
Street; thence S
 27 03°08'12" E, a distance of 446.88 feet to the southeast
corner of lands
 28 now or formerly of Bridge Management Corp.; thence
S 43°49'29" E,
 29 through lands of the City of New Rochelle, a distance
of 116.14 feet to
 30 the Point or Place of Beginning; thence through lands of
the City of New
 31 Rochelle the following five (5) courses and distances:
 (1) S 43°49'29"
 32 E, a distance of 176.59 feet to a point; (2) Along a
non-tangent curve
 33 to the right having a radius of 169.34 feet, an arc
length of 143.58
 34 feet, a central angle of 48°34'46" and being subtended
by a chord with a
 35 bearing N 62°00'15" W, a distance of 139.31 feet
to a point; (3) N
 36 37°42'52" W, a distance of 35.96 feet to a point; (4) N
32°10'08" W, a
 37 distance of 16.31 feet to a point; and (5) N 57°49'43"
E, a distance of
 38 37.11 feet to the Point or Place of Beginning.
Containing 0.1432 acres
 39 of land, more or less.

40 Parcel B:
 41 All that certain piece or parcel of land situate,
 lying and being in
 42 the City of New Rochelle, County of Westchester and
 State of New York
 43 and being bounded and described as follows:
 44 ~~[BEGINNING at a point on the southerly line of Main~~
~~Street (variable~~
 45 ~~width) and the division line of lands now or formerly~~
~~owned by Serita~~
 46 ~~Holding Corporation and lands now or formerly owned by~~
~~the City of New~~
 47 ~~Rochelle, said point being 1,215.24 feet distant from~~
~~the easterly line~~
 48 ~~of Evans Street along the southerly line of Main~~
~~Street, and also being~~
 49 ~~easterly from a concrete monument "New Rochelle City~~
~~Monument #4" near~~
 50 ~~the westerly line of Pratt Street and the northerly line~~
~~of Main Street,~~

51 ~~a course of North 68°34'21" East, a distance of 391.24~~
~~feet and running~~

52 ~~thence;~~

53 ~~Running Easterly along the division line of lands~~
~~now or formerly~~

54 ~~owned by Serita Holding Corporation and lands owned by~~
~~the State of New~~

55 ~~York, a course of South 50°05'59" East, a distance of~~
~~98.35 feet to a~~

56 ~~point;~~

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1 ~~thence continuing Easterly along said division line, a~~
~~course of South~~

2 ~~45°42'59" East, a distance of 0.15 feet to a point;~~

3 ~~thence running Northerly along said division line~~
~~into the waters of~~

4 ~~Echo Bay, a course of North 20°09'01" East, a distance~~
~~of 4.07 feet to a~~

5 ~~point;~~

6 ~~thence running through the waters of Echo Bay and~~
~~lands owned by the~~

7 ~~State of New York the following eight courses:~~

8 ~~Easterly, a course of South 49°53'15" East, a~~
~~distance of 148.40 feet~~

9 ~~to a point;~~

10 ~~thence southerly, a course of South 31°32'25" East,~~
~~a distance of~~

11 ~~44.22 feet to a point;~~

12 ~~thence southerly, a course of South 01°01'42"~~
~~East, a distance of~~

13 ~~154.33 feet to a point;~~

14 ~~thence southerly, a course of South 04°45'45" West,~~
~~a distance of~~

15 ~~105.62 feet to a point;~~

16 ~~thence southerly, a course of South 08°22'49"~~
~~West, a distance of~~

17 ~~67.94 feet to a point;~~

18 ~~thence southerly, a course of South 22°43'00" West,~~
~~a distance of~~

19 ~~65.54 feet to a point;~~

20 ~~thence westerly, a course of South 55°09'04"~~
~~West, a distance of~~

21 ~~152.09 feet to a point;~~

22 ~~thence westerly, a course of South 59°23'37" West, a~~
~~distance of 23.27~~

23 ~~feet to a point at the prolongation of the division line~~
 of ~~lands now or~~
 24 ~~formerly owned by the City of New Rochelle;~~
 25 ~~thence running Northerly along a fence and along the~~
 division ~~line of~~
 26 ~~lands now or formerly owned by the City of New~~
 Rochelle, ~~a course of~~
 27 ~~North 43°49'29" West, a distance of 689.19 feet to a~~
 point ~~on the south-~~
 28 ~~erly line of Main Street, also known as U.S. 1;~~
 29 ~~thence running Easterly along the southerly line of~~
 Main ~~Street, a~~
 30 ~~course of North 51°30'41" East, a distance of 455.94~~
 feet ~~to the POINT~~
 31 ~~or PLACE of BEGINNING.~~
 32 ~~Encompassing an area of 289,962 square feet or 6.65661~~
 acres, ~~more or~~
 33 ~~less.]~~

34 Commencing at New Rochelle City Monument No. 4 at
the northwesterly
 35 corner of the intersection of Pratt and Huguenot
Street; thence N
 36 68°34'21" E a distance of 391.24 feet to the Point or
Place of Begin-
 37 ning, being on the southeasterly line of Main Street;
thence S 51°30'41
 38 W along said southeasterly line a distance of 455.94
feet to a point;
 39 thence S 43°49'29" E through lands of the City of
New Rochelle a
 40 distance of 615.00 feet to a point on the original
shoreline of Echo
 41 Bay; thence along said original shoreline the following
eight (8) cours-
 42 es and distances 1) N 49°36'55" E a distance of 127.74
feet to a point,
 43 2) N 11°03'05" W a distance of 200.00 feet to a point,
 3) N 49°51'55" E
 44 a distance of 98.00 feet to a point, 4) N 18°08'05" W
a distance of
 45 118.00 feet to a point, 5) N 69°53'05" W a distance of
50.00 feet to a
 46 point, 6) N 16°21'55" E a distance of 46.00 feet to a
point, 7) N 62°
 47 33'14" W a distance of 86.36 feet to a point, and 8)
N 28°10'53" E a

48 distance of 79.00 feet to a point on the division line
 between lands now
 49 or formerly of Serita Holding Corporation on the
 northeast and lands of
 50 the City of New Rochelle on the southwest; thence
 N 42°12'49" W a
 51 distance of 138.15 feet to the point or place of
 beginning. Containing
 52 4.73 acres of land, more or less.
 53 Parcel C:
 54 Commencing at New Rochelle City Monument No. 4 at
 the northwesterly
 55 corner of the intersection of Pratt and Huguenot
 Street; thence N
 56 68°34'21" E, a distance of 391.24 feet to a point,
 being on the south-

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1 easterly line of Main Street at its intersection with
 the division line
 2 between lands now or formerly owned by Serita Holding
 Corporation on the
 3 northeast and lands now or formerly owned by the City of
 New Rochelle on
 4 the southwest; thence S 42°12'49" E, along said division
 line a distance
 5 of 138.15 feet to the most westerly corner of lands
 underwater granted
 6 to Bose & Parker, Inc. on December 20, 1945 and
 recorded in Letters
 7 Patent Book 71, Page 312, being located along the former
 high water line
 8 of Echo Bay; thence S 28°10'53" W, along the former
 high water line of
 9 Echo Bay, a distance of 29.59 feet to the Point or Place
 of Beginning;
 10 thence through filled in lands under the waters of Echo
 Bay, the follow-
 11 ing seventeen (17) courses and distances:
 12 1) along a non-tangent curve to the left having a
 radius of 222.00
 13 feet, an arc length of 53.22 feet, a central angle of
 13°44'10" a chord
 14 of S 31°38'01" E, a distance of 53.10 feet to a point;
 15 2) S 38°30'06" East, a distance of 89.78 feet to a
point;

16 3) N 51°31'15" E, a distance of 10.00 feet to a
point;
 17 4) S 38°30'04" E, a distance of 17.33 feet to a
point;
 18 5) along a curve to the right having a radius of
138.00 feet, an
 19 arc length of 43.36 feet, a central angle of 18°00'05"
a chord of S
 20 29°30'02" E, a distance of 43.18 feet to a point;
 21 6) S 20°29'59" E, a distance of 26.50 feet to a
point;
 22 7) S 18°21'03" E, a distance of 42.81 feet to a
point;
 23 8) S 14°03'45" E, a distance of 6.53 feet to a
point;
 24 9) along a non-tangent curve to the right having
a radius of 3.00
 25 feet, an arc length of 4.74 feet, a central angle of
90°33'36" a chord
 26 of S 31°49'17" W, a distance of 4.26 feet to a point;
 27 10) S 77°06'05" W, a distance of 4.99 feet to a point;
 28 11) along a non-tangent curve to the right having a
radius of 302.00
 29 feet, an arc length of 209.00 feet, a central angle of
39°39'07" a chord
 30 of S 06°55'38" W, a distance of 204.85 feet to a point;
 31 12) S 63°14'49" E, a distance of 4.98 feet to a point;
 32 13) along a non-tangent curve to the right having a
radius of 3.00
 33 feet, an arc length of 4.75 feet, a central angle of
90°41'40" a chord
 34 of S 17°53'59" E, a distance of 4.27 feet to a point;
 35 14) along a non-tangent curve to the right having a
radius of 210.00
 36 feet, an arc length of 14.99 feet, a central angle of
04°05'23" a chord
 37 of S 29°29'33" W, a distance of 14.99 feet to a point;
 38 15) along a non-tangent curve to the right having a
radius of 5.00
 39 feet, an arc length of 7.98 feet, a central angle of
91°23'51" a chord
 40 of S 77°14'10" W, a distance of 7.16 feet to a point;
 41 16) S 38°50'47" W, a distance of 28.95 feet to a
point; and
 42 17) along a non-tangent curve to the right having a
radius of 204.00

43 feet, an arc length of 10.15 feet, and a central
 44 angle of 02°51'07" a
 45 chord of S 42°28'34" W, a distance of 10.15 feet to a
 46 point on the
 47 original high water line of Echo Bay;
 48 thence along said former high water line the
 49 following seven (7)
 50 courses and distances:
 51 1) N 11°03'05" W, a distance of 174.49 feet to a
 52 point;
 53 2) N 49°51'55" E, a distance of 98.00 feet to a
 54 point;
 55 3) N 18°08'05" W, a distance of 118.00 feet to a
 56 point;
 57 4) N 69°53'05" W, a distance of 50.00 feet to a
 58 point;
 59 5) N 16°21'55" E, a distance of 46.00 feet to a
 60 point;
 61 6) N 62°33'14" W, a distance of 86.36 feet to a
 62 point; and
 63 7) N 28°10'53" E, a distance of 49.41 feet to the
 64 Point or Place of
 65 Beginning.
 66 Containing 0.508 acre of land, more or less.
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1 § 9. The lands to be dedicated as parkland by the city
 2 of New Rochelle
 3 pursuant to subdivision (a) of section two of this act,
 4 after applying
 5 for and obtaining a grant of lands owned by the
 6 state of New York
 7 formerly under the waters of Echo Bay, are described as
 8 follows:
 9 All that certain piece or parcel of land situate,
 10 lying and being in
 11 the city of New Rochelle, county of Westchester and
 12 state of New York
 13 and being bounded and described as follows:
 14 [~~COMMENCING at a point on the southerly line of Main~~
 15 ~~Street (variable~~
 16 ~~width) and the division line of lands now or formerly~~
 17 ~~owned by Serita~~
 18 ~~Holding Corporation and lands now or formerly owned by~~
 19 ~~the city of New~~
 20 ~~Rochelle, said point being 1,215.24 feet distant from~~
 21 ~~the easterly line~~

~~12 of Evans Street along the southerly line of Main~~
~~Street, and also being~~
~~13 easterly from a concrete monument "New Rochelle City~~
~~Monument #4" near~~
~~14 the westerly line of Pratt Street and the northerly line~~
~~of Main Street,~~
~~15 a course of North 68°34'21" East, a distance of 391.24~~
~~feet and running~~
~~16 the following two courses:~~
~~17 Southerly along said division line, a course of South~~
~~42°12'49" East,~~
~~18 a distance of 138.15 feet to a point; thence continuing~~
~~southerly along~~
~~19 said division line, a course of South 50°05'59" East,~~
~~a distance of~~
~~20 39.09 feet to a point, being the POINT or PLACE of~~
~~BEGINNING, as shown~~
~~21 on a certain map entitled "State of New York Office of~~
~~General Services,~~
~~22 Park Area Land Grant in the Application of City of New~~
~~Rochelle for a~~
~~23 Grant of Lands Under the Waters of Echo Bay, Situate in~~
~~the City of New~~
~~24 Rochelle, County of Westchester, State of New York",~~
~~prepared by Langan~~
~~25 Engineering, Environmental, Surveying, Landscape~~
~~Architecture and Geolo-~~
~~26 gy, DPC, dated May 19, 2021; thence running easterly~~
~~along the division~~
~~27 line of lands now or formerly owned by Serita Holding~~
~~Corporation and~~
~~28 lands owned by the State of New York, a course of South~~
~~50°05'59" East,~~
~~29 a distance of 59.26 feet to a point; thence continuing~~
~~easterly along~~
~~30 said division line, a course of South 45°42'59" East, a~~
~~distance of 0.15~~
~~31 feet to a point; thence running northerly along said~~
~~division line into~~
~~32 the waters of Echo Bay, a course of North 20°09'01"~~
~~East, a distance of~~
~~33 4.07 feet to a point; thence running through the waters~~
~~of Echo Bay and~~
~~34 land owned by the State of New York the following twenty~~
~~courses:~~
~~35 Easterly, a course of South 49°53'15" East, a distance~~
~~of 148.40 feet~~

~~36 to a point; thence southerly, a course of South~~
~~31°32'25" East, a~~
~~37 distance of 44.22 feet to a point; thence southerly, a~~
~~course of South~~
~~38 01°01'42" East, a distance of 154.33 feet to a point;~~
~~thence southerly,~~
~~39 a course of South 04°45'45" West, a distance of 105.62~~
~~feet to a point;~~
~~40 thence southerly, a course of South 08°22'49" West, a~~
~~distance of 67.94~~
~~41 feet to a point; thence southerly, a course of South~~
~~22°43'00" West, a~~
~~42 distance of 65.54 feet to a point; thence westerly, a~~
~~course of South~~
~~43 55°09'04" West, a distance of 152.09 feet to a point;~~
~~thence westerly, a~~
~~44 course of South 59°23'37" West, a distance of 70.76~~
~~feet to a point;~~
~~45 thence northerly, a course of North 34°54'45" West, a~~
~~distance of 24.51~~
~~46 feet to a point; thence westerly, a course of South~~
~~51°31'11" West, a~~
~~47 distance of 151.00 feet to a point; thence westerly~~
~~along a portion of a~~
~~48 wall, a course of South 76°11'06" West, a distance of~~
~~39.67 feet to a~~
~~49 point; thence westerly along a wall, a course of South~~
~~81°48'28" West, a~~
~~50 distance of 47.46 feet to a point; thence westerly~~
~~along a wall, a~~
~~51 course of North 85°25'57" West, a distance of 46.20~~
~~feet to a point;~~
~~52 thence westerly along a wall, a course of North~~
~~78°58'50" West, a~~
~~53 distance of 22.92 feet to a point; thence westerly~~
~~along a wall, a~~
~~54 course of North 65°46'48" West, a distance of 21.49~~
~~feet to a point;~~
~~55 thence westerly along a wall, a course of North~~
~~58°15'30" West, a~~
~~56 distance of 22.49 feet to a point; thence northerly~~
~~along a wall, a~~

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~~1 course of North 34°36'11" West, a distance of 44.08~~
~~feet to a point;~~

~~2 thence northerly along a wall, a course of North~~
~~41°07'25" West, a~~
~~3 distance of 88.45 feet to a point; thence westerly~~
~~along a portion of a~~
~~4 wall, a course of South 49°31'51" West, a distance of~~
~~51.82 feet to a~~
~~5 point on the easterly line of lands now or formerly~~
~~owned by City of New~~
~~6 Rochelle; thence running along the water's edge through~~
~~the lands now or~~
~~7 formerly owned by the City of New Rochelle the following~~
~~six courses:~~
~~8 Westerly a course of South 49°31'51" West, a distance~~
~~of 113.64 feet~~
~~9 to a point; thence southerly a course of South~~
~~29°17'12" East, a~~
~~10 distance of 16.95 feet to a point; thence westerly a~~
~~course of South~~
~~11 47°38'55" West, a distance of 24.95 feet to a point;~~
~~thence westerly a~~
~~12 course of South 57°50'50" West, a distance of 56.29~~
~~feet to a point;~~
~~13 thence southerly a course of South 16°34'44" West, a~~
~~distance of 17.88~~
~~14 feet to a point; thence westerly a course of South~~
~~53°14'05" West, a~~
~~15 distance of 28.55 feet to a point on the easterly~~
~~division line of lands~~
~~16 now or formerly owned by Jonel Development Corp.;~~
~~thence running north-~~
~~17 erly along said division line and along a fence, a~~
~~course of North~~
~~18 35°33'35" West, a distance of 136.58 feet to a point~~
~~on the southerly~~
~~19 line of Huntington Place (35 feet wide); thence running~~
~~easterly along~~
~~20 the southerly line of Huntington Place a course of North~~
~~51°36'37" East,~~
~~21 a distance of 326.97 feet to a point on the westerly~~
~~intersection of~~
~~22 lands now or formerly owned by the City of New Rochelle~~
~~and the souther-~~
~~23 ly line of Huntington Place; thence running through the~~
~~lands now or~~
~~24 formerly owned by the city of New Rochelle the following~~
~~eighteen cours-~~
~~25 es:~~

26 ~~Southerly a course of South $38^{\circ}23'27''$ East, a distance~~
 of ~~0.43 feet to~~
 27 ~~a point; thence southerly along a curve to the left~~
 having an ~~arc length~~
 28 ~~of 26.37 feet, a radius of 35.50 feet, and a central~~
 angle of ~~$42^{\circ}33'21''$~~
 29 ~~and being subtended by a chord which bears South~~
 ~~$35^{\circ}09'51''$ West, a~~
 30 ~~distance of 25.77 feet; thence southerly with a~~
 compound curve to the
 31 ~~left having an arc length of 55.76 feet, a radius of~~
~~35.50 feet, and a~~
 32 ~~central angle of $90^{\circ}00'00''$ and being subtended by a~~
 chord which bears
 33 ~~South $31^{\circ}06'50''$ East, a distance of 50.20 feet; thence~~
 easterly a course
 34 ~~of South $76^{\circ}06'50''$ East, a distance of 8.74 feet to a~~
 point; thence
 35 ~~easterly along a curve to the left having an arc length~~
 of ~~62.49 feet, a~~
 36 ~~radius of 45.50 feet, and a central angle of~~
 ~~$78^{\circ}41'06''$ and being~~
 37 ~~subtended by a chord which bears North $64^{\circ}32'37''$ East,~~
 a distance of
 38 ~~57.69 feet; thence northerly with a reverse curve to the~~
 right having an
 39 ~~arc length of 1.84 feet, a radius of 24.50 feet, and a~~
 central angle of
 40 ~~$04^{\circ}17'34''$ and being subtended by a chord which bears~~
 North ~~$27^{\circ}20'51''$~~
 41 ~~East, a distance of 1.84 feet; thence southerly a~~
 course of South
 42 ~~$32^{\circ}10'08''$ East, a distance of 16.31 feet to a point;~~
 thence southerly a
 43 ~~course of South $37^{\circ}42'52''$ East, a distance of 35.96~~
 feet to a point;
 44 ~~thence easterly along a curve to the left having an arc~~
 length of ~~222.47~~
 45 ~~feet, a radius of 169.34 feet, and a central angle of~~
 ~~$75^{\circ}16'24''$ and~~
 46 ~~being subtended by a chord which bears South $75^{\circ}21'04''$~~
 East, a distance
 47 ~~of 206.81 feet; thence easterly a course of North~~
 ~~$51^{\circ}29'31''$ East, a~~
 48 ~~distance of 110.44 feet to a point; thence southerly a~~
 course of South

49 ~~36°14'53" East, a distance of 38.30 feet to a point;~~
~~thence easterly a~~
 50 ~~course of North 52°11'12" East, a distance of 138.84~~
~~feet to a point;~~
 51 ~~thence northerly along a curve to the left having an~~
~~arc length of~~
 52 ~~103.38 feet, a radius of 235.50 feet, and a central~~
~~angle of 25°09'09"~~
 53 ~~and being subtended by a chord which bears North~~
~~39°36'37" East, a~~
 54 ~~distance of 102.55 feet; thence northerly with a~~
~~compound curve to the~~
 55 ~~left having an arc length of 278.34 feet, a radius of~~
~~335.50 feet, and a~~
 56 ~~central angle of 47°32'02" and being subtended by a~~
~~chord which bears~~

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8

1 ~~North 03°16'02" East, a distance of 270.43 feet;~~
~~thence northerly a~~
 2 ~~course of North 20°29'59" West, a distance of 50.40~~
~~feet to a point;~~
 3 ~~thence northerly along a curve to the left having an arc~~
~~length of 52.00~~
 4 ~~feet, a radius of 165.50 feet, and a central angle~~
~~of 18°00'07" and~~
 5 ~~being subtended by a chord which bears North 29°30'03"~~
~~West, a distance~~
 6 ~~of 51.79 feet; thence northerly a course of North~~
~~38°30'06" West, a~~
 7 ~~distance of 94.49 feet to a point; thence northerly~~
~~along a curve to the~~
 8 ~~right having an arc length of 26.22 feet, a radius of~~
~~182.50 feet, and a~~
 9 ~~central angle of 08°13'55" and being subtended by a~~
~~chord which bears~~
 10 ~~North 34°23'09" West, a distance of 26.20 feet to the~~
~~POINT or PLACE of~~
 11 ~~BEGINNING.~~
 12 ~~Encompassing an area of 116,875 square feet or 2.68308~~
~~acres, more or~~
 13 ~~less.]~~
 14 Commencing at New Rochelle City Monument No. 4 at
the northwesterly
 15 corner of the intersection of Pratt and Huguenot
Street; thence North

16 68°34'21" East, a distance of 391.24 feet to a point on
 17 the southeaster-
 18 ly line of Main Street and the division line
 19 between lands now or
 20 formerly of Serita Holding Corporation on the east and
 21 lands now or
 22 formerly of the City of New Rochelle on the west,
 23 said point being
 24 1,215.24 feet distant from the easterly line of Evans
 25 Street along the
 26 southerly line of Main Street, thence along said
 27 division line the
 28 following two (2) courses and distances: (1) South
 29 42°12'49" East, a
 30 distance of 138.15 feet to a point being the westerly
 31 corner of a grant
 32 of lands under water conveyed to Bose & Parker, Inc on
 33 December 20, 1945
 34 and the original shoreline of Echo Bay; (2) South
 35 50°05'59" East, along
 36 the southerly boundary of said grant to Bose & Parker,
 37 Inc. a distance
 38 of 39.09 feet to the Point or Place of Beginning;
 39 thence continuing
 40 along said grant boundary and through lands now or
 41 formerly under the
 42 waters of Echo Bay the following twenty five (25)
 43 courses and distances:
 44 1. South 50°05'59" East, along the southwesterly line
 45 of said grant
 46 and its extension a distance of 216.15 feet to a point;
 47 2. South 31°32'25" East, a distance of 33.96 feet to
 48 a point;
 49 3. South 01°01'42" East, a distance of 154.33 feet to
 50 a point;
 51 4. South 04°45'45" West, a distance of 105.62 feet to
 52 a point;
 53 5. South 08°22'49" West, a distance of 67.94 feet to
 54 a point;
 55 6. South 22°43'00" West, a distance of 65.54 feet to
 56 a point;
 57 7. South 55°09'04" West, a distance of 152.09 feet to
 58 a point;
 59 8. South 59°23'37" West, a distance of 70.76 feet to
 60 a point;
 61 9. North 34°54'45" West, a distance of 8.48 feet to a
 62 point;

40 10. South 49°42'35" West, a distance of 99.42 feet to
a point;
 41 11. South 51°31'11" West, a distance of 17.36 feet to
a point;
 42 12. South 61°22'22" West, a distance of 19.23 feet to
a point;
 43 13. South 75°00'39" West, a distance of 12.56 feet to
a point;
 44 14. South 88°04'56" West, a distance of 13.81 feet to
a point;
 45 15. North 67°40'17" West, a distance of 9.90 feet to a
point;
 46 16. South 76°11'06" West, a distance of 25.23 feet to
a point;
 47 17. South 81°48'28" West, a distance of 47.46 feet to
a point;
 48 18. North 85°25'57" West, a distance of 46.20 feet to
a point;
 49 19. North 78°58'50" West, a distance of 22.92 feet to
a point;
 50 20. North 65°46'48" West, a distance of 21.49 feet to
a point;
 51 21. North 58°15'30" West, a distance of 22.49 feet to
a point;
 52 22. North 34°36'11" West, a distance of 44.08 feet to
a point;
 53 23. North 41°07'25" West, a distance of 88.45 feet to
a point;
 54 24. South 49°31'51" West, a distance of 51.82 feet to
a point; and
 55 25. South 45°30'15" West, a distance of 241.63 feet
to a point on the
 56 easterly line of lands now or formerly owned by Jonel
Development Corp.;

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9

1 thence North 35°33'35" West, along said easterly line
a distance of
 2 136.36 feet to a point on the southerly line of
Huntington Place (35
 3 feet wide); thence North 51°36'37" East, along the
southerly line of
 4 Huntington Place a distance of 326.97 feet to a
point; thence through
 5 the lands now or formerly owned by the City of New
Rochelle the follow-
 6 ing eighteen (18) courses and distances:

- 7 1. South 38°23'27" East, a distance of 0.43 feet to a
8 point;
- 9 2. Along a non-tangent curve to the left having a
10 radius of 35.50
11 feet, an arc length of 26.37 feet, and a central angle
12 of 42°33'21" and
13 being subtended by a chord with a bearing South
14 35°09'51" West, a
15 distance of 25.77 feet;
- 16 3. Along a non-tangent curve to the left having a
17 radius of 35.50
18 feet, an arc length of 55.76 feet, and a central angle
19 of 90°00'00" and
20 being subtended by a chord with a bearing South
21 31°06'50" East, a
22 distance of 50.20 feet;
- 23 4. South 76°06'50" East, a distance of 8.74 feet to a
24 point;
- 25 5. Along a non-tangent curve to the left having a
26 radius of 45.50
27 feet, an arc length of 62.49 feet, and a central angle
28 of 78°41'06" and
29 being subtended by a chord with a bearing North
30 64°32'37" East, a
31 distance of 57.69 feet;
- 32 6. Along a non-tangent curve to the right having a
33 radius of 24.50
34 feet, an arc length of 1.84 feet, and a central angle
35 of 04°17'34" and
36 being subtended by a chord with a bearing North
37 27°20'51" East, a
38 distance of 1.84 feet;
- 39 7. South 32°10'08" East, a distance of 16.31 feet to
40 a point;
- 41 8. South 37°42'52" East, a distance of 35.96 feet to
42 a point;
- 43 9. Along a non-tangent curve to the left having a
44 radius of 169.34
45 feet, an arc length of 222.47 feet, and a central angle
46 of 75°16'24" and
47 being subtended by a chord with a bearing South
48 75°21'04" East, a
49 distance of 206.81 feet;
- 50 10. North 51°29'31" East, a distance of 110.44 feet to
51 a point;
- 52 11. South 36°14'53" East, a distance of 38.30 feet to
53 a point;

33 12. North 52°11'12" East, a distance of 138.84 feet to
 34 a point;

35 13. Along a non-tangent curve to the left having a
 36 radius of 235.50

37 feet, an arc length of 103.38 feet, and a central angle
 38 of 25°09'09" and

39 being subtended by a chord with a bearing North
 40 39°36'37" East, a

41 distance of 102.55 feet; thence

42 14. Along a non-tangent curve to the left having a
 43 radius of 335.50

44 feet, an arc length of 278.34 feet, and a central angle
 45 of 47°32'02" and

46 being subtended by a chord with a bearing North
 47 03°16'02" East, a

48 distance of 270.43 feet; thence

49 15. North 20°29'59" West, a distance of 50.40 feet to
 50 a point;

51 16. Along a non-tangent curve to the left having a
 52 radius of 165.50

53 feet, an arc length of 52.00 feet, and a central angle
 54 of 18°00'07" and

55 being subtended by a chord with a bearing North
 56 29°30'03" West, a

57 distance of 51.79 feet;

58 17. North 38°30'06" West, a distance of 94.49 feet to
 59 a point; and

60 18. Along a non-tangent curve to the right having a
 61 radius of 182.50

62 feet, an arc length of 26.22 feet, and a central angle
 63 of 08°13'55" and

64 being subtended by a chord with a bearing North
 65 34°23'09" West, a

66 distance of 26.20 feet to the Point or Place of
 67 Beginning. Containing

68 2.73 acres of land, more or less.

69 § 3. This act shall take effect on the same date
 70 and in the same

71 manner as a chapter of the laws of 2021 relating to
 72 authorizing the city

73 of New Rochelle, county of Westchester to sell,
 74 convey and alienate

75 certain land, in furtherance of an economic development
 76 interest of the

1 state and/or city of New Rochelle, as proposed in
legislative bills

2 numbers S. 7184 and A. 8014, takes effect.

City of New Rochelle

Law

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager

DATE: May 10, 2022

SUBJECT: PROPOSED LEGISLATION RE: STATE ALIENATION - HOME RULE REQUEST REV #1 - Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S7829 and Assembly Bill No. A9777, as proposed in Legislative Bills S7184 and A8014, in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.

Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S7829 and Assembly Bill No. A9777, as proposed in Legislative Bills S7184 and A8014, in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.

LEGISLATION

RESOLUTION AUTHORIZING THE APPROPRIATE OFFICER(S) OF THE CITY OF NEW ROCHELLE TO SIGN A HOME RULE REQUEST FOR THE ENACTMENT OF SENATE BILL NO. S7829 AND ASSEMBLY BILL NO. A9777, AS PROPOSED IN LEGISLATIVE BILLS S7184 AND A8014, IN RELATION TO AUTHORIZING THE CITY OF NEW ROCHELLE, COUNTY OF WESTCHESTER TO SELL, CONVEY AND ALIENATE CERTAIN LAND IN FURTHERANCE OF AN ECONOMIC DEVELOPMENT INTEREST OF THE STATE AND/OR CITY OF NEW ROCHELLE.

BE IT RESOLVED by the Council of the City of New Rochelle, that this City Council hereby authorizes the appropriate City Officer(s) to sign a Home Rule Request for enactment of Senate Bill No. S7829 and Assembly Bill No. A9777, as proposed in Legislative bills S7184 and A8014 in relation to authorizing the City of New Rochelle, County of Westchester to sell, convey and alienate certain land in furtherance of an economic development interest of the State and/or City of New Rochelle.

ATTACHMENTS:

1. s7829
2. A9777

STATE OF NEW YORK

7829

IN SENATE

January 12, 2022

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Rules

AN ACT to amend a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, in relation to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of section 2 of a chapter of the laws of 2021
2 relating to authorizing the city of New Rochelle, county of Westchester
3 to sell, convey and alienate certain land, in furtherance of an economic
4 development interest of the state and/or city of New Rochelle, as
5 proposed in legislative bills numbers S. 7184 and A. 8014, is amended to
6 read as follows:

7 (b) any such deed transferring the parcel described in section four of
8 this act provides (i) for the preservation of the Armory Building,
9 including the annex, and (ii) a dedicated space for veterans organiza-
10 tion use at no charge or a de minimis rental amount as approved by the
11 city council. Such deed or other document of conveyance shall provide
12 that in the event of a breach of the conditions in this paragraph, title
13 to the land transferred to the city of New Rochelle by section four of
14 this act shall revert to the state of New York.

15 § 2. Sections 4, 5, 6 and 9 of a chapter of the laws of 2021 relating
16 to authorizing the city of New Rochelle, county of Westchester to sell,
17 convey and alienate certain land, in furtherance of an economic develop-
18 ment interest of the state and/or city of New Rochelle, as proposed in
19 legislative bills numbers S. 7184 and A. 8014, are amended to read as
20 follows:

21 § 4. The parklands authorized by section one of this act to be discon-
22 tinued as parklands in the letters patent dated July 24, 1997, recorded

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11516-10-2

Attachment: s7829 (2557 : PROPOSED LEGISLATION REGARDING A STATE ALIENATION HOME RULE REQUEST REV #1)

1 in the Westchester County Clerk's office at Liber 11802, Page 272 on
2 September 3, 1997 are described as follows:

3 ALL THAT CERTAIN PIECE OR PARCEL OF LAND situate in the City of New
4 Rochelle, County of Westchester, and State of New York, being further
5 described as follows:

6 BEGINNING at a point on the southerly side of East Main Street at its
7 intersection with the division line between the lands of the People of
8 the State of New York, on the east, and lands now or formerly of Anthony
9 Petro, on the west, said point being distant S. 29 51' W., 304.28 feet
10 from New Rochelle City Monument No. 4 which is located at the northwes-
11 terly corner of the intersection of Pratt and Huguenot Streets; thence
12 N. 52 02' 34 E., along the southerly bounds of East Main Street, 200
13 feet to a point in the westerly bounds of lands, now or formerly, owned
14 by the city of New Rochelle, said point being distance S. 02 32' 30" E.,
15 141.02 feet from the aforesaid Monument No. 4; thence S. 43 23' 32" E.,
16 along the westerly bounds of said lands of the City of New Rochelle, 635
17 feet to a point in the original high water line of New Rochelle Harbor
18 (formerly called Snuff Mill Pond); thence S 52 02' 34" W., generally
19 along said high water line, 200 feet to a point at the southeast corner
20 of lands, now or formerly, of the Colonial Sand and Stone Company, Inc.;
21 thence N. 43 23' 32" W., along the easterly bounds of said lands of the
22 Colonial Sand and Stone Company, Inc., 327.55 feet to a point; thence N.
23 52 28' 17" W., continuing along the easterly bounds of said lands of
24 Colonial Sand and Stone Company, Inc., 57.92 feet to a point in the
25 southerly bounds of lands, now or formerly, of Harvey A. Turnure
26 (designated as Lot 45); thence N. 52 02' 34" E., along the southerly
27 bounds of said lands of Turnure, 9.18 feet to a point; thence N. 43 23'
28 32" W., along the easterly bounds of lands of said Turnure and then
29 continuing along the easterly bounds of the aforesaid lands of Anthony
30 Petro, 251.12 feet to the point and place of beginning, containing 2.908
31 acres of land, more or less. Furthermore, the state of New York shall
32 release the 20-foot-wide easement previously reserved in such letters
33 patent.

34 § 5. In the event that the fair market value of the parklands to be
35 dedicated by the city of New Rochelle pursuant to section nine of this
36 act are not equal to or greater than the fair market value of the park-
37 land to be discontinued in section four of this act, the city of New
38 Rochelle shall dedicate the difference of the fair market value of the
39 lands to be alienated and the lands to be dedicated for the acquisition
40 of additional parklands and/or for capital improvements to existing park
41 and recreational facilities.

42 § 6. The waterfront lands authorized by section three of this act to
43 be discontinued and alienated as waterfront are described as follows:

44 Parcel A:

45 All that certain piece or parcel of land situate, lying and being in
46 the City of New Rochelle, County of Westchester and State of New York
47 and being bounded and described as follows:

48 ~~[BEGINNING at a point on the northerly line of Huntington Place (35~~
49 ~~feet wide) and also being the southerly line of lands now or formerly~~
50 ~~owned by Bridge Management Corporation, said point being 537.37 feet~~
51 ~~distant from the easterly line of Evans Street along the northerly line~~
52 ~~of Huntington Place, and also being southerly from a concrete monument~~
53 ~~"New Rochelle City Monument #4" near the westerly line of Pratt Street~~
54 ~~and the northerly line of Main Street, a course of South 02°30'02" West,~~
55 ~~a distance of 482.73 feet and running thence; easterly along a fence and~~
56 ~~along the division line between lands now or formerly owned by the City~~

~~of New Rochelle and lands now or formerly owned by Bridge Management Corporation, a course of North 51°36'37" East, a distance of 58.07 feet to a point on the westerly line of lands now or formerly owned by the City of New Rochelle; thence running southerly along said division line and portions of a concrete wall, a course of South 43°49'29" East, a distance of 404.21 feet to a point in the waters of Echo Bay being on lands owned by the State of New York; thence 43°49'29" East, a distance of 147.72 feet to a point in the waters of Echo Bay; thence running through the waters of Echo Bay the following three courses:~~

~~Westerly along previously said division line, a course of South 60°32'31" West, a distance of 135.71 feet to a point at the southeasterly corner of lands now or formerly owned by Jonel Development Corporation; thence northerly along previously said division line, a course of North 29°27'29" West, a distance of 10.00 feet to a point; thence westerly along previously said division line, a course of South 60°32'31" West, a distance of 126.77 feet to a point; thence running northerly along previously said division line and along a fence, a course of North 35°33'35" West, a distance of 207.18 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place, a course of North 51°36'37" East, a distance of 326.97 feet to a point; thence running northerly, a course of North 38°23'27" West, a distance of 35.00 feet to the point and place of beginning. Encompassing an area of 101,824 square feet or 2.33756 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence S 03°08'12" E, a distance of 446.88 feet to the southeast corner of lands now or formerly of Bridge Management Corp.; thence S 43°49'29" E, through lands of the City of New Rochelle, a distance of 116.14 feet to the Point or Place of Beginning; thence through lands of the City of New Rochelle the following five (5) courses and distances: (1) S 43°49'29" E, a distance of 176.59 feet to a point; (2) Along a non-tangent curve to the right having a radius of 169.34 feet, an arc length of 143.58 feet, a central angle of 48°34'46" and being subtended by a chord with a bearing N 62°00'15" W, a distance of 139.31 feet to a point; (3) N 37°42'52" W, a distance of 35.96 feet to a point; (4) N 32°10'08" W, a distance of 16.31 feet to a point; and (5) N 57°49'43" E, a distance of 37.11 feet to the Point or Place of Beginning. Containing 0.1432 acres of land, more or less.

Parcel B:

All that certain piece or parcel of land situate, lying and being in the City of New Rochelle, County of Westchester and State of New York and being bounded and described as follows:

~~[BEGINNING at a point on the southerly line of Main Street (variable width) and the division line of lands now or formerly owned by Serita Holding Corporation and lands now or formerly owned by the City of New Rochelle, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, and also being easterly from a concrete monument "New Rochelle City Monument #4" near the westerly line of Pratt Street and the northerly line of Main Street, a course of North 68°34'21" East, a distance of 391.24 feet and running thence;~~

~~Running Easterly along the division line of lands now or formerly owned by Serita Holding Corporation and lands owned by the State of New York, a course of South 50°05'59" East, a distance of 98.35 feet to a point;~~

~~thence continuing Easterly along said division line, a course of South 45°42'59" East, a distance of 0.15 feet to a point;~~
~~thence running Northerly along said division line into the waters of Echo Bay, a course of North 20°09'01" East, a distance of 4.07 feet to a point;~~
~~thence running through the waters of Echo Bay and lands owned by the State of New York the following eight courses:~~
~~Easterly, a course of South 49°53'15" East, a distance of 148.40 feet to a point;~~
~~thence southerly, a course of South 31°32'25" East, a distance of 44.22 feet to a point;~~
~~thence southerly, a course of South 01°01'42" East, a distance of 154.33 feet to a point;~~
~~thence southerly, a course of South 04°45'45" West, a distance of 105.62 feet to a point;~~
~~thence southerly, a course of South 08°22'49" West, a distance of 67.94 feet to a point;~~
~~thence southerly, a course of South 22°43'00" West, a distance of 65.54 feet to a point;~~
~~thence westerly, a course of South 55°09'04" West, a distance of 152.00 feet to a point;~~
~~thence westerly, a course of South 59°23'37" West, a distance of 23.27 feet to a point at the prolongation of the division line of lands now or formerly owned by the City of New Rochelle;~~
~~thence running Northerly along a fence and along the division line of lands now or formerly owned by the City of New Rochelle, a course of North 43°49'29" West, a distance of 689.10 feet to a point on the southerly line of Main Street, also known as U.S. 1;~~
~~thence running Easterly along the southerly line of Main Street, a course of North 51°30'41" East, a distance of 455.94 feet to the POINT or PLACE of BEGINNING.~~
~~Encompassing an area of 289,962 square feet or 6.65661 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence N 68°34'21" E a distance of 391.24 feet to the Point or Place of Beginning, being on the southeasterly line of Main Street; thence S 51°30'41" W along said southeasterly line a distance of 455.94 feet to a point; thence S 43°49'29" E through lands of the City of New Rochelle a distance of 615.00 feet to a point on the original shoreline of Echo Bay; thence along said original shoreline the following eight (8) courses and distances 1) N 49°36'55" E a distance of 127.74 feet to a point, 2) N 11°03'05" W a distance of 200.00 feet to a point, 3) N 49°51'55" E a distance of 98.00 feet to a point, 4) N 18°08'05" W a distance of 118.00 feet to a point, 5) N 69°53'05" W a distance of 50.00 feet to a point, 6) N 16°21'55" E a distance of 46.00 feet to a point, 7) N 62°33'14" W a distance of 86.36 feet to a point, and 8) N 28°10'53" E a distance of 79.00 feet to a point on the division line between lands now or formerly of Serita Holding Corporation on the northeast and lands of the City of New Rochelle on the southwest; thence N 42°12'49" W a distance of 138.15 feet to the point or place of beginning. Containing 4.73 acres of land, more or less.

§ 9. The lands to be dedicated as parkland by the city of New Rochelle pursuant to subdivision (a) of section two of this act, after applying for and obtaining a grant of lands owned by the state of New York formerly under the waters of Echo Bay, are described as follows:

1 All that certain piece or parcel of land situate, lying and being in
 2 the city of New Rochelle, county of Westchester and state of New York
 3 and being bounded and described as follows:

4 ~~[COMMENCING at a point on the southerly line of Main Street (variable~~
 5 ~~width) and the division line of lands now or formerly owned by Serita~~
 6 ~~Holding Corporation and lands now or formerly owned by the city of New~~
 7 ~~Rochelle, said point being 1,215.24 feet distant from the easterly line~~
 8 ~~of Evans Street along the southerly line of Main Street, and also being~~
 9 ~~easterly from a concrete monument "New Rochelle City Monument #4" near~~
 10 ~~the westerly line of Pratt Street and the northerly line of Main Street,~~
 11 ~~a course of North 68°34'21" East, a distance of 391.24 feet and running~~
 12 ~~the following two courses:~~

13 ~~Southerly along said division line, a course of South 42°12'49" East,~~
 14 ~~a distance of 138.15 feet to a point; thence continuing southerly along~~
 15 ~~said division line, a course of South 50°05'59" East, a distance of~~
 16 ~~39.09 feet to a point, being the POINT or PLACE of BEGINNING, as shown~~
 17 ~~on a certain map entitled "State of New York Office of General Services,~~
 18 ~~Park Area Land Grant in the Application of City of New Rochelle for a~~
 19 ~~Grant of Lands Under the Waters of Echo Bay, Situate in the City of New~~
 20 ~~Rochelle, County of Westchester, State of New York", prepared by Langan~~
 21 ~~Engineering, Environmental, Surveying, Landscape Architecture and Geolo-~~
 22 ~~gy, DPC, dated May 19, 2021; thence running easterly along the division~~
 23 ~~line of lands now or formerly owned by Serita Holding Corporation and~~
 24 ~~lands owned by the State of New York, a course of South 50°05'59" East,~~
 25 ~~a distance of 59.26 feet to a point; thence continuing easterly along~~
 26 ~~said division line, a course of South 45°42'59" East, a distance of 0.15~~
 27 ~~feet to a point; thence running northerly along said division line into~~
 28 ~~the waters of Echo Bay, a course of North 20°09'01" East, a distance of~~
 29 ~~4.07 feet to a point; thence running through the waters of Echo Bay and~~
 30 ~~land owned by the State of New York the following twenty courses:~~

31 ~~Easterly, a course of South 49°53'15" East, a distance of 148.40 feet~~
 32 ~~to a point; thence southerly, a course of South 31°32'25" East, a~~
 33 ~~distance of 44.22 feet to a point; thence southerly, a course of South~~
 34 ~~01°01'42" East, a distance of 154.33 feet to a point; thence southerly,~~
 35 ~~a course of South 04°45'45" West, a distance of 105.62 feet to a point;~~
 36 ~~thence southerly, a course of South 08°22'49" West, a distance of 67.94~~
 37 ~~feet to a point; thence southerly, a course of South 22°43'00" West, a~~
 38 ~~distance of 65.54 feet to a point; thence westerly, a course of South~~
 39 ~~55°09'04" West, a distance of 152.09 feet to a point; thence westerly, a~~
 40 ~~course of South 59°23'37" West, a distance of 70.76 feet to a point;~~
 41 ~~thence northerly, a course of North 34°54'45" West, a distance of 24.51~~
 42 ~~feet to a point; thence westerly, a course of South 51°31'11" West, a~~
 43 ~~distance of 151.00 feet to a point; thence westerly along a portion of a~~
 44 ~~wall, a course of South 76°11'06" West, a distance of 39.67 feet to a~~
 45 ~~point; thence westerly along a wall, a course of South 81°48'28" West, a~~
 46 ~~distance of 47.46 feet to a point; thence westerly along a wall, a~~
 47 ~~course of North 85°25'57" West, a distance of 46.20 feet to a point;~~
 48 ~~thence westerly along a wall, a course of North 78°58'50" West, a~~
 49 ~~distance of 22.92 feet to a point; thence westerly along a wall, a~~
 50 ~~course of North 65°46'48" West, a distance of 21.49 feet to a point;~~
 51 ~~thence westerly along a wall, a course of North 58°15'30" West, a~~
 52 ~~distance of 22.49 feet to a point; thence northerly along a wall, a~~
 53 ~~course of North 34°36'11" West, a distance of 44.08 feet to a point;~~
 54 ~~thence northerly along a wall, a course of North 41°07'25" West, a~~
 55 ~~distance of 88.45 feet to a point; thence westerly along a portion of a~~
 56 ~~wall, a course of South 49°31'51" West, a distance of 51.82 feet to a~~

~~point on the easterly line of lands now or formerly owned by City of New Rochelle; thence running along the water's edge through the lands now or formerly owned by the City of New Rochelle the following six courses:~~

~~Westerly a course of South 49°31'51" West, a distance of 113.64 feet to a point; thence southerly a course of South 29°17'12" East, a distance of 16.95 feet to a point; thence westerly a course of South 47°38'55" West, a distance of 24.95 feet to a point; thence westerly a course of South 57°50'50" West, a distance of 56.29 feet to a point; thence southerly a course of South 16°34'44" West, a distance of 17.88 feet to a point; thence westerly a course of South 53°14'05" West, a distance of 28.55 feet to a point on the easterly division line of lands now or formerly owned by Jonel Development Corp.; thence running northerly along said division line and along a fence, a course of North 35°33'35" West, a distance of 136.58 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place a course of North 51°36'37" East, a distance of 326.97 feet to a point on the westerly intersection of lands now or formerly owned by the City of New Rochelle and the southerly line of Huntington Place; thence running through the lands now or formerly owned by the city of New Rochelle the following eighteen courses:~~

~~Southerly a course of South 38°23'27" East, a distance of 0.43 feet to a point; thence southerly along a curve to the left having an arc length of 26.37 feet, a radius of 35.50 feet, and a central angle of 42°33'21" and being subtended by a chord which bears South 35°09'51" West, a distance of 25.77 feet; thence southerly with a compound curve to the left having an arc length of 55.76 feet, a radius of 35.50 feet, and a central angle of 90°00'00" and being subtended by a chord which bears South 31°06'50" East, a distance of 50.20 feet; thence easterly a course of South 76°06'50" East, a distance of 8.74 feet to a point; thence easterly along a curve to the left having an arc length of 62.49 feet, a radius of 45.50 feet, and a central angle of 78°41'06" and being subtended by a chord which bears North 64°32'37" East, a distance of 57.69 feet; thence northerly with a reverse curve to the right having an arc length of 1.84 feet, a radius of 24.50 feet, and a central angle of 04°17'34" and being subtended by a chord which bears North 27°20'51" East, a distance of 1.84 feet; thence southerly a course of South 32°10'08" East, a distance of 16.31 feet to a point; thence southerly a course of South 37°42'52" East, a distance of 35.96 feet to a point; thence easterly along a curve to the left having an arc length of 222.47 feet, a radius of 160.34 feet, and a central angle of 75°16'24" and being subtended by a chord which bears South 75°21'04" East, a distance of 206.81 feet; thence easterly a course of North 51°29'31" East, a distance of 110.44 feet to a point; thence southerly a course of South 36°14'53" East, a distance of 38.30 feet to a point; thence easterly a course of North 52°11'12" East, a distance of 138.84 feet to a point; thence northerly along a curve to the left having an arc length of 103.38 feet, a radius of 235.50 feet, and a central angle of 25°00'00" and being subtended by a chord which bears North 39°36'37" East, a distance of 102.55 feet; thence northerly with a compound curve to the left having an arc length of 278.34 feet, a radius of 335.50 feet, and a central angle of 47°32'02" and being subtended by a chord which bears North 03°16'02" East, a distance of 270.43 feet; thence northerly a course of North 20°29'59" West, a distance of 50.40 feet to a point; thence northerly along a curve to the left having an arc length of 52.00 feet, a radius of 165.50 feet, and a central angle of 18°00'07" and~~

~~being subtended by a chord which bears North 29°30'03" West, a distance of 51.79 feet; thence northerly a course of North 38°30'06" West, a distance of 94.49 feet to a point; thence northerly along a curve to the right having an arc length of 26.22 feet, a radius of 182.50 feet, and a central angle of 08°13'55" and being subtended by a chord which bears North 34°23'09" West, a distance of 26.20 feet to the POINT or PLACE of BEGINNING.~~

~~Encompassing an area of 116,875 square feet or 2.68308 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence North 68°34'21" East, a distance of 391.24 feet to a point on the southeasterly line of Main Street and the division line between lands now or formerly of Serita Holding Corporation on the east and lands now or formerly of the City of New Rochelle on the west, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, thence along said division line the following two (2) courses and distances: (1) South 42°12'49" East, a distance of 138.15 feet to a point being the westerly corner of a grant of lands under water conveyed to Bose & Parker, Inc on December 20, 1945 and the original shoreline of Echo Bay; (2) South 50°05'59" East, along the southerly boundary of said grant to Bose & Parker, Inc. a distance of 39.09 feet to the Point or Place of Beginning; thence continuing along said grant boundary and through lands now or formerly under the waters of Echo Bay the following twenty five (25) courses and distances:

1. South 50°05'59" East, along the southwesterly line of said grant and its extension a distance of 216.15 feet to a point;

2. South 31°32'25" East, a distance of 33.96 feet to a point;

3. South 01°01'42" East, a distance of 154.33 feet to a point;

4. South 04°45'45" West, a distance of 105.62 feet to a point;

5. South 08°22'49" West, a distance of 67.94 feet to a point;

6. South 22°43'00" West, a distance of 65.54 feet to a point;

7. South 55°09'04" West, a distance of 152.09 feet to a point;

8. South 59°23'37" West, a distance of 70.76 feet to a point;

9. North 34°54'45" West, a distance of 8.48 feet to a point;

10. South 49°42'35" West, a distance of 99.42 feet to a point;

11. South 51°31'11" West, a distance of 17.36 feet to a point;

12. South 61°22'22" West, a distance of 19.23 feet to a point;

13. South 75°00'39" West, a distance of 12.56 feet to a point;

14. South 88°04'56" West, a distance of 13.81 feet to a point;

15. North 67°40'17" West, a distance of 9.90 feet to a point;

16. South 76°11'06" West, a distance of 25.23 feet to a point;

17. South 81°48'28" West, a distance of 47.46 feet to a point;

18. North 85°25'57" West, a distance of 46.20 feet to a point;

19. North 78°58'50" West, a distance of 22.92 feet to a point;

20. North 65°46'48" West, a distance of 21.49 feet to a point;

21. North 58°15'30" West, a distance of 22.49 feet to a point;

22. North 34°36'11" West, a distance of 44.08 feet to a point;

23. North 41°07'25" West, a distance of 88.45 feet to a point;

24. South 49°31'51" West, a distance of 51.82 feet to a point; and

25. South 45°30'15" West, a distance of 241.63 feet to a point on the easterly line of lands now or formerly owned by Jonel Development Corp.; thence North 35°33'35" West, along said easterly line a distance of 136.36 feet to a point on the southerly line of Huntington Place (35 feet wide); thence North 51°36'37" East, along the southerly line of Huntington Place a distance of 326.97 feet to a point; thence through

the lands now or formerly owned by the City of New Rochelle the following eighteen (18) courses and distances:

1. South 38°23'27" East, a distance of 0.43 feet to a point;
2. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 26.37 feet, and a central angle of 42°33'21" and being subtended by a chord with a bearing South 35°09'51" West, a distance of 25.77 feet;
3. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 55.76 feet, and a central angle of 90°00'00" and being subtended by a chord with a bearing South 31°06'50" East, a distance of 50.20 feet;
4. South 76°06'50" East, a distance of 8.74 feet to a point;
5. Along a non-tangent curve to the left having a radius of 45.50 feet, an arc length of 62.49 feet, and a central angle of 78°41'06" and being subtended by a chord with a bearing North 64°32'37" East, a distance of 57.69 feet;
6. Along a non-tangent curve to the right having a radius of 24.50 feet, an arc length of 1.84 feet, and a central angle of 04°17'34" and being subtended by a chord with a bearing North 27°20'51" East, a distance of 1.84 feet;
7. South 32°10'08" East, a distance of 16.31 feet to a point;
8. South 37°42'52" East, a distance of 35.96 feet to a point;
9. Along a non-tangent curve to the left having a radius of 169.34 feet, an arc length of 222.47 feet, and a central angle of 75°16'24" and being subtended by a chord with a bearing South 75°21'04" East, a distance of 206.81 feet;
10. North 51°29'31" East, a distance of 110.44 feet to a point;
11. South 36°14'53" East, a distance of 38.30 feet to a point;
12. North 52°11'12" East, a distance of 138.84 feet to a point;
13. Along a non-tangent curve to the left having a radius of 235.50 feet, an arc length of 103.38 feet, and a central angle of 25°09'09" and being subtended by a chord with a bearing North 39°36'37" East, a distance of 102.55 feet; thence
14. Along a non-tangent curve to the left having a radius of 335.50 feet, an arc length of 278.34 feet, and a central angle of 47°32'02" and being subtended by a chord with a bearing North 03°16'02" East, a distance of 270.43 feet; thence
15. North 20°29'59" West, a distance of 50.40 feet to a point;
16. Along a non-tangent curve to the left having a radius of 165.50 feet, an arc length of 52.00 feet, and a central angle of 18°00'07" and being subtended by a chord with a bearing North 29°30'03" West, a distance of 51.79 feet;
17. North 38°30'06" West, a distance of 94.49 feet to a point; and
18. Along a non-tangent curve to the right having a radius of 182.50 feet, an arc length of 26.22 feet, and a central angle of 08°13'55" and being subtended by a chord with a bearing North 34°23'09" West, a distance of 26.20 feet to the Point or Place of Beginning. Containing 2.73 acres of land, more or less.

§ 3. This act shall take effect on the same date and in the same manner as a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, takes effect.

STATE OF NEW YORK

9777

IN ASSEMBLY

April 8, 2022

Introduced by M. of A. OTIS -- read once and referred to the Committee on Cities

AN ACT to amend a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, in relation to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (b) of section 2 of a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, is amended to read as follows:

(b) any such deed transferring the parcel described in section four of this act provides (i) for the preservation of the Armory Building, including the annex, and (ii) a dedicated space for veterans organization use at no charge or a de minimis rental amount as approved by the city council. Such deed or other document of conveyance shall provide that in the event of a breach of the conditions in this paragraph, title to the land transferred to the city of New Rochelle by section four of this act shall revert to the state of New York.

§ 2. Sections 4, 5, 6 and 9 of a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, are amended to read as follows:

§ 4. The parklands authorized by section one of this act to be discontinued as parklands in the letters patent dated July 24, 1997, recorded

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11516-10-2

Attachment: A9777 (2557 : PROPOSED LEGISLATION REGARDING A STATE ALIENATION HOME RULE REQUEST REV #1)

1 in the Westchester County Clerk's office at Liber 11802, Page 272 on
2 September 3, 1997 are described as follows:

3 ALL THAT CERTAIN PIECE OR PARCEL OF LAND situate in the City of New
4 Rochelle, County of Westchester, and State of New York, being further
5 described as follows:

6 BEGINNING at a point on the southerly side of East Main Street at its
7 intersection with the division line between the lands of the People of
8 the State of New York, on the east, and lands now or formerly of Anthony
9 Petro, on the west, said point being distant S. 29 51' W., 304.28 feet
10 from New Rochelle City Monument No. 4 which is located at the northwes-
11 terly corner of the intersection of Pratt and Huguenot Streets; thence
12 N. 52 02' 34 E., along the southerly bounds of East Main Street, 200
13 feet to a point in the westerly bounds of lands, now or formerly, owned
14 by the city of New Rochelle, said point being distance S. 02 32' 30" E.,
15 141.02 feet from the aforesaid Monument No. 4; thence S. 43 23' 32" E.,
16 along the westerly bounds of said lands of the City of New Rochelle, 635
17 feet to a point in the original high water line of New Rochelle Harbor
18 (formerly called Snuff Mill Pond); thence S 52 02' 34" W., generally
19 along said high water line, 200 feet to a point at the southeast corner
20 of lands, now or formerly, of the Colonial Sand and Stone Company, Inc.;
21 thence N. 43 23' 32" W., along the easterly bounds of said lands of the
22 Colonial Sand and Stone Company, Inc., 327.55 feet to a point; thence N.
23 52 28' 17" W., continuing along the easterly bounds of said lands of
24 Colonial Sand and Stone Company, Inc., 57.92 feet to a point in the
25 southerly bounds of lands, now or formerly, of Harvey A. Turnure
26 (designated as Lot 45); thence N. 52 02' 34" E., along the southerly
27 bounds of said lands of Turnure, 9.18 feet to a point; thence N. 43 23'
28 32" W., along the easterly bounds of lands of said Turnure and then
29 continuing along the easterly bounds of the aforesaid lands of Anthony
30 Petro, 251.12 feet to the point and place of beginning, containing 2.908
31 acres of land, more or less. Furthermore, the state of New York shall
32 release the 20-foot-wide easement previously reserved in such letters
33 patent.

34 § 5. In the event that the fair market value of the parklands to be
35 dedicated by the city of New Rochelle pursuant to section nine of this
36 act are not equal to or greater than the fair market value of the park-
37 land to be discontinued in section four of this act, the city of New
38 Rochelle shall dedicate the difference of the fair market value of the
39 lands to be alienated and the lands to be dedicated for the acquisition
40 of additional parklands and/or for capital improvements to existing park
41 and recreational facilities.

42 § 6. The waterfront lands authorized by section three of this act to
43 be discontinued and alienated as waterfront are described as follows:

44 Parcel A:

45 All that certain piece or parcel of land situate, lying and being in
46 the City of New Rochelle, County of Westchester and State of New York
47 and being bounded and described as follows:

48 ~~[BEGINNING at a point on the northerly line of Huntington Place (35~~
49 ~~feet wide) and also being the southerly line of lands now or formerly~~
50 ~~owned by Bridge Management Corporation, said point being 537.37 feet~~
51 ~~distant from the easterly line of Evans Street along the northerly line~~
52 ~~of Huntington Place, and also being southerly from a concrete monument~~
53 ~~"New Rochelle City Monument #4" near the westerly line of Pratt Street~~
54 ~~and the northerly line of Main Street, a course of South 02°30'02" West,~~
55 ~~a distance of 482.73 feet and running thence; easterly along a fence and~~
56 ~~along the division line between lands now or formerly owned by the City~~

~~of New Rochelle and lands now or formerly owned by Bridge Management Corporation, a course of North 51°36'37" East, a distance of 58.07 feet to a point on the westerly line of lands now or formerly owned by the City of New Rochelle; thence running southerly along said division line and portions of a concrete wall, a course of South 43°49'29" East, a distance of 404.21 feet to a point in the waters of Echo Bay being on lands owned by the State of New York; thence 43°49'29" East, a distance of 147.72 feet to a point in the waters of Echo Bay; thence running through the waters of Echo Bay the following three courses:~~

~~Westerly along previously said division line, a course of South 60°32'31" West, a distance of 135.71 feet to a point at the southeasterly corner of lands now or formerly owned by Jonel Development Corporation; thence northerly along previously said division line, a course of North 29°27'29" West, a distance of 10.00 feet to a point; thence westerly along previously said division line, a course of South 60°32'31" West, a distance of 126.77 feet to a point; thence running northerly along previously said division line and along a fence, a course of North 35°33'35" West, a distance of 207.18 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place, a course of North 51°36'37" East, a distance of 326.97 feet to a point; thence running northerly, a course of North 38°23'27" West, a distance of 35.00 feet to the point and place of beginning. Encompassing an area of 101,824 square feet or 2.33756 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence S 03°08'12" E, a distance of 446.88 feet to the southeast corner of lands now or formerly of Bridge Management Corp.; thence S 43°49'29" E, through lands of the City of New Rochelle, a distance of 116.14 feet to the Point or Place of Beginning; thence through lands of the City of New Rochelle the following five (5) courses and distances: (1) S 43°49'29" E, a distance of 176.59 feet to a point; (2) Along a non-tangent curve to the right having a radius of 169.34 feet, an arc length of 143.58 feet, a central angle of 48°34'46" and being subtended by a chord with a bearing N 62°00'15" W, a distance of 139.31 feet to a point; (3) N 37°42'52" W, a distance of 35.96 feet to a point; (4) N 32°10'08" W, a distance of 16.31 feet to a point; and (5) N 57°49'43" E, a distance of 37.11 feet to the Point or Place of Beginning. Containing 0.1432 acres of land, more or less.

Parcel B:

All that certain piece or parcel of land situate, lying and being in the City of New Rochelle, County of Westchester and State of New York and being bounded and described as follows:

~~[BEGINNING at a point on the southerly line of Main Street (variable width) and the division line of lands now or formerly owned by Serita Holding Corporation and lands now or formerly owned by the City of New Rochelle, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, and also being easterly from a concrete monument "New Rochelle City Monument #4" near the westerly line of Pratt Street and the northerly line of Main Street, a course of North 68°34'21" East, a distance of 391.24 feet and running thence;~~

~~Running Easterly along the division line of lands now or formerly owned by Serita Holding Corporation and lands owned by the State of New York, a course of South 50°05'59" East, a distance of 98.35 feet to a point;~~

~~thence continuing Easterly along said division line, a course of South 45°42'59" East, a distance of 0.15 feet to a point;~~
~~thence running Northerly along said division line into the waters of Echo Bay, a course of North 20°09'01" East, a distance of 4.07 feet to a point;~~
~~thence running through the waters of Echo Bay and lands owned by the State of New York the following eight courses:~~
~~Easterly, a course of South 49°53'15" East, a distance of 148.40 feet to a point;~~
~~thence southerly, a course of South 31°32'25" East, a distance of 44.22 feet to a point;~~
~~thence southerly, a course of South 01°01'42" East, a distance of 154.33 feet to a point;~~
~~thence southerly, a course of South 04°45'45" West, a distance of 105.62 feet to a point;~~
~~thence southerly, a course of South 08°22'49" West, a distance of 67.94 feet to a point;~~
~~thence southerly, a course of South 22°43'00" West, a distance of 65.54 feet to a point;~~
~~thence westerly, a course of South 55°09'04" West, a distance of 152.00 feet to a point;~~
~~thence westerly, a course of South 59°23'37" West, a distance of 23.27 feet to a point at the prolongation of the division line of lands now or formerly owned by the City of New Rochelle;~~
~~thence running Northerly along a fence and along the division line of lands now or formerly owned by the City of New Rochelle, a course of North 43°49'29" West, a distance of 689.10 feet to a point on the southerly line of Main Street, also known as U.S. 1;~~
~~thence running Easterly along the southerly line of Main Street, a course of North 51°30'41" East, a distance of 455.94 feet to the POINT or PLACE of BEGINNING.~~
~~Encompassing an area of 289,962 square feet or 6.65661 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence N 68°34'21" E a distance of 391.24 feet to the Point or Place of Beginning, being on the southeasterly line of Main Street; thence S 51°30'41" W along said southeasterly line a distance of 455.94 feet to a point; thence S 43°49'29" E through lands of the City of New Rochelle a distance of 615.00 feet to a point on the original shoreline of Echo Bay; thence along said original shoreline the following eight (8) courses and distances 1) N 49°36'55" E a distance of 127.74 feet to a point, 2) N 11°03'05" W a distance of 200.00 feet to a point, 3) N 49°51'55" E a distance of 98.00 feet to a point, 4) N 18°08'05" W a distance of 118.00 feet to a point, 5) N 69°53'05" W a distance of 50.00 feet to a point, 6) N 16°21'55" E a distance of 46.00 feet to a point, 7) N 62°33'14" W a distance of 86.36 feet to a point, and 8) N 28°10'53" E a distance of 79.00 feet to a point on the division line between lands now or formerly of Serita Holding Corporation on the northeast and lands of the City of New Rochelle on the southwest; thence N 42°12'49" W a distance of 138.15 feet to the point or place of beginning. Containing 4.73 acres of land, more or less.

§ 9. The lands to be dedicated as parkland by the city of New Rochelle pursuant to subdivision (a) of section two of this act, after applying for and obtaining a grant of lands owned by the state of New York formerly under the waters of Echo Bay, are described as follows:

1 All that certain piece or parcel of land situate, lying and being in
 2 the city of New Rochelle, county of Westchester and state of New York
 3 and being bounded and described as follows:

4 ~~[COMMENCING at a point on the southerly line of Main Street (variable~~
 5 ~~width) and the division line of lands now or formerly owned by Serita~~
 6 ~~Holding Corporation and lands now or formerly owned by the city of New~~
 7 ~~Rochelle, said point being 1,215.24 feet distant from the easterly line~~
 8 ~~of Evans Street along the southerly line of Main Street, and also being~~
 9 ~~easterly from a concrete monument "New Rochelle City Monument #4" near~~
 10 ~~the westerly line of Pratt Street and the northerly line of Main Street,~~
 11 ~~a course of North 68°34'21" East, a distance of 391.24 feet and running~~
 12 ~~the following two courses:~~

13 ~~Southerly along said division line, a course of South 42°12'49" East,~~
 14 ~~a distance of 138.15 feet to a point; thence continuing southerly along~~
 15 ~~said division line, a course of South 50°05'59" East, a distance of~~
 16 ~~39.09 feet to a point, being the POINT or PLACE of BEGINNING, as shown~~
 17 ~~on a certain map entitled "State of New York Office of General Services,~~
 18 ~~Park Area Land Grant in the Application of City of New Rochelle for a~~
 19 ~~Grant of Lands Under the Waters of Echo Bay, Situate in the City of New~~
 20 ~~Rochelle, County of Westchester, State of New York", prepared by Langan~~
 21 ~~Engineering, Environmental, Surveying, Landscape Architecture and Geolo-~~
 22 ~~gy, DPC, dated May 19, 2021; thence running easterly along the division~~
 23 ~~line of lands now or formerly owned by Serita Holding Corporation and~~
 24 ~~lands owned by the State of New York, a course of South 50°05'59" East,~~
 25 ~~a distance of 59.26 feet to a point; thence continuing easterly along~~
 26 ~~said division line, a course of South 45°42'59" East, a distance of 0.15~~
 27 ~~feet to a point; thence running northerly along said division line into~~
 28 ~~the waters of Echo Bay, a course of North 20°09'01" East, a distance of~~
 29 ~~4.07 feet to a point; thence running through the waters of Echo Bay and~~
 30 ~~land owned by the State of New York the following twenty courses:~~

31 ~~Easterly, a course of South 49°53'15" East, a distance of 148.40 feet~~
 32 ~~to a point; thence southerly, a course of South 31°32'25" East, a~~
 33 ~~distance of 44.22 feet to a point; thence southerly, a course of South~~
 34 ~~01°01'42" East, a distance of 154.33 feet to a point; thence southerly,~~
 35 ~~a course of South 04°45'45" West, a distance of 105.62 feet to a point;~~
 36 ~~thence southerly, a course of South 08°22'49" West, a distance of 67.94~~
 37 ~~feet to a point; thence southerly, a course of South 22°43'00" West, a~~
 38 ~~distance of 65.54 feet to a point; thence westerly, a course of South~~
 39 ~~55°09'04" West, a distance of 152.09 feet to a point; thence westerly, a~~
 40 ~~course of South 59°23'37" West, a distance of 70.76 feet to a point;~~
 41 ~~thence northerly, a course of North 34°54'45" West, a distance of 24.51~~
 42 ~~feet to a point; thence westerly, a course of South 51°31'11" West, a~~
 43 ~~distance of 151.00 feet to a point; thence westerly along a portion of a~~
 44 ~~wall, a course of South 76°11'06" West, a distance of 39.67 feet to a~~
 45 ~~point; thence westerly along a wall, a course of South 81°48'28" West, a~~
 46 ~~distance of 47.46 feet to a point; thence westerly along a wall, a~~
 47 ~~course of North 85°25'57" West, a distance of 46.20 feet to a point;~~
 48 ~~thence westerly along a wall, a course of North 78°58'50" West, a~~
 49 ~~distance of 22.92 feet to a point; thence westerly along a wall, a~~
 50 ~~course of North 65°46'48" West, a distance of 21.49 feet to a point;~~
 51 ~~thence westerly along a wall, a course of North 58°15'30" West, a~~
 52 ~~distance of 22.49 feet to a point; thence northerly along a wall, a~~
 53 ~~course of North 34°36'11" West, a distance of 44.08 feet to a point;~~
 54 ~~thence northerly along a wall, a course of North 41°07'25" West, a~~
 55 ~~distance of 88.45 feet to a point; thence westerly along a portion of a~~
 56 ~~wall, a course of South 49°31'51" West, a distance of 51.82 feet to a~~

~~point on the easterly line of lands now or formerly owned by City of New Rochelle; thence running along the water's edge through the lands now or formerly owned by the City of New Rochelle the following six courses:~~

~~Westerly a course of South 49°31'51" West, a distance of 113.64 feet to a point; thence southerly a course of South 29°17'12" East, a distance of 16.95 feet to a point; thence westerly a course of South 47°38'55" West, a distance of 24.95 feet to a point; thence westerly a course of South 57°50'50" West, a distance of 56.29 feet to a point; thence southerly a course of South 16°34'44" West, a distance of 17.88 feet to a point; thence westerly a course of South 53°14'05" West, a distance of 28.55 feet to a point on the easterly division line of lands now or formerly owned by Jonel Development Corp.; thence running northerly along said division line and along a fence, a course of North 35°33'35" West, a distance of 136.58 feet to a point on the southerly line of Huntington Place (35 feet wide); thence running easterly along the southerly line of Huntington Place a course of North 51°36'37" East, a distance of 326.97 feet to a point on the westerly intersection of lands now or formerly owned by the City of New Rochelle and the southerly line of Huntington Place; thence running through the lands now or formerly owned by the city of New Rochelle the following eighteen courses:~~

~~Southerly a course of South 38°23'27" East, a distance of 0.43 feet to a point; thence southerly along a curve to the left having an arc length of 26.37 feet, a radius of 35.50 feet, and a central angle of 42°33'21" and being subtended by a chord which bears South 35°09'51" West, a distance of 25.77 feet; thence southerly with a compound curve to the left having an arc length of 55.76 feet, a radius of 35.50 feet, and a central angle of 90°00'00" and being subtended by a chord which bears South 31°06'50" East, a distance of 50.20 feet; thence easterly a course of South 76°06'50" East, a distance of 8.74 feet to a point; thence easterly along a curve to the left having an arc length of 62.49 feet, a radius of 45.50 feet, and a central angle of 78°41'06" and being subtended by a chord which bears North 64°32'37" East, a distance of 57.69 feet; thence northerly with a reverse curve to the right having an arc length of 1.84 feet, a radius of 24.50 feet, and a central angle of 04°17'34" and being subtended by a chord which bears North 27°20'51" East, a distance of 1.84 feet; thence southerly a course of South 32°10'08" East, a distance of 16.31 feet to a point; thence southerly a course of South 37°42'52" East, a distance of 35.96 feet to a point; thence easterly along a curve to the left having an arc length of 222.47 feet, a radius of 160.34 feet, and a central angle of 75°16'24" and being subtended by a chord which bears South 75°21'04" East, a distance of 206.81 feet; thence easterly a course of North 51°29'31" East, a distance of 110.44 feet to a point; thence southerly a course of South 36°14'53" East, a distance of 38.30 feet to a point; thence easterly a course of North 52°11'12" East, a distance of 138.84 feet to a point; thence northerly along a curve to the left having an arc length of 103.38 feet, a radius of 235.50 feet, and a central angle of 25°09'09" and being subtended by a chord which bears North 39°36'37" East, a distance of 102.55 feet; thence northerly with a compound curve to the left having an arc length of 278.34 feet, a radius of 335.50 feet, and a central angle of 47°32'02" and being subtended by a chord which bears North 03°16'02" East, a distance of 270.43 feet; thence northerly a course of North 20°29'59" West, a distance of 50.40 feet to a point; thence northerly along a curve to the left having an arc length of 52.00 feet, a radius of 165.50 feet, and a central angle of 18°00'07" and~~

~~being subtended by a chord which bears North 29°30'03" West, a distance of 51.79 feet; thence northerly a course of North 38°30'06" West, a distance of 94.49 feet to a point; thence northerly along a curve to the right having an arc length of 26.22 feet, a radius of 182.50 feet, and a central angle of 08°13'55" and being subtended by a chord which bears North 34°23'09" West, a distance of 26.20 feet to the POINT or PLACE of BEGINNING.~~

~~Encompassing an area of 116,875 square feet or 2.68308 acres, more or less.]~~

Commencing at New Rochelle City Monument No. 4 at the northwesterly corner of the intersection of Pratt and Huguenot Street; thence North 68°34'21" East, a distance of 391.24 feet to a point on the southeasterly line of Main Street and the division line between lands now or formerly of Serita Holding Corporation on the east and lands now or formerly of the City of New Rochelle on the west, said point being 1,215.24 feet distant from the easterly line of Evans Street along the southerly line of Main Street, thence along said division line the following two (2) courses and distances: (1) South 42°12'49" East, a distance of 138.15 feet to a point being the westerly corner of a grant of lands under water conveyed to Bose & Parker, Inc on December 20, 1945 and the original shoreline of Echo Bay; (2) South 50°05'59" East, along the southerly boundary of said grant to Bose & Parker, Inc. a distance of 39.09 feet to the Point or Place of Beginning; thence continuing along said grant boundary and through lands now or formerly under the waters of Echo Bay the following twenty five (25) courses and distances:

1. South 50°05'59" East, along the southwesterly line of said grant and its extension a distance of 216.15 feet to a point;

2. South 31°32'25" East, a distance of 33.96 feet to a point;

3. South 01°01'42" East, a distance of 154.33 feet to a point;

4. South 04°45'45" West, a distance of 105.62 feet to a point;

5. South 08°22'49" West, a distance of 67.94 feet to a point;

6. South 22°43'00" West, a distance of 65.54 feet to a point;

7. South 55°09'04" West, a distance of 152.09 feet to a point;

8. South 59°23'37" West, a distance of 70.76 feet to a point;

9. North 34°54'45" West, a distance of 8.48 feet to a point;

10. South 49°42'35" West, a distance of 99.42 feet to a point;

11. South 51°31'11" West, a distance of 17.36 feet to a point;

12. South 61°22'22" West, a distance of 19.23 feet to a point;

13. South 75°00'39" West, a distance of 12.56 feet to a point;

14. South 88°04'56" West, a distance of 13.81 feet to a point;

15. North 67°40'17" West, a distance of 9.90 feet to a point;

16. South 76°11'06" West, a distance of 25.23 feet to a point;

17. South 81°48'28" West, a distance of 47.46 feet to a point;

18. North 85°25'57" West, a distance of 46.20 feet to a point;

19. North 78°58'50" West, a distance of 22.92 feet to a point;

20. North 65°46'48" West, a distance of 21.49 feet to a point;

21. North 58°15'30" West, a distance of 22.49 feet to a point;

22. North 34°36'11" West, a distance of 44.08 feet to a point;

23. North 41°07'25" West, a distance of 88.45 feet to a point;

24. South 49°31'51" West, a distance of 51.82 feet to a point; and

25. South 45°30'15" West, a distance of 241.63 feet to a point on the easterly line of lands now or formerly owned by Jonel Development Corp.; thence North 35°33'35" West, along said easterly line a distance of 136.36 feet to a point on the southerly line of Huntington Place (35 feet wide); thence North 51°36'37" East, along the southerly line of Huntington Place a distance of 326.97 feet to a point; thence through

the lands now or formerly owned by the City of New Rochelle the following eighteen (18) courses and distances:

1. South 38°23'27" East, a distance of 0.43 feet to a point;
2. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 26.37 feet, and a central angle of 42°33'21" and being subtended by a chord with a bearing South 35°09'51" West, a distance of 25.77 feet;
3. Along a non-tangent curve to the left having a radius of 35.50 feet, an arc length of 55.76 feet, and a central angle of 90°00'00" and being subtended by a chord with a bearing South 31°06'50" East, a distance of 50.20 feet;
4. South 76°06'50" East, a distance of 8.74 feet to a point;
5. Along a non-tangent curve to the left having a radius of 45.50 feet, an arc length of 62.49 feet, and a central angle of 78°41'06" and being subtended by a chord with a bearing North 64°32'37" East, a distance of 57.69 feet;
6. Along a non-tangent curve to the right having a radius of 24.50 feet, an arc length of 1.84 feet, and a central angle of 04°17'34" and being subtended by a chord with a bearing North 27°20'51" East, a distance of 1.84 feet;
7. South 32°10'08" East, a distance of 16.31 feet to a point;
8. South 37°42'52" East, a distance of 35.96 feet to a point;
9. Along a non-tangent curve to the left having a radius of 169.34 feet, an arc length of 222.47 feet, and a central angle of 75°16'24" and being subtended by a chord with a bearing South 75°21'04" East, a distance of 206.81 feet;
10. North 51°29'31" East, a distance of 110.44 feet to a point;
11. South 36°14'53" East, a distance of 38.30 feet to a point;
12. North 52°11'12" East, a distance of 138.84 feet to a point;
13. Along a non-tangent curve to the left having a radius of 235.50 feet, an arc length of 103.38 feet, and a central angle of 25°09'09" and being subtended by a chord with a bearing North 39°36'37" East, a distance of 102.55 feet; thence
14. Along a non-tangent curve to the left having a radius of 335.50 feet, an arc length of 278.34 feet, and a central angle of 47°32'02" and being subtended by a chord with a bearing North 03°16'02" East, a distance of 270.43 feet; thence
15. North 20°29'59" West, a distance of 50.40 feet to a point;
16. Along a non-tangent curve to the left having a radius of 165.50 feet, an arc length of 52.00 feet, and a central angle of 18°00'07" and being subtended by a chord with a bearing North 29°30'03" West, a distance of 51.79 feet;
17. North 38°30'06" West, a distance of 94.49 feet to a point; and
18. Along a non-tangent curve to the right having a radius of 182.50 feet, an arc length of 26.22 feet, and a central angle of 08°13'55" and being subtended by a chord with a bearing North 34°23'09" West, a distance of 26.20 feet to the Point or Place of Beginning. Containing 2.73 acres of land, more or less.

§ 3. This act shall take effect on the same date and in the same manner as a chapter of the laws of 2021 relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as proposed in legislative bills numbers S. 7184 and A. 8014, takes effect.

City of New Rochelle
Law

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Kathleen E. Gill, Corporation Counsel/Deputy City Manager

DATE: May 10, 2022

SUBJECT: PROPOSED LEGISLATION RE: HOME RULE REQUEST TO AMEND
VEHICLE & TRAFFIC LAW - RESIDENTIAL PARKING SYSTEM -
Resolution authorizing the appropriate officer(s) of the City of New Rochelle to
sign a Home Rule Request for the enactment of Senate Bill No. S8662 and
Assembly Bill No. A9745, amending the Vehicle and Traffic Law in relation to
implementing a residential parking system in the Sutton Manor neighborhood in
the City of New Rochelle.

Resolution authorizing the appropriate officer(s) of the City of New Rochelle to sign a Home Rule Request for the enactment of Senate Bill No. S8662 and Assembly Bill No. A9745, amending the Vehicle and Traffic Law in relation to implementing a residential parking system in the Sutton Manor neighborhood in the City of New Rochelle.

LEGISLATION

RESOLUTION AUTHORIZING THE APPROPRIATE OFFICER(S) OF THE CITY OF NEW ROCHELLE TO SIGN A HOME RULE REQUEST FOR THE ENACTMENT OF SENATE BILL NO. S8662 AND ASSEMBLY BILL NO. A9745, AMENDING THE VEHICLE AND TRAFFIC LAW IN RELATION TO IMPLEMENTING A RESIDENTIAL PARKING SYSTEM IN THE SUTTON MANOR NEIGHBORHOOD IN THE CITY OF NEW ROCHELLE.

BE IT RESOLVED by the Council of the City of New Rochelle, that this City Council hereby authorizes the appropriate City Officer(s) to sign a Home Rule Request for enactment of Senate Bill No. S8662 and Assembly Bill No. A9745, amending the Vehicle and Traffic Law in relation to implementing a residential parking system in the Sutton Manor neighborhood in the City of New Rochelle.

ATTACHMENTS:

1. S8662
2. a9745

STATE OF NEW YORK

8662

IN SENATE

March 28, 2022

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation

AN ACT to amend the vehicle and traffic law, in relation to implementing a residential parking system in the city of New Rochelle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds
2 that there is a severe shortage of parking for residents of the City of
3 New Rochelle in the residential area of Sutton Manor. The residents
4 living in the Sutton Manor neighborhood are suffering interference to
5 the tranquility and quiet enjoyment of their neighborhood by reason of
6 visitors and users of the nearby New Rochelle Station, by shoppers,
7 diners and users of New Rochelle's downtown area, and by owners of
8 commercial vehicles from the villages, towns, boroughs and cities neigh-
9 boring Sutton Manor. Each of the foregoing individuals park in the
10 Sutton Manor as a free and convenient alternative to paid, permit park-
11 ing in and around New Rochelle and its surroundings. This use has caused
12 significant safety issues, refuse and sanitation problems, traffic
13 hazards, congestion, air and noise pollution and other disturbances
14 which cumulatively have severely deteriorated the peace, tranquility and
15 quality of life of the residents of this neighborhood. The legislature,
16 therefore, hereby declares the necessity of this act to authorize the
17 City of New Rochelle in the county of Westchester to adopt a residential
18 parking permit system in accordance with the provisions of this act.

19 § 2. The vehicle and traffic law is amended by adding a new section
20 1640-r to read as follows:

21 § 1640-r. Residential parking system in the city of New Rochelle. 1.
22 Notwithstanding the provisions of any law to the contrary, the city
23 council of the city of New Rochelle may, by adoption of a local law or
24 ordinance, provide for a residential parking permit system and fix and
25 require the payment of fees applicable to parking within the area in
26 which such parking system is in effect in accordance with the provisions
27 of this section.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14954-01-2

1 2. Such residential parking permit system may only be established
2 within the city of New Rochelle on Farragut Circle, Decatur Road and
3 Sutton Manor Road.

4 3. Notwithstanding the foregoing, no permit shall be required on
5 streets or portion of streets where the adjacent properties are zoned
6 for commercial/retail use.

7 4. The local law or ordinance providing for such residential parking
8 system shall:

9 (a) set forth factors necessitating the enactment of such parking
10 system; and

11 (b) provide that motor vehicles registered pursuant to section four
12 hundred four-a of this chapter shall be exempt from any permit require-
13 ment; and

14 (c) provide the times of the day and days of the week during which
15 permit requirements shall be in effect; and

16 (d) make not less than twenty percent of all spaces within the permit
17 area available to non-residents and shall provide short-term parking of
18 not less than ninety minutes in duration in such area; and

19 (e) provide the schedule of fees to be paid for such permits; and

20 (f) provide that such fees shall be credited to the general fund of
21 the city.

22 5. No ordinance shall be adopted pursuant to this section until a
23 public hearing thereon has been had in the same manner as required for
24 public hearings on a local law pursuant to the municipal home rule law.

25 § 3. This act shall take effect immediately.

STATE OF NEW YORK

9745

IN ASSEMBLY

March 28, 2022

Introduced by M. of A. OTIS, PAULIN -- read once and referred to the Committee on Transportation

AN ACT to amend the vehicle and traffic law, in relation to implementing a residential parking system in the city of New Rochelle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds
2 that there is a severe shortage of parking for residents of the City of
3 New Rochelle in the residential area of Sutton Manor. The residents
4 living in the Sutton Manor neighborhood are suffering interference to
5 the tranquility and quiet enjoyment of their neighborhood by reason of
6 visitors and users of the nearby New Rochelle Station, by shoppers,
7 diners and users of New Rochelle's downtown area, and by owners of
8 commercial vehicles from the villages, towns, boroughs and cities neigh-
9 boring Sutton Manor. Each of the foregoing individuals park in the
10 Sutton Manor as a free and convenient alternative to paid, permit park-
11 ing in and around New Rochelle and its surroundings. This use has caused
12 significant safety issues, refuse and sanitation problems, traffic
13 hazards, congestion, air and noise pollution and other disturbances
14 which cumulatively have severely deteriorated the peace, tranquility and
15 quality of life of the residents of this neighborhood. The legislature,
16 therefore, hereby declares the necessity of this act to authorize the
17 City of New Rochelle in the county of Westchester to adopt a residential
18 parking permit system in accordance with the provisions of this act.

19 § 2. The vehicle and traffic law is amended by adding a new section
20 1640-r to read as follows:

21 § 1640-r. Residential parking system in the city of New Rochelle. 1.
22 Notwithstanding the provisions of any law to the contrary, the city
23 council of the city of New Rochelle may, by adoption of a local law or
24 ordinance, provide for a residential parking permit system and fix and
25 require the payment of fees applicable to parking within the area in
26 which such parking system is in effect in accordance with the provisions
27 of this section.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14954-01-2

1 2. Such residential parking permit system may only be established
2 within the city of New Rochelle on Farragut Circle, Decatur Road and
3 Sutton Manor Road.

4 3. Notwithstanding the foregoing, no permit shall be required on
5 streets or portion of streets where the adjacent properties are zoned
6 for commercial/retail use.

7 4. The local law or ordinance providing for such residential parking
8 system shall:

9 (a) set forth factors necessitating the enactment of such parking
10 system; and

11 (b) provide that motor vehicles registered pursuant to section four
12 hundred four-a of this chapter shall be exempt from any permit require-
13 ment; and

14 (c) provide the times of the day and days of the week during which
15 permit requirements shall be in effect; and

16 (d) make not less than twenty percent of all spaces within the permit
17 area available to non-residents and shall provide short-term parking of
18 not less than ninety minutes in duration in such area; and

19 (e) provide the schedule of fees to be paid for such permits; and

20 (f) provide that such fees shall be credited to the general fund of
21 the city.

22 5. No ordinance shall be adopted pursuant to this section until a
23 public hearing thereon has been had in the same manner as required for
24 public hearings on a local law pursuant to the municipal home rule law.

25 § 3. This act shall take effect immediately.

City of New Rochelle
Buildings

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Paul Vacca, Commissioner of Buildings
DATE: May 10, 2022
SUBJECT: PROPOSED CREATION OF POSITION OF SECRETARY TO THE
COMMISSIONER OF BUILDINGS - Resolution creating the position of
Secretary to the Commissioner of Buildings and eliminating the position of
Principal Clerk within the Department of Buildings.

The department of Buildings requires a change in the title to conform to responsibilities and eliminate the position of principal clerk.

The department of Buildings recommends that the City Council create the following title in the 2022 budget effective 4/1/22.

The salary range for principal clerk (grade 7) is \$46,244 - \$66,053 (based on the 2020 CSEA contract)

The salary range for Secretary to the Commissioner (grade 9) is \$54,096 - \$77,273 (based on the 2020 CSEA contract)

These increases will be funded through salary savings.

LEGISLATION

RESOLUTION CREATING THE POSITION OF SECRETARY TO THE COMMISSIONER OF BUILDINGS AND ELIMINATING THE POSITION OF PRINCIPAL CLERK WITHIN THE DEPARTMENT OF BUILDINGS.

WHEREAS, in order to conform responsibilities, the Department of Buildings is recommending the addition of one new title (Secretary to the Commissioner of Buildings) and the elimination of one existing title (Principal Clerk), as follows:

Title Name	Current Position Total	Proposed Position Total	Grade	Proposed Salary
Secretary to the Commissioner of Buildings	0	1	CSEA 9	\$54,096-\$77,273

Title Name	Current Position Total	Proposed Position Total	Grade	Proposed Salary
Principal Clerk	1	0	CSEA 7	\$46,244-\$66,053

and

WHEREAS, there shall be no financial impact on the budget due to salary savings; now, therefore

BE IT RESOLVED, by the Council of the City of New Rochelle, that the creation of the position of Secretary to the Commissioner of Buildings in the Department of Buildings is hereby authorized; and be it further

RESOLVED, that the elimination of the position of Principal Clerk in the Department of Buildings is hereby authorized.

City of New Rochelle
Buildings

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Paul Vacca, Commissioner of Buildings
DATE: May 10, 2022
SUBJECT: PROPOSED CHANGE IN CIVIL SERVICE EMPLOYEES' ASSOCIATION
(CSEA) GRADE RE: PLUMBING INSPECTOR - Resolution approving the
update of an existing position within the office of the Department of Buildings.

In an effort to align the salary and make it commensurate with the duties of the position of plumbing inspector, it is suggested that the City change the grade from a 13 to a grade 14.

The duties of this position have increased significantly due to the complexity of inspections.

City staff suggest that the position be moved from a grade 13 to a grade 14 to reflect the increased workload effective 4/1/22.

The salary range for grade 13 is \$77,598 - \$110,916 (based on the 2020 CSEA contract)

The salary range for grade 14 is \$85,396 - \$122,083 (based on the 2020 CSEA contract)

These increases will be funded through salary savings.

LEGISLATION

RESOLUTION APPROVING THE UPDATE OF AN EXISTING POSITION WITHIN THE OFFICE OF THE DEPARTMENT OF BUILDINGS.

WHEREAS, in an effort to align the salary and make it commensurate with the duties of the position of Plumbing Inspector, it is suggested that the City change the grade from a grade 13 to a grade 14, as follows:

Salary range, Grade 13:	\$77,598-\$110,916
Salary range, Grade 14:	\$85,395-\$122,083

and

WHEREAS the duties of this position significantly increased due to the complexity of inspections; and

WHEREAS, the increase shall be funded through salary savings; now, therefore

BE IT RESOLVED, that the City Council hereby approves the upgrade of the position of Plumbing Inspector in the Department of Buildings.

City of New Rochelle
Public Works

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Jim Moran, Public Works Commissioner
DATE: May 10, 2022
SUBJECT: PROPOSED APPROVAL OF ANNUAL STORMWATER REPORT RE:
YEAR 2021 - Resolution authorizing the City Manager to approve the MS4
Municipal Compliance Certification and Annual Report form for the period
ending March 9, 2022.

Resolution authorizing the City Manager to approve the annual MS4 Annual Report for period
ending March 9, 2022.

2021 MS4 ANNUAL REPORT IS ATTACHED

LEGISLATION

RESOLUTION AUTHORIZING THE CITY MANAGER TO APPROVE THE MS4 MUNICIPAL COMPLIANCE CERTIFICATION AND ANNUAL REPORT FORM FOR THE PERIOD ENDING MARCH 9, 2022.

WHEREAS, small municipal stormwater sewer systems (MS4s) that are located within the boundaries of a Census Bureau defined "urbanized area" are regulated under EPA's Phase II Stormwater Rule; and

WHEREAS, this requires MS4s to develop a stormwater management program that will reduce the amount of pollutants carried by stormwater during storm events to waterbodies to the "maximum extent practicable"; and

WHEREAS, the goal of the program is to improve water quality and recreational use of waterways;

WHEREAS, in order to comply with the requirements of the General Permit for Stormwater Discharges from Municipal Separate Storm Sewer Systems, submission of the MS4 Municipal Compliance Certification and Annual Report Form is required; now, therefore, be it

RESOLVED, that the City Manager is hereby authorized to approve the MS4 Municipal Compliance Certification and Annual Report Form for the period ending March 9, 2022.

ATTACHMENTS:

1. 2021 MS4 Report

MS4 Annual Report Cover Page**MCC form for period ending March 9, 2022**

Provide SPDES ID of each permitted MS4 included in this report.

SPDES ID

N Y R 2 0 A

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MCC form for period ending March 9, 2022

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Important Instructions - Please Read

Contact information must be provided for ***each*** of the following positions as indicated below:

1. Principal Executive Officer, Chief Elected Official or other qualified individual (per GP-0-08-002 Part VI.J).
2. Duly Authorized Representative (Information for this contact must only be submitted if a Duly Authorized Representative is signing this form)
3. The Local Stormwater Public Contact (required per GP-0-08-002 Part VII.A.2.c & Part VIII.A.2.c).
4. The Stormwater Management Program (SWMP) Coordinator (Individual responsible for coordination/implementation of SWMP).
5. Report Preparer (Consultants may provide company name in the space provided).

A separate sheet must be submitted for each position listed above unless more than one position is filled by the same individual. If one individual fills multiple roles, provide the contact information once and check all positions that apply to that individual.

If a new Duly Authorized Representative is signing this report, their contact information must be provided and a signature authorization form, signed by the Principal Executive Officer or Chief Elected Official must be attached.

For each contact, select all that apply:

- ☒ Principal Executive Officer/Chief Elected Official
- ☐ Duly Authorized Representative
- ☐ Local Stormwater Public Contact
- ☐ Stormwater Management Program (SWMP) Coordinator
- ☐ Report Preparer

First Name

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Last Name

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Title

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Address

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Phone

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MCC form for period ending March 9, 2022

SPDES ID

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Did your MS4 work with partners/coalition to complete some or all permit requirements during this reporting period?

Submit a separate sheet for each partner. Information provided in other formats will not be accepted. If your MS4 cooperated with a coalition, submit one sheet with the name of the coalition. It is not necessary to include a separate sheet for each MS4 in the coalition.

W	e	s	t	c	h	e	s	t	e	r		C	o	u	n	t	y		P	l	a	n	n	i	n	g		D	e	p	t
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SPDES Partner ID - If applicable

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Legally Binding Agreement in accordance
with GP-0-08-002 Part IV.G? ☐ Yes

What tasks/responsibilities are shared with this partner (e.g. MM1 School Programs or Multiple Tasks)?

● MM1 GENERAL STORMWATER INFORMATION

[illegible][illegible][illegible][illegible][illegible]

Additional tasks/responsibilities

☐ *Watershed Improvement Strategy Best Management Practices* required for MS4s in impaired watersheds included in GP-0-08-002 Part IX.

MS4 Municipal Compliance Certification(MCC) Form

MCC form for period ending March 9, 2022

Name of MS4 | CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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Section 4 - Certification Statement

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

This form must be signed by either a principal executive officer or ranking elected official, or duly authorized representative of that person as described in GP-0-08-002 Part VI.J.

First Name

C	H	A	R	L	E	S								
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MI

B

Last Name

S	T	R	O	M	E								
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Title (Clearly print title of individual signing report)

[illegible]

Signature

Date _____

		/			/				
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Send completed form and any attachments to the DEC Central Office at:

MS4 Permit Coordinator
Division of Water
4th Floor
625 Broadway
Albany, New York 12233-3505

If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

SPDES ID

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How many MS4s are contributed to this report?

☐ Yes ☒ No

Please provide specific address of page where report(s) can be accessed - not home page.

URL

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This report is being submitted for the reporting period ending March 9, 2 0 2 2

Name of MS4/Coalition	CITY OF NEW ROCHELLE	SPDES ID								
		N	Y	R	2	0	A	2	0	7

How many MS4s contributed to this report?		
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MS4 Annual Report Form**This report is being submitted for the reporting period ending March 9,**

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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3. What strategies did your MS4/Coalition use to achieve education and outreach goals during this reporting period? Check all that apply:☐ Construction Site Operators Trained# Trained

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☒ Direct Mailings# Mailings

				1
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☒ Kiosks or Other Displays# Locations

				1
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☐ List-Serves# In List

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☒ Mailing List# In List

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☐ Newspaper Ads or Articles# Days Run

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☐ Public Events/Presentations# Attendees

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☐ School Program# Attendees

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☒ TV Spot/Program# Days Run

		3	6	5
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☒ Printed Materials:Total # Distributed

2	8	0	0	0
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Locations (e.g. libraries, town offices, kiosks)

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R	O	T	U	N	D	A		D	I	S	P	L	A	Y			
F	R	O	N	T		E	N	T	R	A	N	C	E				

☒ Other:

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☒ Web Page: Provide specific web addresses - not home page. Continue on next page if additional space is needed.

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MS4 Annual Report Form**This report is being submitted for the reporting period ending March 9,**

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

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MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

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4. Evaluating Progress Toward Measurable Goals MCM 1

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

Printed information is available at City Hall and can be downloaded from the City's website. TV spots are broadcast weekly based on season. Questionnaires on public understanding of stormwater management are available for completion and return to the City. Solid waste pick up schedules with educational content on stormwater are mailed to all City households. The "Love 'em or Leave 'em" leaf disposal information is also mailed to about 28,000 businesses and households in the City

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

Ever since the City initiated its leaf bagging program to reduce the amount of leaves in the stormwater drainage network, the amount of leaves typically recovered from the drainage network as part of DPW's operations appear to have diminished. TV spots such as After the Storm, Reduce Runoff run about x 64/year usually prior or after a major weather event and at change of season.

C. How many times was this observation measured or evaluated in this reporting period?

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(ex.: samples/participants/events)

D. Has your MS4 made progress toward this Measurable Goal during this reporting period?

☒ Yes ☐ No

E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?

☒ Yes ☐ No

F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Increase public awareness for proper pet waste disposal. Installation of additional debris-restricting catch basin curb pieces that are manufactured with a "Drains to Waterways" sign. Continue to offer educational literature and TV spots to the public. Continue to emphasize leaf bagging and mulching programs.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

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Please provide specific address(es) where notice(s) can be accessed - not home page.

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

CITY OF NEW ROCHELLE

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MS4 Annual Report Form**This report is being submitted for the reporting period ending March 9,**

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

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3. Where can the public access copies of this annual report, Stormwater Management Program SWMP) Plan and submit comments on those documents?

Enter address/contact info and select radio button to indicate which document is available and whether comments may be submitted at that location. Submit additional pages as needed.

☒ MS4/Coalition Office☒ Annual Report☒ SWMP Plan☒ Comments

Department

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City

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Zip

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☐ Library☐ Annual Report☐ SWMP Plan☐ Comments

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☐ Other☐ Annual Report☐ SWMP Plan☐ Comments

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☐ Web Page URL:☒ Annual Report☐ SWMP Plan☐ Comments

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☐ eMail☐ Comments

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MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

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4.a. If this report was made available on the internet, what date was it posted?

Leave blank if this report was not posted on the internet.

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2	0	2	2
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4.b. For how many days was/will this report be posted?

3	6	5
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If submitting a report for single MS4, answer 5.a.. If submitting a joint report, answer 5.b..

5.a. Was an Annual Report public meeting held in this reporting period?

☐ Yes ☒ No

If Yes, what was the date of the meeting?

0	5
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If No, is one planned?

☒ Yes ☐ No

5.b. Was an Annual Report public meeting held for all MS4s contributing to this report during this reporting period?

☐ Yes ☒ No

If No, is one planned for each?

☒ Yes ☐ No

6. Were comments received during this reporting period?

☐ Yes ☒ No

If Yes, attach comments, responses and changes made to SWMP in response to comments to this report.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

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7. Evaluating Progress Toward Measurable Goals MCM 2

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

Distribute a questionnaire to assess the public understanding of stormwater management in the City. The questionnaire is available on the City's website and in hard copy at Public Works in City Hall.

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

No questionnaires were returned for this reporting period.

C. How many times was this observation measured or evaluated in this reporting period?

			1
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(ex.: samples/participants/events,

D. Has your MS4 made progress toward this measurable goal during this reporting period?

☒ Yes ☐ No

E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?

☒ Yes ☐ No

F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Continue with questionnaire, literature and solicit volunteers for stormwater related activities, whether is educational or cleanup.

If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

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How many MS4s contributed to this report?		
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1. Enter the number and approx. percent of outfalls mapped:	2	8	#	1	0	0	%
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2. How many of these outfalls have been screened for dry weather discharges during this reporting period (outfall reconnaissance inventory)?

3.a. What types of generating sites/sewersheds were targeted for inspection during this reporting period?

- ☐ Auto Recyclers
 - ☐ Building Maintenance
 - ☐ Churches
 - ☐ Commercial Carwashes
 - ☐ Commercial Laundry/Dry Cleaners
 - ☐ Construction Vehicle Washouts
 - ☐ Cross-Connections
 - ☐ Distribution Centers
 - ☐ Food Processing Facilities
 - ☐ Garbage Truck Washouts
 - ☐ Hospitals
 - ☐ Improper RV Waste Disposal
 - ☐ Industrial Process Water
 - ☐ Landscaping (Irrigation)
 - ☐ Marinas
 - ☐ Metal Plateing Operations
 - ☐ Outdoor Fluid Storage
 - ☐ Parking Lot Maintenance
 - ☐ Printing
 - ☐ Residential Carwashing
 - ☐ Restaurants
 - ☐ Schools and Universities
 - ☐ Septic Maintenance
 - ☐ Swimming Pools
 - ☐ Vehicle Fueling
 - ☐ Vehicle Maint./Repair Shops

● Other:

☐ None[illegible]

○ Sewersheds:

[illegible]

If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

SPDES ID

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Please provide specific address of page where map(s) can be accessed - not home page

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[illegible]

☒ Yes ☐ No

☒ Yes ☐ No ☐ NT

	9	5	%
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MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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12. Evaluating Progress Toward Measurable Goals MCM 3

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

City continues to monitor for illicit discharges and damages piping.

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

No signs of illicit discharges were observed for the reporting period.

C. How many times was this observation measured or evaluated in this reporting period?

			0
--	--	--	---

(ex.: samples/participants/events,

D. Has your MS4 made progress toward this measurable goal during this reporting period?

☒ Yes ☐ No

E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?

☒ Yes ☐ No

F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Inspect outfalls for signs of illicit discharges.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

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Minimum Control Measures 4 and 5.
Construction Site and Post-Construction Control

The information in this section is being reported (check one):

- ☒ On behalf of an individual MS4
☐ On behalf of a coalition

How many MS4s contributed to this report?

--	--	--

1a. Has each MS4 contributing to this report adopted a law, ordinance or other regulatory mechanism that provides equivalent protection to the NYS SPDES General Permit for Stormwater Discharges from Construction Activities?

☒ Yes ☐ No

1b. Has each Town, City and/or Village contributing to this report documented that the law is equivalent to a NYSDEC Sample Local Law for Stormwater Management and Erosion and Sediment Control through either an attorney certification or using the NYSDEC Gap Analysis Workbook?

☒ Yes ☐ No ☐ NT

If Yes, Towns, Cities and Villages provide date of equivalent NYS Sample Local Law.

☐ 09/2004 ☒ 03/2006 ☐ NT

2. Does your MS4/Coalition have a SWPPP review procedure in place?

☒ Yes ☐ No

3. How many Construction Stormwater Pollution Prevention Plans (SWPPPs) have been reviewed in this reporting period?

		5
--	--	---

4. Does your MS4/Coalition have a mechanism for receipt and consideration of public comments related to construction SWPPPs?

☒ Yes ☐ No ☐ NT

If Yes, how many public comments were received during this reporting period?

		0
--	--	---

5. Does your MS4/Coalition provide education and training for contractors about the local SWPPP process?

☐ Yes ☒ No

Attachment: 2021 MS4 Report (2543 : Annual Stormwater Report for Year 2021)

6. Identify which of the following types of enforcement actions you used during the reporting period for construction activities, indicate the number of actions, or note those for which you do not have authority:

☒ Notices of Violation	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>2</td></tr></table>					2	☐ No Authority
				2				
☒ Stop Work Orders	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Criminal Actions	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Termination of Contracts	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Administrative Fines	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Civil Penalties	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Administrative Orders	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	☐ No Authority
				0				
☒ Enforcement Actions or Sanctions	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td>0</td></tr></table>					0	
				0				
☐ Other	#	<table border="1"><tr><td></td><td></td><td></td><td></td><td></td></tr></table>						☐ No Authority

MS4 Annual Report Form**This report is being submitted for the reporting period ending March 9,**

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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Minimum Control Measure 4. Construction Site Stormwater Runoff Control

The information in this section is being reported (check one):

- ☒ On behalf of an individual MS4
☐ On behalf of a coalition

How many MS4s contributed to this report?

--	--	--

1. How many construction projects have been authorized for disturbances of one acre or more during this reporting period?

		4
--	--	---

2. How many construction projects disturbing at least one acre were active in your jurisdiction during this reporting period?

		4
--	--	---

3. What percent of active construction sites were inspected during this reporting period? ☐ NT

1	0	0
---	---	---

 %4. What percent of active construction sites were inspected more than once? ☐ NT

1	0	0
---	---	---

 %5. Do all inspectors working on behalf of the MS4s contributing to this report use the NYS Construction Stormwater Inspection Manual? ☒ Yes ☐ No ☐ NT6. Does your MS4/Coalition provide public access to Stormwater Pollution Prevention Plans (SWPPPs) of construction projects that are subject to MS4 review and approval? ☒ Yes ☐ No ☐ NTIf your MS4 is Non-Traditional, are SWPPPs of construction projects made available for public review? ☒ Yes ☐ No

If Yes, use the following page to identify location(s) where SWPPPs can be accessed.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

2	0	2	2
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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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7. Evaluating Progress Toward Measurable Goals MCM 4

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

City Building Department reviews the SWPPP with the assistance of an engineering consultant. Final/accepted SWPPPs are recorded with the Building Department for public access and enforcement.

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

Projects requiring a SWPPP are identified and a SWPPP is reviewed for compliance. A total of 4 projects were identified for SWPPP requirements in this reporting period.

C. How many times was this observation measured or evaluated in this reporting period?

			1
--	--	--	---

(ex.: samples/participants/events)

D. Has your MS4 made progress toward this measurable goal during this reporting period?
☒ Yes ☐ No
E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?
☒ Yes ☐ No
F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Continue to identify projects requiring a SWPPP and continue to review the SWPPP and inspect those sites for compliance.

This report is being submitted for the reporting period ending March 9,

2	0	2	2
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Name of MS4/Coalition	CITY OF NEW ROCHELLE
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N	Y	R	2	0	A	2	0	7
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How many MS4s contributed to this report?		
---	--	--

	# Inventoried	# Inspections	# Times Maintained
☐ Alternative Practices			
☒ Filter Systems			1
☐ Infiltration Basins			
☐ Open Channels			
☐ Ponds			
☐ Wetlands			
☐ Other			

☐ Yes ☐ No

☐ Other:[illegible]

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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4a. Are the MS4s contributing to this report involved in a regional/watershed wide planning effort?

☒ Yes ☐ No

4b. Does the MS4 have a banking and credit system for stormwater management practices?

☐ Yes ☒ No

4c. Do the SWMP Plans for each MS4 contributing to this report include a protocol for evaluation and approval of banking and credit of alternative siting of a stormwater management practice?

☐ Yes ☒ No

4d. How many stormwater management practices have been implemented as part of this system in this reporting period?

		0
--	--	---

5. What percent of municipal officials/MS4 staff responsible for program implementation attended training on Low Impact Development (LID), Better Site Design (BSD) and other Green Infrastructure principles in this reporting period?

		0
--	--	---

 %

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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6. Evaluating Progress Toward Measurable Goals MCM 5

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

Identify and Inventory all Best Management Practices installed.

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

No BMP's inventoried for this reporting period.

C. How many times was this observation measured or evaluated in this reporting period?

			1
--	--	--	---

(ex.: samples/participants/events,

D. Has your MS4 made progress toward this measurable goal during this reporting period?

☒ Yes ☐ No

E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?

☒ Yes ☐ No

F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Continue to identify and inventory BMPs to ensure inspection and maintenance requirements are completed in accordance with the approved SWPPP.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

2	0	2	2
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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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Minimum Control Measure 6. Stormwater Management for Municipal Operations

The information in this section is being reported (check one):

- ☒ On behalf of an individual MS4
☐ On behalf of a coalition

How many MS4s contributed to this report?

--	--	--

1. Choose/list each municipal operation/facility that contributes or may potentially contribute Pollutants of Concern to the MS4 system. For each operation/facility indicate whether the operation/facility has been addressed in the MS4's/Coalition's Stormwater Management Program(SWMP) Plan and whether a self-assessment has been performed during the reporting period. A self-assessment is performed to: 1) determine the sources of pollutants potentially generated by the permittee's operations and facilities; 2) evaluate the effectiveness of existing programs and 3) identify the municipal operations and facilities that will be addressed by the pollution prevention and good housekeeping program, if it's not done already.

<u>Operation/Activity/Facility</u>	<u>Addressed in SWMP?</u>	<u>Self-Assessment Operation/Activity/Facility performed within the past 3 years?</u>
Street Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Bridge Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Winter Road Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Salt Storage.....	☒ Yes ☐ No	☒ Yes ☐ No
Solid Waste Management.....	☒ Yes ☐ No	☒ Yes ☐ No
New Municipal Construction and Land Disturbance..	☒ Yes ☐ No	☐ Yes ☐ No
Right of Way Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Marine Operations.....	☒ Yes ☐ No	☒ Yes ☐ No
Hydrologic Habitat Modification.....	☐ Yes ☒ No	☐ Yes ☒ No
Parks and Open Space.....	☒ Yes ☐ No	☒ Yes ☐ No
Municipal Building.....	☒ Yes ☐ No	☒ Yes ☐ No
Stormwater System Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Vehicle and Fleet Maintenance.....	☒ Yes ☐ No	☒ Yes ☐ No
Other.....	☐ Yes ☒ No	☐ Yes ☒ No

MS4 Annual Report Form**This report is being submitted for the reporting period ending March 9,**

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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2. Provide the following information about municipal operations good housekeeping programs:

● Parking Lots Swept (Number of acres X Number of times swept)

Acres

			1	8
--	--	--	---	---

● Streets Swept (Number of miles X Number of times swept)

Miles 11638

☐ Catch Basins Inspected and Cleaned Where Necessary (561 CLEANED)#

1	1	8	9	4
---	---	---	---	---

☐ Post Construction Control Stormwater Management Practices Inspected and Cleaned Where Necessary#

--	--	--	--	--

☐ Phosphorus Applied In Chemical Fertilizer# Lbs.

--	--	--	--	--

☐ Nitrogen Applied In Chemical Fertilizer# Lbs.

--	--	--	--	--

☐ Pesticide/Herbicide Applied

(Number of acres to which pesticide/herbicide was applied X Number of times applied to the nearest tenth.)

Acres

					.	
--	--	--	--	--	---	--

3. How many stormwater management trainings have been provided to municipal employees during this reporting period?

				3
--	--	--	--	---

 ***4. What was the date of the last training?**

0	7
---	---

 /

2	1
---	---

 /

2	0	2	1
---	---	---	---

5. How many municipal employees have been trained in this reporting period?

		6
--	--	---

 ***6. What percent of municipal employees in relevant positions and departments receive stormwater management training?**

	5	0
--	---	---

 %

*CoVid-19 protocols hampered plans for training in 2020.

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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7. Evaluating Progress Toward Measurable Goals MCM 6

Use this page to report on your progress and project plans toward achieving measurable goals identified in your Stormwater Management Program Plan (SWMPP), including requirements in Part III.C.1. Submit additional pages as needed.

A. Briefly summarize the Measurable Goal identified in the SWMPP in this reporting period.

Amount of cleaned infrastructure (identified in Part 2).

B. Briefly summarize the observations that indicated the overall effectiveness of this Measurable Goal.

Retrieved debris is a clear indication of the effectiveness of this MCM.

C. How many times was this observation measured or evaluated in this reporting period?

			1
--	--	--	---

(ex.: samples/participants/events,

D. Has your MS4 made progress toward this measurable goal during this reporting period?

☒ Yes ☐ No

E. Is your MS4 on schedule to meet the deadline set forth in the SWMPP?

☒ Yes ☐ No

F. Briefly summarize the stormwater activities planned to meet the goals of this MCM during the next reporting cycle (including an implementation schedule).

Continue to inspect and clean stormwater catch basins; and continue to sweep City-owned roads and parking lots.

MS4 Annual Report FormThis report is being submitted for the reporting period ending March 9,

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If submitting this form as part of a joint report on behalf of a coalition leave SPDES ID blank.

Name of MS4/Coalition

CITY OF NEW ROCHELLE									
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SPDES ID

N	Y	R	2	0	A	2	0	7
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Additional Watershed Improvement Strategy Best Management Practices

The information in this section is being reported (check one):

☒ On behalf of an individual MS4☐ On behalf of a coalitionHow many MS4s contributed to this report?

--	--	--

MS4s must answer the questions or check NA as indicated in the table below.

MS4 Description	Answer	Check NA	(POC)
NYC EOH Watershed	-	-	-
Traditional Land Use	1,2,3,4,5,6,7a-d,8a,8b,9	10,11,12	Phosphorus
Traditional Non-Land Use	1,2,3,4,7a-d,8a,8b,9	5,10,11,12	Phosphorus
Non-Traditional	1,2,77a-d,8a,8b,9	3,4,5,10,11,12	Phosphorus
Onondaga Lake Watershed	-	-	-
Traditional Land Use	1,6,7a-d,8a,9	2,3,4,5,8b,10,11,12	Phosphorus
Traditional Non-Land Use	1,6,7a-d,8a,9	2,3,4,5,8b,10,11,12	Phosphorus
Non-Traditional	1,6,7a-d,8a,9	2,3,4,5,8b,10,11,12	Phosphorus
Greenwood Lake Watershed	-	-	-
Traditional Land Use	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
Traditional Non-Land Use	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
Non-Traditional	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
Oyster Bay	-	-	-
Traditional Land Use	1,4,7a-d,9,10,11,12	2,3,5,6,8a,8b	Pathogens
Traditional Non-Land Use	1,4,7a-d,9,10,11,12	2,3,5,6,8a,8b	Pathogens
Non-Traditional	1,4,7a-d,9	2,3,4,5,8a,8b,10,11,12	Pathogens
Peconic Estuary	-	-	-
Traditional Land Use	1,4,7a-d,8a,9,10,11,12	2,3,5,6,8b	Pathogens and Nitrogen
Traditional Non-Land Use	1,4,7a-d,8a,9,10,11,12	2,3,5,6,8b	Pathogens and Nitrogen
Non-Traditional	1,4,7a-d,8a,9	2,3,4,5,8b,10,11,12	Pathogens and Nitrogen
Oscawana Lake Watershed	-	-	-
Traditional Land Use	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
Traditional Non-Land Use	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
Non-Traditional	1,4,6,7a-d,8a,9	2,3,5,8b,10,11,12	Phosphorus
LI 27 Embayments	-	-	-
Traditional Land Use	1,2,3,4,7a-d,9,10,11,12	5,6,8a,8b	Pathogens
Traditional Non-Land Use	1,2,3,4,7a-d,9,10,11,12	5,6,8a,8b	Pathogens
Non-Traditional	1,2,3,4,7a-d,9	5,6,8a,8b,10,11,12	Pathogens

1. Does your MS4/Coalition have an education program addressing impacts of phosphorus/nitrogen/pathogens on waterbodies?☒ Yes ☐ No ☐ N/A**2. Has 100% of the MS4/Coalition conveyance system been mapped in GIS?**☒ Yes ☐ No ☐ N/A

If N/A, go to question 3.

If No, estimate what percentage of the conveyance system has been mapped so far.

--	--	--

 %

Estimate what percentage was mapped in this reporting period.

--	--	--

 %

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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3. Does your MS4/Coalition have a Stormwater Conveyance System (infrastructure) Inspection and Maintenance Plan Program? ☒ Yes ☐ No ☐ N/A

4. Estimate the percentage of on-site wastewater treatment systems that have been inspected and maintained or rehabilitated as necessary in this reporting period?

		0
--	--	---

 %

5. Has your MS4/Coalition developed a program that provides protection equivalent to the NYSDEC SPDES General Permit for Stormwater Discharges from Construction Activities (GP-0-08-001) to reduce pollutants in stormwater runoff from construction activities that disturb five thousand square feet or more? ☒ Yes ☐ No ☐ N/A

6. Has your MS4/Coalition developed a program to address post-construction stormwater runoff from new development and redevelopment projects that disturb greater than or equal to one acre that provides equivalent protection to the NYS DEC SPDES General Permit for Stormwater Discharges from Construction Activities (GP-0-08-001), including the New York State Stormwater Design Manual Enhanced Phosphorus Removal Standards? ☒ Yes ☐ No ☐ N/A

7a. Does your MS4/Coalition have a retrofitting program to reduce erosion or phosphorus/nitrogen/pathogen loading? ☒ Yes ☐ No ☐ N/A

7b. How many projects have been sited in this reporting period?

		3
--	--	---

7c. What percent of the projects included in 7b have been completed in this reporting period?

1	0	0
---	---	---

 %

7d. What percent of projects planned in previous years have been completed?

1	0	0
---	---	---

 %

☐ No Projects Planned

8a. Has your MS4/Coalition developed and implemented a turf management practices and procedures policy that addresses proper fertilizer application on municipally owned lands? ☒ Yes ☐ No ☐ N/A

8b. Has your MS4/Coalition developed and implemented a turf management practices and procedures policy that addresses proper disposal of grass clippings and leaves from municipally owned lands? ☒ Yes ☐ No ☐ N/A

MS4 Annual Report Form

This report is being submitted for the reporting period ending March 9,

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Name of MS4/Coalition

CITY OF NEW ROCHELLE

SPDES ID

N	Y	R	2	0	A	2	0	7
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9. Has your MS4/Coalition developed and implemented a program of native planting?

☒ Yes ☐ No ☐ N/A

10. Has your MS4/Coalition enacted a local law prohibiting pet waste on municipal properties and prohibiting goose feeding?

☒ Yes ☐ No ☐ N/A

11. Does your MS4/Coalition have a pet waste bag program?

☒ Yes ☐ No ☐ N/A

12. Does your MS4/Coalition have a program to manage goose populations?

☐ Yes ☒ No ☐ N/A

City of New Rochelle
Parks & Recreation

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Vincent Parise, Parks and Recreation Commissioner
DATE: May 10, 2022
SUBJECT: PROPOSED ACCEPTANCE OF A GRANT AWARD FROM THE WESTCHESTER COUNTY YOUTH BUREAU RE: MUNICIPAL YOUTH BUREAU FUNDING - Resolution authorizing the City Manager to accept a grant from the Westchester County Youth Bureau in the amount of \$71,428 relative to municipal youth bureau funding.

The New Rochelle Youth Bureau has been awarded a grant in the amount of \$71,428.00 from the Westchester County Youth Bureau. The purpose of this funding is to be used in any one of the following categories:

- A. Infrastructure
- B. Transportation/Vehicle Lease/Purchase
- C. Needs Assessment
- D. Board Recruitment

RECOMMENDATION: We recommend that the City Council adopt a resolution accepting and appropriating grant award in the amount of \$71,428.00 for the year 2022. Also, to authorize the City Manager to execute such documentation as may be necessary and required to file and accept the grant.

LEGISLATION

RESOLUTION AUTHORIZING THE CITY MANAGER TO
ACCEPT A GRANT FROM THE WESTCHESTER COUNTY
YOUTH BUREAU IN THE AMOUNT OF \$71,428 RELATIVE TO
MUNICIPAL YOUTH BUREAU FUNDING.

WHEREAS, the New Rochelle Youth Bureau has been awarded a grant in the amount of \$71,428 from the Westchester County Youth Bureau to be used in any of the following categories:

- Infrastructure
- Transportation/Vehicle Lease/Purchase
- Needs Assessment
- Board Recruitment

now, therefore,

BE IT RESOLVED, that the City Manager is hereby authorized to accept the \$71,428 grant from the Westchester County Youth Bureau relative to municipal youth bureau funding and execute such documentation as may be necessary and required to file and accept the grant.

ATTACHMENTS:

1. 2022 NRYB BOL Award Letter



George Latimer, County Executive

Dr. DaMia Harris-Madden, Executive Director
Youth Bureau

April 22, 2022

Kelly Johnson
Executive Director
New Rochelle Youth Bureau
515 North Avenue
New Rochelle, New York 10801

Dear Mr. Johnson,

We are pleased to inform you that County Executive George Latimer and the Board of Legislators have agreed to enter into a service agreement with your youth serving organization. Your agency has been selected to receive miscellaneous funding in 2022 for the program and amount stated below:

<u>Contract Agency</u>	<u>Program Name</u>	<u>Funding Year</u>	<u>Funding</u>	<u>Contract Amount</u>
New Rochelle Youth Bureau	Municipal Youth Bureau Funding	2022	BOL/ MISC	\$71,428

The Westchester County Youth Bureau anticipates this agreement from January 1, 2022 through December 31, 2022 based upon the continuance of contract compliance, appropriation of funds to the Youth Bureau, and the execution of the service agreement. In preparation for the contract process, your agency is strongly encouraged to register with the County's Vendor Portal. The link to access the Vendor Portal is <http://business.westchestergov.com/vendor-portal>.

Please note that the Agreement that your organization is required to enter into with Westchester County shall contain a provision that the County shall retain the right, upon the occurrence of any release by the Governor of a proposed budget of the State of New York and/or the adoption of the State budget or any amendments thereto, and after the County has a reasonable period of time to conduct an analysis of the impacts of such budget(s) on County finances, to terminate the Agreements authorized herein or to renegotiate the amounts and rates approved herein. If the County subsequently offers to pay a reduced amount to the contract agencies, then the contract agencies shall have the right to terminate their respective Agreements upon reasonable prior written notice.

This service agreement is made possible because we recognize the valuable and important work that your agency provides for children, youth, and families. My best wishes for continued success in your efforts to serve the youth of Westchester County.

Sincerely,

Dr. DaMia Harris-Madden
Executive Director

112 East Post Road 3rd fl.
White Plains, New York 10601

Telephone: (914) 995-2745
Fax: (914) 995-3871

Website: www.westchestergov.com/youth

Attachment: 2022 NRYB BOL Award Letter (2552 : PROPOSED ACCEPTANCE OF A GRANT AWARD FROM THE WESTCHESTER COUNTY

City of New Rochelle
Parks & Recreation

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Vincent Parise, Parks and Recreation Commissioner
DATE: May 10, 2022
SUBJECT: PROPOSED ACCEPTANCE OF A GRANT AWARD FROM THE WHITE PLAINS YOUTH BUREAU RE: GRANDPA PROGRAM - Resolution authorizing the City Manager to accept a grant from the White Plains Youth Bureau in the amount of \$25,000 relative to the Grandpa Program.

The New Rochelle Youth Bureau has been awarded a grant in the amount of \$25,000.00 from the White Plains Youth Bureau. The purpose of this funding is to implement the Grand Pa Program

RECOMMENDATION: We recommend that the City Council adopt a resolution accepting and appropriating grant award in the amount of \$25,000.00 for the year 2022. Also, to authorize the City Manager to execute such documentation as may be necessary and required to file and accept the grant.

LEGISLATION

RESOLUTION AUTHORIZING THE CITY MANAGER TO
ACCEPT A GRANT FROM THE WHITE PLAINS YOUTH
BUREAU IN THE AMOUNT OF \$25,000 RELATIVE TO THE
GRANDPA PROGRAM.

WHEREAS, the New Rochelle Youth Bureau has been awarded a grant in the amount of \$25,000 from the White Plains Youth Bureau for the implementation of the Grandpa Program for 2022; now, therefore,

BE IT RESOLVED, that the City Manager is hereby authorized to accept the \$25,000 grant from the White Plains Youth Bureau relative to the Grandpa Program and execute such documentation as may be necessary and required to file and accept the grant.

ATTACHMENTS:

1. GrandPa Letter
2. GrandPaBudget



**CITY OF WHITE PLAINS YOUTH BUREAU
OFFICE OF THE MAYOR
11 AMHERST PLACE - WHITE PLAINS, NEW YORK 10601
(914) 422-1378 - FAX (914) 422-6489**

THOMAS M. ROACH
MAYOR

FRANK WILLIAMS, JR., Ph.D.
EXECUTIVE DIRECTOR

March 28, 2022

Kelly Johnson
Executive Director
New Rochelle Youth Bureau
515 North Avenue
New York, NY 10801

Dear Kelly:

I am pleased to inform you that the New Rochelle Youth Bureau is a recipient of a \$25,000 grant award from the White Plains Youth Bureau for your Grandpas United Program. The White Plains Youth Bureau received a Legislative Grant from the State of New York to provide mentoring, leadership and intergenerational activities through the White Plains Grandpas United Program. Grandpas United mission is to improve the lives of children, youth and older adults through intergenerational activities. The project period is April 1, 2022 through March 31, 2023.

The proposed subcontract is subject to the approval of New York State Office of Family and Children's Services. Please submit a budget for use of the funds.

Please see the attach subcontract form which need your signature. Please sign and return to me ASAP.

Let me know if you have any questions.

Sincerely,

Frank Williams, Jr.
Executive Director

Youth Bureau
515 North Avenue
New Rochelle, NY 10801



Tel (914) 654-2045
Fax (914) 654-2046

Kelly Johnson, Jr.
Executive Director

City of New Rochelle New York

Grandpa Program

Personnel Services:

Senior Youth Worker:	\$4,350.00
Fringe:	<u>\$ 650.00</u>
	\$5,000.00
Program Coordinator:	\$8,700.00
Fringe:	<u>\$1,300.00</u>
	\$10,000.00
Salaries & Wages:	\$13,050.00
Fringe:	<u>\$1,950.00</u>
Total Personnel Services:	\$15,000.00

Maintenance & Operation:

Supplies/Equipment:	\$3,000.00
Trips/Admissions	\$2,000.00
Transportation:	\$3,000.00
Refreshments:	<u>\$2,000.00</u>
Total M & O:	\$10,000.00
Total Budget:	\$25,000.00

City of New Rochelle
Personnel

MEMORANDUM

TO: Honorable Mayor and City Council

THRU: Charles B. Strome, III, City Manager

FROM: Robert Yamuder, Human Resources Commissioner

DATE: May 10, 2022

SUBJECT: CIVIL SERVICE EMPLOYEES' ASSOCIATION (CSEA) STIPULATION OF AGREEMENT BETWEEN THE CITY OF NEW ROCHELLE (CITY) AND THE CIVIL SERVICE EMPLOYEES' ASSOCIATION (CSEA) - Resolution ratifying the Stipulation of Agreement between the City of New Rochelle and the Civil Service Employees Association (CSEA) for the period January 1, 2021 through December 31, 2026.

The City Collective Bargaining Team has negotiated the attached Stipulation of Agreement with the CSEA covering the period of January 1, 2021 through December 31, 2026. The membership of the CSEA has approved the subject Stipulation.

The agreed upon provisions listed in the Memorandum of Agreement include:

1) Increased Salaries as follows:

Effective 1/1/21, increase annual salaries by 1.75%
 Effective 1/1/22, increase annual salaries by 2.0%,
 Effective 1/1/23, increase annual salaries by 2.0%,
 Effective 1/1/24, increase annual salaries by 3.0%
 Effective 1/1/25, increase annual salaries by 3.0%
 Effective 1/1/26, increase annual salaries by 3.0%

2) Increased Longevity as follows:

Year	After 5 years	After 10	After 15	After 20
2023	\$1275	\$1475	\$2475	\$3010
2024	\$1350	\$1550	\$2550	\$3310
2025	\$1425	\$1625	\$2625	\$3640
2026	\$1500	\$1700	\$2700	\$4005

3) Increased Benefit (Welfare) Fund contributions as follows:

Effective 1/1/21: \$1855
Effective 1/1/22: \$1930
Effective 1/1/23: \$2005
Effective 1/1/24: \$2080
Effective 1/1/25: \$2155
Effective 1/1/26: \$2230

- 4) Clarification to various sections.

I recommend the City Council:

- 1) Ratify the attached Stipulation of Agreement; and
- 2) Transfer sufficient funds from various City Budget accounts to the specific services accounts in the CSEA.

LEGISLATION

RESOLUTION RATIFYING THE STIPULATION OF AGREEMENT
BETWEEN THE CITY OF NEW ROCHELLE AND THE CIVIL
SERVICE EMPLOYEES ASSOCIATION (CSEA) FOR THE PERIOD
JANUARY 1, 2021 THROUGH DECEMBER 31, 2026.

WHEREAS, the City Collective Bargaining Team has negotiated a Stipulation of Agreement with the CSEA covering the period of January 1, 2021 through December 31, 2026, and the membership of the CSEA has approved the subject Stipulation; now, therefore

BE IT RESOLVED by the Council of the City of New Rochelle:

Section 1. The Memorandum of Agreement between the City of New Rochelle and the Civil Service Employees Association (CSEA) for the period January 1, 2021 through December 31, 2026 is hereby ratified and the City Manager is authorized to enter into an agreement pursuant thereto.

Section 2. In order to accomplish the foregoing, funds shall be transferred from the Salary Reserve Account.

City of New Rochelle
City Manager

MEMORANDUM

TO: Honorable Mayor and City Council
THRU: Charles B. Strome, III, City Manager
FROM: Charles Strome III, City Manager
DATE: May 10, 2022
SUBJECT: SUPPORT FOR TAXI INDUSTRY Requested by Council Member Albert A. Tarantino, Jr.

DISCUSSION ITEM